

HIGHLY CONFIDENTIAL

**AMENDED AND RESTATED
AGREEMENT OF LIMITED PARTNERSHIP**

ENCAP ENERGY CAPITAL FUND XII, L.P.

Dated as of May 17, 2023

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THE LIMITED PARTNERSHIP INTERESTS IN ENCAP ENERGY CAPITAL FUND XII, L.P. HAVE NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED, OR ANY STATE OR FOREIGN SECURITIES LAWS, OR APPROVED OR DISAPPROVED BY THE SECURITIES AND EXCHANGE COMMISSION OR BY ANY STATE OR FOREIGN AUTHORITY. SUCH INTERESTS MAY NOT BE SOLD, ASSIGNED, TRANSFERRED, PLEDGED OR OTHERWISE DISPOSED OF UNLESS SUCH INTERESTS ARE FIRST REGISTERED PURSUANT TO ALL SUCH APPLICABLE LAWS OR UNLESS COUNSEL SATISFACTORY TO ENCAP EQUITY FUND XII GP, L.P. SHALL HAVE RENDERED AN OPINION SATISFACTORY TO ENCAP EQUITY FUND XII GP, L.P. THAT SUCH REGISTRATION IS NOT REQUIRED. THE SALE, ASSIGNMENT, TRANSFER, PLEDGE OR OTHER DISPOSITION OF SUCH INTERESTS IS ALSO RESTRICTED BY ARTICLE X OF THE AMENDED AND RESTATED AGREEMENT OF LIMITED PARTNERSHIP OF ENCAP ENERGY CAPITAL FUND XII, L.P.

**AMENDED AND RESTATED
AGREEMENT OF LIMITED PARTNERSHIP**

EnCap Energy Capital Fund XII, L.P.

THIS AMENDED AND RESTATED AGREEMENT OF LIMITED PARTNERSHIP (this “**Agreement**”) of EnCap Energy Capital Fund XII, L.P., a Delaware limited partnership (the “**Partnership**”), dated as of May 17, 2023, is made by and among EnCap Equity Fund XII GP, L.P., a Delaware limited partnership, as the general partner (the “**General Partner**”), and the Persons listed as the limited partners on the LP Schedule (individually, a “**Limited Partner**” and collectively, the “**Limited Partners**”).

WHEREAS, the Partnership was formed as a limited partnership on February 27, 2023, by the General Partner and Jason M. DeLorenzo (the “**Initial Limited Partner**”), pursuant to a Certificate of Limited Partnership filed with the Secretary of State of Delaware on February 27, 2023 (as amended from time to time, the “**Certificate**”) and entered into that certain Agreement of Limited Partnership of the Partnership, dated February 27, 2023 (the “**Initial Agreement**”).

AGREEMENT:

The General Partner, the Initial Limited Partner and the Limited Partners desire to continue the Partnership and to amend and restate the Initial Agreement in its entirety as follows:

ARTICLE I - FORMATION OF PARTNERSHIP

Section 1.1 Formation. The Partnership has previously been formed as a limited partnership pursuant to the Delaware Revised Uniform Limited Partnership Act (such act, as amended from time to time, or any successor statute or statutes thereto, being called the “**Act**”). The Partnership is hereby continued and the Initial Agreement is hereby amended and restated in its entirety. The rights and obligations of the Partners with respect to the Partnership shall be determined in accordance with the terms and provisions of this Agreement and, except where the

Act provides that such rights and obligations specified in the Act shall apply “unless otherwise provided in a limited partnership agreement” or words of similar effect and such rights and obligations are set forth in this Agreement, the Act. The provisions of the Act entitled “Contractual Appraisal Rights” shall not apply or be incorporated into this Agreement.

Section 1.2 Name. The name of the Partnership shall be EnCap Energy Capital Fund XII, L.P. Subject to all applicable laws, the business of the Partnership shall be conducted in the name of the Partnership unless, under the law of some jurisdiction in which the Partnership does business, such business must be conducted under another name or unless the General Partner determines that it is advisable to conduct Partnership business under another name. In such a case, the business of the Partnership in such jurisdiction or in connection with such determination may be conducted under such other name or names as the General Partner shall determine to be necessary, and in either such event the General Partner shall give prompt written notice to the Limited Partners of the use of such other name and the facts related thereto. The General Partner shall cause to be filed on behalf of the Partnership such partnership or assumed or fictitious name certificate or certificates or similar instruments as may from time to time be required by law. Upon the termination of the Partnership, all of the Partnership’s right, title and interest in and to the use of the name of the Partnership (and any variation thereof, including any name to which the name of the Partnership may be changed) shall be the property of the General Partner and no Limited Partner shall have any right or interest in and to the use of any such name.

Section 1.3 Purpose. The purpose of the Partnership shall be: (a) to make, hold, sell, exchange, or otherwise Dispose of investments (including Securities) in companies whose underlying assets include oil and gas reserves and related infrastructure, known as the “reserve-related” sector of the oil and gas industry and, within the limitations set forth in this Agreement, companies in the energy industry, but outside the reserve-related sector (the “**Principal Investment Focus**”); and (b) to engage in all activities and to enter into, exercise the rights and enjoy the benefits under, and discharge the obligations of the Partnership pursuant to, all contracts, agreements and other instruments which the General Partner shall determine to be necessary or suitable for or incidental to the accomplishment and conduct of the foregoing business.

Section 1.4 Places of Business; Registered Agent.

(a) The address of the principal United States office and place of business of the Partnership and its street address shall be 9651 Katy Freeway, Suite 600, Houston, Texas 77024. The General Partner, at any time and from time to time, may change the location of the Partnership’s principal place of business and may establish such additional place or places of business of the Partnership within the continental United States as the General Partner shall determine to be necessary or desirable, and in either such event shall give prompt written notice of such changed or additional place of business to the Limited Partners.

(b) The registered office of the Partnership in the State of Delaware and the registered agent for service of process on the Partnership shall be as set forth in the Certificate. The General Partner, at any time and from time to time, may change the Partnership’s registered office or registered agent or both by complying with the applicable provisions of the Act, and may establish, appoint and change additional registered offices and registered agents of the Partnership in such other jurisdictions as the General Partner shall determine to be necessary or advisable, and in any

such event shall give prompt written notice of such changed or additional registered offices or agents to the Limited Partners.

Section 1.5 Term. The Partnership commenced upon the date of filing of the Certificate of record with the Secretary of State of the State of Delaware and shall continue until terminated in accordance with Article IX.

Section 1.6 Title to Partnership Property. All property owned by the Partnership, whether real or personal, tangible or intangible, shall be owned by the Partnership as an entity, and no Partner, individually, shall have any ownership of such property.

Section 1.7 Withdrawal of Initial Limited Partner; Admission of Limited Partners. Each Limited Partner being admitted to the Partnership on the Initial Closing Date shall be deemed admitted to the Partnership as a Limited Partner of the Partnership upon its execution and delivery of its Subscription Agreement and the acceptance thereof by the General Partner. Immediately following the admission of any such Limited Partner, the Initial Limited Partner, by its execution and delivery of this Agreement, shall be deemed to have automatically withdrawn from the Partnership on the Initial Closing Date. Each Limited Partner being admitted to the Partnership on any date subsequent to the Initial Closing Date shall be admitted to the Partnership in accordance with Section 10.3.

Section 1.8 Prospective Portfolio Companies. EnCap or an Affiliate thereof may commit capital to one or more Persons that are prospective Portfolio Companies of the Partnership (each a “**Prospective Portfolio Company**”) in an amount equal to the Partnership’s contemplated commitment to such Prospective Portfolio Company. After the Initial Closing Date and until the date that is 120 days following the Final Closing Date (with respect to Prospective Portfolio Companies identified prior to the Final Closing Date), EnCap or its Affiliate may sell, transfer and assign the portion of its interest in any Prospective Portfolio Company attributable to the Partnership’s contemplated interest in such Prospective Portfolio Company (the “**Prospective Portfolio Company Interest**”) to the Partnership or an Affiliate of the Partnership. In consideration therefor, the Partnership or its Affiliate shall pay to EnCap or its Affiliate an amount equal to the sum of the following amounts, in each case to the extent such amounts are attributable to such Prospective Portfolio Company Interest: (a) (i) the purchase price paid under the applicable purchase, contribution or other acquisition or investment agreement, (ii) all third-party legal fees and expenses incurred in connection therewith and (iii) all capital funded to such Prospective Portfolio Company by EnCap or its Affiliate (to the extent not already included in clause (i)); *plus* (b) interest on the amounts described in clause (a) from the date of such payment or contribution through the date of assignment at a rate of 8% per annum; *plus* (c) all related third-party financing costs ((a), (b) and (c) together, the “**Prospective Portfolio Company Costs**”). EnCap or its Affiliate shall transfer and assign each Prospective Portfolio Company Interest to the Partnership on an “as is” basis without any representations or warranties, except certain standard representations as to EnCap’s or its Affiliate’s power and authority to make such transfer and assignment and a representation and warranty that EnCap or such Affiliate has not Disposed of its interests in such Prospective Portfolio Company to any other Person.

ARTICLE II - DEFINITIONS, REFERENCES AND CONSTRUCTION

Section 2.1 Defined Terms. When used in this Agreement, the following terms shall have the respective meanings set forth below:

“Acceptable Accounting Firm” shall mean PricewaterhouseCoopers LLP, Ernst & Young LLP, KPMG LLP, Deloitte LLP, or an independent certified public accounting firm resulting from a merger or combination of any of the foregoing firms.

“Act” shall have the meaning assigned to such term in Section 1.1.

“Additional Subscription Period” shall have the meaning assigned to such term in Section 10.3(a).

“Adjusted Capital Account” shall mean the Capital Account maintained for each Partner as provided in Section 7.1(b), (a) increased by any amounts that such Partner is obligated to restore or is treated as obligated to restore under Treasury Regulations Sections 1.704-1(b)(2)(ii)(c), 1.704-2(g)(1) and 1.704-2(i)(5), and (b) reduced by the adjustments provided for in Treasury Regulations Sections 1.704-1(b)(2)(ii)(d)(4)-(6) with respect to such Partner. The foregoing definition of “Adjusted Capital Account” is intended to comply with the provisions of Treasury Regulations Sections 1.704-1(b)(2)(ii)(d) and 1.704-2, and shall be interpreted consistently therewith.

“Affected Partner” shall have the meaning assigned to such term in Section 7.1(b)(ii).

“Affiliate” shall mean, when used with respect to another Person, a Person Controlling, Controlled by or under common Control with such other Person; provided, however, that when used with respect to the General Partner or the Manager, an “Affiliate” shall include any EnCap Related Party so long as such party is affiliated with EnCap; provided, further, that (a) for purposes of any action required or authorized under this Agreement, the Partnership shall not be deemed to be an “Affiliate” of the General Partner or the Manager and any Feeder Fund, Blocker Corporation or Alternative Investment Vehicle shall not be deemed to be an “Affiliate” of the General Partner, the Manager or the Partnership; (b) the Limited Partners and the limited partners or owners of any Feeder Fund or Alternative Investment Vehicle (as applicable), in their capacity as limited partners or owners of such entities, shall not be deemed to be “Affiliates” of the Partnership, Feeder Fund or Alternative Investment Vehicle (as applicable); and (c) any Portfolio Company of the Partnership shall not be deemed to be an Affiliate of the General Partner or the Manager. As used in this definition of “Affiliate”, the term **“Control”** shall mean the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of a Person, whether through ownership of voting securities, by contract, or otherwise. As used in this Agreement, the term **“Person”** shall include an individual, a corporation, a partnership, a limited liability company, an association or other entity, an estate, a joint stock company and a trust.

“Agreement” shall have the meaning assigned to such term in the preamble to this Agreement.

“Allocation Period” shall mean the period beginning on the day after the last day of the immediately preceding Allocation Period (or with respect to the first such period, the date of the

Initial Agreement) and ending (a) on the last day of each Fiscal Year, (b) the day preceding any day in which an adjustment to the Book Value of the Partnership's properties pursuant to clause (b)(i), (b)(ii), (b)(iii) or (b)(v) of the definition of "Book Value" occurs, (c) immediately after any day in which an adjustment to the Book Value of the Partnership's properties pursuant to clause (b)(iv) of the definition of "Book Value" occurs or (d) on any other date determined by the General Partner.

"Alternative Investment Vehicle" shall have the meaning assigned to such term in Section 5.16(a).

"Assignee" shall have the meaning assigned to such term in Section 10.1(b)(i).

"Assignor" shall have the meaning assigned to such term in Section 10.1(b)(i).

"Assumed Tax Rate" shall mean the highest effective marginal combined U.S. federal, state and local income tax rate (including any tax rate imposed on "net investment income" by Code Section 1411) for a calendar year prescribed for an individual resident in Houston, Texas (taking into account a reasonable estimation of the character of the applicable income (e.g., long-term or short-term capital gain or ordinary or exempt) and Section 1061 of the Code, and disregarding the effect of any deductions under Section 199A of the Code and the deductibility of state and local income taxes for U.S. federal income tax purposes (unless such deductibility is not subject to any limitations)).

"Available Assets" shall mean, as of a given date, cash which is available in the accounts of the Partnership (other than Capital Contributions held for investment or to pay Partnership expenses or cash held for reinvestment as permitted by Section 3.3), less such amounts as the General Partner determines to be necessary for the payment of the Partnership's expenses, obligations or liabilities (whether fixed or contingent) and for the establishment of appropriate reserves for such expenses, obligations or liabilities.

"Base Amount" shall have the meaning assigned to such term in Section 5.11(a).

"BHCA" shall mean the U.S. Bank Holding Company Act of 1956, as amended, and the rules and regulations promulgated thereunder.

"BHCA Interest" shall mean, as of the date of any determination, that portion of the Commitments or Capital Contributions of a BHCA Limited Partner which exceeds 4.99% of Total Commitments or Capital Contributions, respectively, of the Limited Partners (other than BHCA Interests and any other Limited Partner interests that are non-voting) that are not Defaulting Partners. Each BHCA Limited Partner and any Affiliate of such BHCA Limited Partner that itself is a BHCA Limited Partner shall be considered a single BHCA Limited Partner for purposes of determining "BHCA Interest."

"BHCA Limited Partner" shall mean, as of the date of any determination, each Limited Partner subject to the BHCA that has irrevocably notified the General Partner in writing of such status at any time prior to such determination (other than a Limited Partner which is investing under Section 4(k) thereof and has delivered a written notice to the Partnership so stating prior to or at the time of its investment) and any transferee of such Limited Partner but, with respect to

such transferee, only to the extent that the portion of its Commitment or Capital Contribution acquired from such Limited Partner was a BHCA Interest at the time of such acquisition.

“Bipartisan Budget Act” shall mean Sections 6221 through 6241 of the Code, together with any final or temporary Treasury Regulations, Revenue Rulings, and case law interpreting Sections 6221 through 6241 of the Code (and any analogous provision of state or local tax law).

“Blocker Corporation” shall mean an entity treated as a corporation for U.S. federal income tax purposes and organized directly or indirectly by one or more Feeder Funds.

“Book Value” shall mean, with respect to any property of the Partnership, such property’s adjusted basis for U.S. federal income tax purposes (which, in the case of any Depletable Property, shall be determined pursuant to Treasury Regulations Section 1.613A-3(e)(3)(iii)(C)), except as follows:

(a) The initial Book Value of any property contributed by a Partner to the Partnership shall be the Market Value of such property as of the date of such contribution;

(b) The Book Values of all properties shall be adjusted to equal their respective Market Values in connection with (i) the acquisition of a Partnership interest (or an additional Partnership interest) by any new or existing Partner in exchange for more than a de minimis Capital Contribution or in exchange for the performance of more than a de minimis amount of services to or for the benefit of the Partnership, (ii) the distribution by the Partnership to a Partner of more than a de minimis amount of property as consideration for a Partnership interest, (iii) the liquidation of the Partnership within the meaning of Treasury Regulations Section 1.704-1(b)(2)(ii)(g)(1), (iv) the acquisition of a Partnership interest by any new or existing Partner upon the exercise of a non-compensatory option in accordance with Treasury Regulations Section 1.704-1(b)(2)(iv)(s), or (v) any other event to the extent determined by the General Partner to be permitted and necessary to properly reflect Book Values in accordance with the standards set forth in Treasury Regulations Section 1.704-1(b)(2)(iv)(q); provided that adjustments pursuant to clauses (i), (ii) and (iv) above shall be made only if the General Partner reasonably determines that such adjustments are necessary or appropriate to reflect the relative economic interests of the Partners in the Partnership. If any non-compensatory options are outstanding upon the occurrence of an event described in clauses (i) through (v) above, the Partnership shall adjust the Book Values of its properties in accordance with Treasury Regulations Sections 1.704-1(b)(2)(iv)(f)(1) and 1.704-1(b)(2)(iv)(h)(2).

(c) The Book Value of property distributed to a Partner shall be the Market Value of such property as of the date of such distribution;

(d) The Book Value of all property shall be increased (or decreased) to reflect any adjustments to the adjusted basis of such property pursuant to Code Section 734(b) (including any such adjustments pursuant to Treasury Regulations Section 1.734-2(b)(1)), but only to the extent that such adjustments are taken into account in determining Capital Accounts pursuant to Treasury Regulations Section 1.704-1(b)(2)(iv)(m) and clause (g) of the definition of Profits or Losses or Section 4.1(b)(viii); provided, however, that the Book Value of property shall not be adjusted pursuant to this clause (d) to the extent that the General Partner reasonably determines an

adjustment pursuant to clause (b) is necessary or appropriate in connection with a transaction that would otherwise result in an adjustment pursuant to this clause (d); and

(e) If the Book Value of property has been determined or adjusted pursuant to clause (a), (b) or (d) hereof, such Book Value shall thereafter be adjusted by the Depreciation taken into account with respect to such property for purposes of computing Profits and Losses, Simulated Depletion and other items allocated pursuant to Section 4.1 and Section 4.2.

“Business Day” shall mean a day other than a Saturday, Sunday or day on which commercial banks in the United States are authorized or required to be closed for business.

“Call Notice” shall have the meaning assigned to such term in Section 3.2(a).

“Capital Account” shall have the meaning assigned to such term in Section 7.1(b).

“Capital Contributions” shall mean for any Partner at the particular time in question, the aggregate of the dollar amounts of any cash contributed by such Partner to the Partnership (used by the Partnership for whatever purpose), or, if the context in which such term is used so indicates, the dollar amounts of cash agreed to be contributed, or requested to be contributed, by such Partner to the Partnership.

“Capital Interest Percentage” shall mean, at any time of determination and as to any Partner, the percentage of the total distributions that would be made to such Partner if the assets of the Partnership were sold for their respective Book Values, all liabilities of the Partnership were paid in accordance with their terms (limited in the case of non-recourse liabilities to the Book Value of the property securing such liabilities), all items of Partnership Profit, Loss, income, gain, loss and deduction were allocated to the Partners in accordance with Article IV, and the resulting net proceeds were distributed to the Partners in accordance with Article IX; provided, however, that the General Partner may determine that the Partners’ Capital Interest Percentages should be determined based upon a hypothetical sale of the assets of the Partnership for their respective Fair Market Values (instead of Book Values) in order to ensure that such percentages correspond to the Partners’ “proportionate interests in partnership capital” as defined in Treasury Regulations Section 1.613A-3(e)(2)(ii). The foregoing definition of Capital Interest Percentage is intended to result in a percentage for each Partner that corresponds with the Partner’s “proportionate interest in partnership capital” as defined in Treasury Regulations Section 1.613A-3(e)(2)(ii), and Capital Interest Percentage shall be interpreted consistently therewith.

“Carried Interest Distributions” shall have the meaning assigned to such term in Section 4.3(d).

“Cause Event” shall have the meaning assigned to such term in Section 11.4(a).

“Certificate” shall have the meaning assigned to such term in the recitals to this Agreement.

“CFIUS” shall mean the Committee on Foreign Investment in the United States or any member agency thereof acting in its capacity as a member agency.

“Clawback Amount” shall have the meaning assigned to such term in Section 9.4.

“Clawback Guaranty” shall have the meaning assigned to such term in Section 9.5.

“Code” shall mean the Internal Revenue Code of 1986, as amended from time to time, and any comparable successor statute or statutes.

“Commitment” shall mean, when used with reference to a Limited Partner, the amount set forth opposite such Limited Partner’s name on the LP Schedule.

“Commitment Period” shall mean the period of time commencing on the Initial Closing Date and ending upon the earlier to occur of (a) five years from the Final Closing Date; (b) the date when 100% of the Total Commitments have been spent or committed for expenditure (provided, that in determining whether amounts have been committed for expenditure, that portion of the Total Commitments which the General Partner reasonably believes should be held in reserve to pay liabilities and obligations of the Partnership, whether liquidated, fixed, contingent or otherwise, shall be taken into account); and (c) the expiration of the 120-day period commencing on the date of a Suspension Event (unless the Commitment Period is reinstated in accordance with Section 5.13(d)).

“Confidential Information” shall have the meaning assigned to such term in Section 7.4(a).

“Confidential Offering Memorandum” shall mean the Confidential Offering Memorandum of the Partnership, dated February 28, 2023, as amended or supplemented from time to time.

“Consent” shall mean the consent of a Person to do the act or thing for which the Consent is solicited, or the act of granting the Consent, as the context may require.

“Contribution Percentage” shall mean, with respect to any Limited Partner and any Capital Contributions called by the General Partner, a percentage equal to A divided by B, where “A” is such Limited Partner’s Investable Capital and “B” is the Investable Capital of all Limited Partners.

“Covered Audit Adjustment” shall mean an adjustment to any partnership-related item (within the meaning of Section 6241(2)(B) of the Code), to the extent such adjustment results in an “imputed underpayment” as described in Section 6225(b) of the Code or any analogous provision of state or local law.

“Covered Person” shall mean: (a) the General Partner, the Manager and their Affiliates; (b) each of the current and former shareholders, officers, directors, employees, partners, members, managers and agents of any of the General Partner, the Manager or their Affiliates; (c) each person serving, or who has served, as a member of the LPAC (and, with respect to claims or damages arising out of or relating to such service only, the Limited Partner that such person represents and each of such Limited Partner’s officers, directors, employees, partners, members, managers, agents and other representatives); (d) the Partnership Representative (solely in such Person’s capacity as Partnership Representative); and (e) any other Person designated by the General Partner as a

Covered Person who serves at the request of the General Partner on behalf of the Partnership as an officer, director, employee, partner, member, manager or agent of any other Person that is an Affiliate of the General Partner or the Partnership.

“Covered Transaction” shall have the meaning set forth in the DPA.

“Deemed Cumulative Tax Liability” shall mean the aggregate amount of hypothetical taxes payable by the General Partner and its partners (assuming for purposes of this definition that the General Partner and its partners will bear the entire tax liability for allocations of Partnership income related to Carried Interest Distributions) with respect to the allocation to or recognition by the General Partner of an amount of taxable income and gain in respect of, or resulting from, Carried Interest Distributions, or allocations corresponding thereto, including the amount of taxable income and gain that would have been recognized by the General Partner if the General Partner had immediately sold any assets to be distributed in kind as Carried Interest Distributions for an amount of cash equal to the Market Value of such assets, in each case, determined as if the General Partner were taxed at the applicable Assumed Tax Rate for each relevant taxable year.

“Default Rate” shall mean a rate per annum which is equal to the lesser of (a) a rate which is 5% above the Prime Rate or (b) the maximum rate from time to time permitted by applicable law.

“Defaulting Partner” shall have the meaning assigned to such term in Section 3.4.

“Depletable Property” shall mean each separate oil and gas property as defined in Code Section 614.

“Depreciation” shall mean, for each Allocation Period, an amount equal to the depreciation, amortization or other cost recovery deduction (excluding depletion) allowable for U.S. federal income tax purposes with respect to property for such Allocation Period, except that (a) with respect to any property the Book Value of which differs from its adjusted tax basis for U.S. federal income tax purposes and which difference is being eliminated by use of the “remedial method” pursuant to Treasury Regulations Section 1.704-3(d), Depreciation for such Allocation Period shall be the amount of book basis recovered for such Allocation Period under the rules prescribed by Treasury Regulations Section 1.704-3(d)(2), and (b) with respect to any other property the Book Value of which differs from its adjusted tax basis at the beginning of such Allocation Period, Depreciation shall be an amount which bears the same ratio to such beginning Book Value as the U.S. federal income tax depreciation, amortization, or other cost recovery deduction for such Allocation Period bears to such beginning adjusted tax basis; provided that if the adjusted tax basis of any property at the beginning of such Allocation Period is zero, Depreciation with respect to such property shall be determined with reference to such beginning value using any reasonable method selected by the General Partner.

“Dispose” (including the correlative terms **“Disposed”** or **“Disposition”**) shall mean any sale, assignment, transfer, conveyance, gift, pledge, hypothecation or other encumbrance or any other disposition, whether voluntary, involuntary or by operation of law.

“Distributable Cash” shall mean cash received by the Partnership from the sale or other Disposition of, or dividends, interest or other income from, or in respect of, a Portfolio Investment

or a temporary investment, or otherwise received by the Partnership in respect of a Portfolio Investment, other than Capital Contributions made by the Limited Partners hereunder to fund Portfolio Investments, to the extent such cash constitutes Available Assets.

“DPA” shall mean Section 721 of the Defense Production Act of 1950, as amended, including all implementing regulations thereof.

“Drawdown Date” shall mean, with respect to Capital Contributions of the Limited Partners, the date on which such Capital Contributions are due to the Partnership, or if later, the date on which such Capital Contributions are actually made to the Partnership.

“Early Closing Investor Limited Partners” shall mean Investor Limited Partners admitted to the Partnership on, or within 60 days of, the Initial Closing Date.

“Economic Risk of Loss” shall have the meaning set forth in Treasury Regulations Section 1.752-2(a).

“Electronic Transmission” shall mean a form of communication that (a) does not directly involve the physical transmission of paper, (b) creates a record that may be retained, retrieved, and reviewed by the recipient, and (c) may be directly reproduced in paper form by the recipient through an automated process.

“EnCap” shall mean EnCap Investments L.P., a Delaware limited partnership.

“EnCap Related Parties” shall mean EnCap, the Principals, the employees of EnCap, and the spouses and minor children of any Principal or employee of EnCap.

“ERISA” shall mean the Employee Retirement Income Security Act of 1974, as amended from time to time, and any successor statute or statutes.

“ERISA Partner” shall have the meaning assigned to such term in Section 11.2(a).

“ERISA Withdrawal Date” shall have the meaning assigned to such term in Section 11.2(a).

“Ethics Laws” shall have the meaning assigned to such term in Section 8.8.

“Excess Carried Interest Distributions” shall have the meaning assigned to such term in Section 9.4(a).

“Excess Organization Costs” shall have the meaning assigned to such term in Section 5.10(a).

“Excused Partner” shall have the meaning assigned to such term in Section 3.5(b).

“Existing Fund” shall mean any institutional oil and gas fund, midstream fund or energy transition fund organized by EnCap prior to the Initial Closing Date.

“Existing Investment” shall have the meaning assigned to such term in Section 3.1(b).

“Fair Market Value” shall have the meaning assigned to such term in Section 11.4(f)(v).

“FATCA” shall mean Sections 1471 through 1474 of the Code, any current or future regulations or official interpretations thereof, any agreements entered into pursuant to Section 1471(b)(1) of the Code and any fiscal or regulatory legislation, rules or practices adopted pursuant to any intergovernmental agreements entered into in connection with Sections 1471 through 1474 of the Code.

“FCC” shall have the meaning assigned to such term in Section 8.9.

“FCPA” shall mean the U.S. Foreign Corrupt Practices Act of 1977, as amended.

“Feeder Fund” shall mean a limited partnership, limited liability company or other entity formed by the General Partner to serve as a collective investment, management and voting vehicle for certain investors that may not otherwise be able to participate in the Partnership directly as a Limited Partner for legal, tax, regulatory or other similar reasons. An Alternative Investment Vehicle shall not be a Feeder Fund.

“Feeder Fund Agreement” shall mean, when used with respect to a Feeder Fund, the limited partnership agreement or other governing documents of such Feeder Fund, as amended or amended and restated from time to time.

“Feeder Fund Investor” shall mean a limited partner or similar investor in any Feeder Fund.

“Fee Payment Date” shall have the meaning assigned to such term in Section 5.11(b).

“Final Closing Date” shall mean the last date on which any party is admitted to the Partnership or any Feeder Fund as an additional Limited Partner or limited partner, as applicable.

“Fiscal Year” shall mean the fiscal year of the Partnership, which shall end on December 31 of each calendar year unless, for U.S. federal income tax purposes, another fiscal year is required or the General Partner designates another fiscal year. Unless otherwise determined by the General Partner, the Partnership shall have the same fiscal year for U.S. federal income tax purposes and for accounting purposes.

“Foreign Person” shall have the meaning set forth in the DPA.

“Foreign Person LP” shall mean any Limited Partner that is a Foreign Person.

“Freely Tradable Securities” shall mean, when used with respect to a Security, (a) the Partnership’s holding of such Security can be immediately sold by the Partnership and the Limited Partners to the general public without the necessity of any U.S. federal, state or foreign government consent, approval or filing (other than any notice filings of the type required pursuant to Rule 144(h) under the Securities Act), (b) such Security is either listed on a generally recognized U.S. or foreign securities exchange or carried on the NASDAQ National Market system or similar system (including any comparable foreign over the counter trading system) and market quotations

are readily available therefor and (c) such Security is not subject to any lockup or contractual restriction on the sale or transfer thereof.

“Future Fund” shall mean (a) any Successor Fund and (b) any other institutional oil and gas fund, midstream fund or energy transition fund organized by EnCap or its Affiliates after the date hereof.

“General Partner” shall mean EnCap Equity Fund XII GP, L.P., a Delaware limited partnership, and any Person who becomes a substituted General Partner of the Partnership pursuant to the terms hereof.

“Governmental Plan Partner” shall have the meaning assigned to such term in Section 11.2(f).

“Incapacity” or **“Incapacitated”** shall mean, as it relates to a Person, the death, adjudication of incompetence, insanity, liquidation, dissolution or termination (other than by merger or consolidation in which the Person is the surviving entity), as the case may be, of that Person.

“Initial Agreement” shall have the meaning assigned to such term in the recitals to this Agreement.

“Initial Closing Date” shall mean May 17, 2023.

“Initial Funding Date” shall mean the date selected by the General Partner after formation of the Partnership which is not less than 10 Business Days after the date on which a request for funds is submitted to the Partners pursuant to Section 3.2(a).

“Initial Investment Date” shall have the meaning assigned to such term in Section 5.11(a).

“Initial Limited Partner” shall have the meaning assigned to such term in the recitals to this Agreement.

“Initial Management Fee Period” shall have the meaning assigned to such term in Section 5.11(a).

“Initial Management Fee Rate” shall have the meaning assigned to such term in Section 5.11(a)(ii), as applicable.

“Initial Valuation Target Date” shall have the meaning assigned to such term in Section 11.4(f).

“Interest Component” shall mean the interest component described in clauses (A), (B) and (C) of the first sentence of Section 10.3(a)(iii).

“Investable Capital” shall mean, with respect to any Limited Partner, such Limited Partner’s Commitment, reduced by an amount reasonably determined by the General Partner to

create a reserve for the payment of fees and expenses borne only by Investor Limited Partners, including Management Fees.

“Investment Advisers Act” shall mean the Investment Advisers Act of 1940, as amended.

“Investment Company Act” shall mean the Investment Company Act of 1940, as amended.

“Investor Limited Partner” shall mean each Limited Partner that is not a Related Limited Partner. To the extent any portion of a Feeder Fund’s Commitment (directly or indirectly via a Blocker Corporation) is attributable to Feeder Fund Investors that would be Investor Limited Partners if they had invested directly in the Partnership, such portion of such Feeder Fund shall be considered an Investor Limited Partner hereunder in accordance with the principles set forth in Section 5.15.

“Investor LP Percentage” shall mean, with respect to any Investor Limited Partner, a percentage amount equal to A divided by B, where “A” is such Investor Limited Partner’s Commitment to the Partnership and where “B” is the aggregate amount of the Commitments of all Investor Limited Partners to the Partnership.

“Investor-Related Taxes” shall have the meaning assigned to such term in Section 4.8(a)(i).

“Key Persons” shall mean Jason M. DeLorenzo, Douglas E. Swanson, Jr. and any other person appointed as such pursuant to Section 5.13(a).

“Key Person Departure” shall have the meaning assigned to such term in Section 5.13(a).

“Key Person Event” shall have the meaning assigned to such term in Section 5.13(a).

“Later Closing Investor Limited Partners” shall mean Investor Limited Partners not admitted to the Partnership on, or within 60 days of, the Initial Closing Date.

“Limited Partners” shall mean those Persons set forth on the LP Schedule as the limited partners, including the Related Limited Partners, and any Person who becomes an additional or a substituted Limited Partner of the Partnership pursuant to the terms hereof.

“LPAC” shall have the meaning assigned to such term in Section 6.5(a).

“LP Affiliate” shall mean, with respect to any Limited Partner, any director, officer, manager, partner, member or similar person, or 5% or greater equity holder of such Limited Partner, and any Person Controlling or under common Control with such Limited Partner.

“LP Percentage” shall mean, with respect to any Limited Partner, a percentage amount equal to A divided by B, where “A” is such Limited Partner’s Commitment to the Partnership and where “B” is the Total Commitments.

“LP Schedule” shall mean the Schedule of Limited Partners and Limited Partner Commitments for the Partnership maintained by the General Partner, as amended from time to time pursuant to the terms hereof.

“Management Agreement” shall mean the Management Agreement, dated as of the Initial Closing Date, between the Manager, the Partnership and the General Partner, as amended, modified or supplemented from time to time, and any similar agreement with any successor Manager.

“Management Fee” shall have the meaning assigned to such term in Section 5.11(a).

“Management Fee Election” shall have the meaning assigned to such term in Section 5.11(a)(ii).

“Manager” shall mean EnCap or a wholly-owned subsidiary of EnCap designated by it.

“Market Value” shall mean, as of the date in question, the value of Partnership assets determined by the General Partner in good faith, subject to the following:

(a) The fair market value of any Security owned by the Partnership which is a Freely Tradable Security shall be determined as of the date in question and shall be deemed to be the average of the last reported sales prices for the Security for the five consecutive Trading Days (as defined below) immediately before and inclusive of the date in question and the five consecutive Trading Days immediately after the date in question. The last reported sales price for each day shall be (i) the last reported sale price of such Security on such date on the exchange where it is primarily traded, or (ii) if such Security is not traded on an exchange, the last reported sale price on the NASDAQ National Market system or any similar system of automated dissemination of quotations of securities prices, or (iii) if such Security is not reported on the NASDAQ National Market system or any similar system of automated dissemination of quotations of securities prices, the closing bid price (or average of bid prices) last quoted as reported by an established quotation service for over-the-counter securities.

(b) The determination of the fair market value of all assets of the Partnership other than Freely Tradable Securities shall be based upon all relevant factors, including such of the following factors as may be relevant: current financial position and current and historical operating results of the subject Portfolio Company; the current engineering value of the assets of the subject Portfolio Company; sales prices of recent public or private transactions in the same or similar securities, including transactions on any securities exchange on which such securities are listed or in the over-the-counter market; general level of interest rates; recent trading volume of the Securities; restrictions on transfer, including the Partnership’s right, if any, to require registration by the issuer of the offering and sale of Securities held by the Partnership under the securities laws; significant recent events affecting the subject Portfolio Company, including pending mergers, acquisitions and sales of securities; the price paid by the Partnership to acquire the asset; the percentage of the issuer’s outstanding securities that is owned by the Partnership; and all other reasonable and customary factors affecting value. In making any such determination of the fair market value of the assets of the Partnership, no allowance of any kind shall be made for goodwill

of the Partnership or the name of the Partnership, the Partnership's office records, files and statistical data, or any other intangible assets of the Partnership.

As used in this definition, the term **"Trading Days"** shall mean (x) if the Security is listed or admitted for trading on any generally recognized United States securities exchange, days on which such securities exchange is open for business and (y) if the Security is quoted on the NASDAQ National Market system or any similar system of automated dissemination of quotations of securities prices, days on which trades may be made on such system.

"Material Adverse Effect" shall mean (a) a violation of a statute, rule, or regulation of a U.S. federal or state or non-U.S. governmental authority applicable to a Partner that is reasonably likely to have an adverse effect on an investment or on the Partnership, the General Partner, the Manager or any of their respective Affiliates or on any Partner or any Affiliate of any such Partner or, with respect to a Plan Partner, the sponsor of such Plan Partner or any of such sponsor's Affiliates, (b) an occurrence that is reasonably likely to subject a Portfolio Company or any Affiliate thereof or the Partnership, the General Partner, the Manager or any of their respective Affiliates or any Partner or any Affiliate of any such Partner or, with respect to a Plan Partner, the sponsor of such Plan Partner or any of such sponsor's Affiliates, to any material regulatory requirement to which it would not otherwise be subject, or that is reasonably likely to materially increase any such regulatory requirement beyond what it would otherwise have been, (c) an occurrence that is reasonably likely to require the Partnership to register as an investment company under the Investment Company Act, (d) an occurrence that is likely to result in a termination of the Partnership's status as a partnership for tax purposes, (e) an occurrence that is likely to cause the Partnership to be deemed a "publicly traded partnership" as such term is defined in Code Section 7704(b), (f) an occurrence that is reasonably likely to result in any Securities or other assets owned by the Partnership being deemed to be "plan assets" under ERISA or that is reasonably likely to result in a "prohibited transaction" under ERISA, or (g) an occurrence that is reasonably likely to give rise to a material violation of law.

"Material Nonpublic Technical Information" shall have the meaning set forth in the DPA.

"Media Company" shall have the meaning assigned to such term in Section 8.9.

"Minimum Gain" shall have the meaning assigned to "partnership minimum gain" in Treasury Regulations Sections 1.704-2(b)(2) and 1.704-2(d).

"Non-Foreign Person LP" shall mean any Limited Partner that is not a Foreign Person.

"Nonrecourse Deduction" shall have the meaning assigned to that term in Treasury Regulations Section 1.704-2(b)(1).

"Operating Costs" shall mean all reasonable, out-of-pocket fees, costs and expenses incurred by the Partnership, a Feeder Fund, the General Partner, the Manager or an Affiliate thereof on behalf of the Partnership relating to the management, conduct and operation of Partnership and Feeder Fund business, including (a) fees, costs and expenses associated with the preparation of the Partnership's financial statements and the reports and other information and the distribution of the same to investors pursuant to Section 7.2 and elsewhere in this Agreement, tax returns and Forms

K-1; (b) communication expenses, including printing and mailing and courier expenses, as well as a reasonably allocable portion of the cost of any software or online data portal utilized in connection therewith or with reporting; (c) fees, costs and expenses of establishing bank or custodial accounts; (d) insurance costs and expenses (including a reasonably allocable portion of premium or expenses for professional liability insurance coverage for the Partnership, including the LPAC, the General Partner, the Manager and the managers, members and partners of the General Partner and the Manager); (e) fees, costs and expenses incurred in connection with researching, sourcing, investigating, structuring, negotiating, acquiring, holding, restructuring, selling, Disposing or exchanging of Portfolio Investments (including fees and expenses of lawyers, accountants, consultants, brokerage or finder's fees, investment banker's fees, commitment fees, underwriting discounts or sales fees, and travel expenses (which may include hotel expenses and meal expenses) but excluding entertainment expenses, which entertainment expenses shall be borne by the General Partner or one of its Affiliates and not the Partnership); (f) fees, costs and expenses of the type described in clause (e) above incurred in connection with potential or proposed but unconsummated transactions (including fees, costs and expenses that would have been allocable to co-investors had such proposed transaction been consummated, if the amount allocable to such co-investors is not paid by such parties); (g) fees, costs and expenses of depository, custodial, trustee, paying agent, record-keeping and administrative services (including those incurred in connection with the preparation and circulation of Call Notices and distribution notices); (h) legal, audit and other expenses incurred in connection with the registration of the offer and sale of Securities owned by the Partnership under the Securities Act, and any applicable state or foreign securities laws, and the filing of any statement, form or report by the Partnership in connection with its status as a venture capital fund or other private fund under the Investment Advisers Act; (i) the costs and other amounts attributable to the Partnership's obligations under Section 5.8, (j) the costs and expenses attributable to the LPAC and the conduct of its meetings or attributable to the annual meetings of the Partners as provided in Section 12.3; (k) any taxes, fees or other governmental charges imposed on or assessed against the Partnership other than Investor-Related Taxes withheld from distributions made to or paid by a Partner pursuant to Section 4.8; (l) fees and expenses incurred by the Partnership Representative or in connection with any tax filing, audit, investigation, settlement or review of the Partnership; (m) fees, costs and expenses in connection with legal or regulatory compliance (including tax compliance and reporting with U.S. federal, state, local, non-U.S. or other laws and regulations relating to the Partnership's activities); (n) fees, costs and expenses relating to a Defaulting Partner; (o) fees, costs and expenses incurred in connection with the purchase, sale, assignment, pledge or transfer of a Limited Partner's interest in the Partnership or the withdrawal of a Limited Partner (except to the extent allocable to or payable by, and actually borne and paid by, the applicable purchaser or Limited Partner, assignee, pledgee, or transferee, as applicable); (p) fees, costs and expenses incurred in connection with winding up and liquidating the Partnership or any investment vehicle formed by or for the benefit of the Partnership, including the costs and expenses of preserving and maintaining documents or other records required to be retained for tax or other legal or regulatory reasons; (q) fees, costs and expenses incurred in connection with winding up and liquidating a Portfolio Company and subsidiaries or other Affiliates thereof, including the costs and expenses of preserving and maintaining documents or other records required to be retained for tax or other legal or regulatory reasons; (r) fees, costs and expenses incurred in connection with administering or complying with any Side Letter; (s) fees, costs and expenses incurred in connection with the collection of any amounts due to the Partnership from any Person; (t) fees, costs and expenses incurred in

connection with any restructuring or amendments to the constituent documents of the Partnership and related entities; (u) fees, costs and expenses relating to anti-money laundering or “know your customer” compliance, tax diligence expenses or related matters; (v) expenses incurred in connection with any Subscription Facility; and (w) other extraordinary, nonrecurring expenses, including the costs and expenses of prosecuting or defending a litigation claim; provided, however, that Operating Costs shall not include any of the following costs and expenses of the Manager or any of its Affiliates (which costs and expenses shall be borne by the Manager or such Affiliates for its or their own accounts): (i) the salaries, wages and employee benefits of all officers, directors, and employees of the Manager or an Affiliate thereof, (ii) office rent, utility charges and equipment and furniture costs and expenses, (iii) any other general, administrative and overhead expense, and (iv) any expenses associated with registering or reporting as an investment adviser by the Manager or EnCap under the Investment Advisers Act, or any similar law.

“Organization Costs” shall mean all reasonable out-of-pocket fees, costs and expenses associated with the formation of the Partnership, each Feeder Fund and their related entities and the offering and sale of limited partnership interests therein incurred by the General Partner, the Manager or an Affiliate thereof, including all legal, accounting, printing, mailing and courier fees and expenses, filing fees, and most favored nations elections, travel (which may include hotel expenses and meal expenses) and other start-up costs and expenses. For purposes of the foregoing, Organization Costs shall not include any Placement Fees.

“Ownership Group Member” shall have the meaning assigned to such term in Section 5.2(d)(xi).

“Partner Nonrecourse Debt” shall have the meaning assigned to that term in Treasury Regulations Section 1.704-2(b)(4).

“Partner Nonrecourse Debt Minimum Gain” shall have the meaning assigned to that term in Treasury Regulations Section 1.704-2(i)(2).

“Partner Nonrecourse Deductions” shall have the meaning assigned to that term in Treasury Regulations Section 1.704-2(i)(1).

“Partners” shall mean the General Partner and the Limited Partners.

“Partnership” shall have the meaning assigned to such term in the preamble to this Agreement.

“Partnership-Level Taxes” shall mean any federal, state, or local taxes, additions to tax, penalties, and interest payable by the Partnership or any subsidiary thereof as a result of any examination of the Partnership’s or any such subsidiary’s affairs by any federal, state, or local tax authorities, including resulting administrative and judicial proceedings under the Bipartisan Budget Act.

“Partnership Removal Date Amount” shall have the meaning assigned to such term in Section 11.4(e)(ii).

“Partnership Representative” shall have the meaning assigned to that term in Section 6223(a) of the Code and includes any “designated individual”, if applicable, as defined in the Treasury Regulations promulgated thereunder (including, in each case, any similar capacity or role under relevant state or local law).

“Placement Fees” shall mean the fees and costs associated with any placement agent engaged by the Partnership, the General Partner, the Manager or any of their Affiliates in connection with the formation of the Partnership.

“Plan Assets Regulation” shall mean United States Department of Labor Regulation Section 2510.3-101, as modified by Section 3(42) of ERISA.

“Plan Partner” shall mean any Limited Partner which is (a) an employee benefit plan (as defined in Section 3(3) of ERISA), whether or not it is subject to the provisions of Title I of ERISA, (b) a plan described in Section 4975(e)(1) of the Code, or (c) an entity whose underlying assets include plan assets (within the meaning of Section 3(42) of ERISA and any applicable regulations promulgated thereunder).

“Portfolio Company” shall mean a corporation, partnership, limited liability company or other entity in which, or with respect to which, the Partnership has, directly or indirectly, purchased Securities or otherwise made an investment in hereunder.

“Portfolio Investment” shall mean an investment by the Partnership, directly or indirectly, including investments in a Portfolio Company.

“Post-Term Return” shall have the meaning assigned to such term in Section 9.4.

“Preferred Return” shall have the meaning assigned to such term in Section 4.3(b).

“Preferred Return Shortfall” shall have the meaning assigned to such term in Section 9.4(b).

“Primary Investment Period” shall mean the period commencing on the Initial Closing Date and expiring upon the earliest to occur of (a) five years from the Final Closing Date, (b) the date on which 75% of the Total Commitments have been expended or committed for expenditure (provided, that in determining whether amounts have been expended or committed for expenditure, that portion of the Total Commitments which the General Partner reasonably believes should be held in reserve to pay liabilities and obligations of the Partnership, whether liquidated, fixed, contingent or otherwise, shall be taken into account), and (c) the expiration of the 120-day period commencing on the date of a Suspension Event (unless the Commitment Period is reinstated in accordance with Section 5.13(d)).

“Prime Plus Rate” shall mean a rate per annum which is equal to the lesser of (a) a rate which is 2% above the prime rate of interest of Bank of America, N.A., or its successor, as announced or published by such bank from time to time (adjusted from time to time to reflect any changes in such rate determined hereunder) or (b) the maximum rate from time to time permitted by applicable law.

“Prime Rate” shall mean a rate per annum which is equal to the lesser of (a) the prime rate of interest of Bank of America, N.A., or its successor, as announced or published by such bank from time to time (adjusted from time to time to reflect any changes in such rate determined hereunder) or (b) the maximum rate from time to time permitted by applicable law.

“Principal Investment Focus” shall have the meaning assigned to such term in Section 1.3.

“Principals” shall mean Jason M. DeLorenzo, Douglas E. Swanson, Jr., Kyle M. Kafka, Brad A. Thielemann, Charles Bauer, David B. Miller, Gary R. Petersen, D. Martin Phillips and Robert L. Zorich.

“Profits” or **“Losses”** shall mean, for each Allocation Period, an amount equal to the Partnership’s taxable income or loss for such period, determined in accordance with Code Section 703(a) (for this purpose, all items of income, gain, loss, or deduction required to be stated separately pursuant to Code Section 703(a)(1) shall be included in taxable income or loss), with the following adjustments (without duplication):

(a) Any income of the Partnership that is exempt from U.S. federal income tax and not otherwise taken into account in computing Profits and Losses pursuant to this definition of “Profits” or “Losses” shall be added to such taxable income or loss;

(b) Any expenditures of the Partnership described in Code Section 705(a)(2)(B) or treated as Code Section 705(a)(2)(B) expenditures pursuant to Treasury Regulations Section 1.704-1(b)(2)(iv)(i), and not otherwise taken into account in computing Profits or Losses pursuant to this definition of “Profits” or “Losses” shall be subtracted from such taxable income or loss;

(c) In the event the Book Value of any asset is adjusted pursuant to clause (b) or clause (c) of the definition of Book Value, the amount of such adjustment shall be treated as an item of gain (if the adjustment increases the Book Value of the asset) or an item of loss (if the adjustment decreases the Book Value of the asset) from the Disposition of such asset and shall, except to the extent allocated pursuant to Section 4.1(b), be taken into account for purposes of computing Profits or Losses;

(d) Gain or loss resulting from any Disposition of property (other than Depletable Property) with respect to which gain or loss is recognized for U.S. federal income tax purposes shall be computed by reference to the Book Value of the property Disposed of, notwithstanding that the adjusted tax basis of such property differs from its Book Value;

(e) Gain resulting from any disposition of a Depletable Property with respect to which gain is recognized for U.S. federal income tax purposes shall be treated as being equal to the corresponding Simulated Gain;

(f) In lieu of the depreciation, amortization, and other cost recovery deductions taken into account in computing such taxable income or loss, there shall be taken into account Depreciation;

(g) To the extent an adjustment to the adjusted tax basis of any asset pursuant to Code Section 734(b) is required, pursuant to Treasury Regulations Section 1.704-1(b)(2)(iv)(m)(4), to be taken into account in determining Capital Account balances as a result of a distribution other than in liquidation of a Partner's interest in the Partnership, the amount of such adjustment shall be treated as an item of gain (if the adjustment increases the basis of the asset) or an item of loss (if the adjustment decreases such basis) from the Disposition of such asset and shall be taken into account for purposes of computing Profits or Losses; and

(h) any item that is allocated pursuant to Section 4.1(b) shall not be taken into account in computing Profits and Losses, but the amounts of the items of income, gain, loss or deduction available to be specially allocated pursuant to Section 4.1(b) shall be determined by applying rules analogous to those set forth in clauses (a) through (g) above.

"Prospective Portfolio Company" shall have the meaning assigned to such term in Section 1.8.

"Prospective Portfolio Company Costs" shall have the meaning assigned to such term in Section 1.8.

"Prospective Portfolio Company Interest" shall have the meaning assigned to such term in Section 1.8.

"Qualified Appraiser" shall have the meaning assigned to such term in Section 11.4(f)(iv).

"Regulatory Information" shall have the meaning assigned to such term in Section 8.6(e).

"Reinvestable Amount" shall mean, with respect to any Limited Partner, the amount of Distributable Cash apportioned to such Limited Partner that constitutes or, if not distributed, would have constituted a return of Capital Contributions to such Limited Partner pursuant to Section 4.3(a), in the case of Investor Limited Partners, or Section 4.3, in the case of Related Limited Partners.

"Related Limited Partners" shall mean Limited Partners that are Affiliates of the General Partner or the Manager (except under the circumstances contemplated by Section 11.4(e) or Section 11.4(g) or the equivalent section, if any, of the applicable partnership agreement of the applicable Feeder Fund), and each, individually, a **"Related Limited Partner"**. To the extent any portion of a Feeder Fund's Commitment (directly or indirectly via a Blocker Corporation) is attributable to Feeder Fund Investors that would be Related Limited Partners if they had invested directly in the Partnership, such portion of such Feeder Fund shall be considered a Related Limited Partner hereunder in accordance with the principles set forth in Section 5.15.

"Removal Date" shall have the meaning assigned to such term in Section 11.4(c).

"Removal Date Amount" shall have the meaning assigned to such term in Section 11.4(e)(ii).

“Removal Date Investments” shall have the meaning assigned to such term in Section 11.4(e)(ii).

“Removed GP” shall have the meaning assigned to such term in Section 11.4(d).

“Replacement GP” shall have the meaning assigned to such term in Section 11.4(d)(i).

“Securities” shall mean equity securities or debt securities, including debt securities purchased in conjunction with or convertible into equity securities or some combination of equity or debt securities, an investment in capital stock, common stock, preferred stock, convertible securities, warrants, rights, options, puts, calls, partnership (general or limited) or joint venture interests, or member or limited liability company interests.

“Securities Act” shall mean the Securities Act of 1933, as amended.

“Senior Advisors” shall mean David B. Miller, Gary R. Petersen, D. Martin Phillips and Robert L. Zorich.

“Short-Term Non-Portfolio Investment Income” shall mean any short-term interest or other similar income of the Partnership attributable to Capital Contributions made by the Partners to the Partnership for the purpose of funding an investment by the Partnership in a Portfolio Company pursuant to the terms hereof, but shall specifically exclude any short-term interest or other similar income of the Partnership attributable to (a) any of such Capital Contributions which have been held by the Partnership in excess of 45 days, (b) any investments actually made by the Partnership, or (c) any cash funds of the Partnership derived from any return on, or the sale or other Disposition by the Partnership of, a Portfolio Investment pending the distribution of such funds to the Partners under the terms hereof.

“Side Letter” shall have the meaning assigned to such term in Section 13.9.

“Simulated Basis” shall mean the Book Value of any Depletable Property. The Simulated Basis of each Depletable Property shall be allocated to each Partner in accordance with such Partner’s Capital Interest Percentage as of the time such Depletable Property is acquired by the Partnership (and any additions to such Simulated Basis resulting from expenditures required to be capitalized in such Simulated Basis shall be allocated among the Partners in a manner designed to cause the Partners’ proportionate shares of such Simulated Basis to be in accordance with their Capital Interest Percentages as determined at the time of any such additions), and shall be reallocated among the Partners in accordance with the Partners’ Capital Interest Percentages as determined immediately following the occurrence of an event giving rise to an adjustment to the Book Values of the Partnership’s Depletable Properties pursuant to clause (b) of the definition of Book Value.

“Simulated Depletion” shall mean, with respect to each Depletable Property, a depletion allowance computed in accordance with U.S. federal income tax principles (as if the Simulated Basis of the property were its adjusted tax basis) and in the manner specified in Treasury Regulations Section 1.704-1(b)(2)(iv)(k)(2). For purposes of computing Simulated Depletion with respect to any Depletable Property, the Simulated Basis of such property shall be deemed to be the

Book Value of such property, and in no event shall such allowance, in the aggregate, exceed such Simulated Basis.

“Simulated Gain” shall mean the amount of gain realized from the sale or other disposition of Depletable Property as calculated in Treasury Regulations Section 1.704-1(b)(2)(iv)(k)(2).

“Simulated Loss” shall mean the amount of loss realized from the sale or other disposition of Depletable Property as calculated in Treasury Regulations Section 1.704-1(b)(2)(iv)(k)(2).

“Subscription Agreement” shall have the meaning assigned to such term in Section 13.3.

“Subscription Facility” shall have the meaning assigned to such term in Section 5.3.

“Subsequent Closing” shall mean a closing (or closings) after the Initial Closing Date and prior to the expiration of the Additional Subscription Period for the purpose of accepting additional Commitments to the Partnership or additional capital commitments to a Feeder Fund.

“Subsequent Management Fee Period” shall have the meaning assigned to such term in Section 5.11(a).

“Subsequent Management Fee Rate” shall have the meaning assigned to such term in Section 5.11(a)(ii), as applicable.

“Substitute Partner” shall have the meaning assigned to such term in Section 10.1(d).

“Successor Fund” shall have the meaning assigned to such term in Section 5.6(b).

“Suspension Event” shall have the meaning assigned to such term in Section 5.13(b).

“Suspension Event Period” shall have the meaning assigned to such term in Section 5.13(a).

“Total Commitments” shall mean the sum of the Limited Partners’ Commitments.

“Treasury Regulations” shall mean final or temporary regulations promulgated by the United States Treasury Department under the Code.

“Unpaid Commitment” shall mean, with respect to any Partner at a given point in time, $A \text{ minus } B$, where “A” is equal to such Partner’s Commitment, and where “B” is equal to the aggregate Capital Contributions previously made to the Partnership by such Partner hereunder, subject to adjustment pursuant to Section 3.3 or other applicable provisions of this Agreement.

Section 2.2 References and Construction.

(a) All references in this Agreement to articles, sections, subsections and other subdivisions refer to corresponding articles, sections, subsections and other subdivisions of this Agreement unless expressly provided otherwise.

(b) Titles appearing at the beginning of any of such subdivisions are for convenience only and shall not constitute part of such subdivisions and shall be disregarded in construing the language contained in such subdivisions.

(c) The words “this Agreement”, “this instrument”, “herein”, “hereof”, “hereby”, “hereunder” and words of similar import refer to this Agreement as a whole and not to any particular subdivision unless expressly so limited.

(d) Words in the singular form shall be construed to include the plural and *vice versa*, unless the context otherwise requires. Pronouns in masculine, feminine and neuter genders shall be construed to include any other gender.

(e) Examples shall not be construed to limit, expressly or by implication, the matters they illustrate.

(f) The word “includes” and its derivatives means “includes, but is not limited to” and corresponding derivative expressions.

(g) All references herein to “\$” or “dollars” shall refer to United States Dollars.

ARTICLE III - CAPITALIZATION

Section 3.1 Capital Contributions of Partners.

(a) Each Partner agrees to make cash Capital Contributions to the Partnership at the times and in the manner provided for herein; provided, however, that in no event shall any Partner be required to pay a Capital Contribution in excess of such Partner’s Unpaid Commitment determined at such time and in accordance with the terms of this Agreement.

(b) Capital Contributions shall only be called by the General Partner and used by the Partnership for the purposes contemplated hereunder (including paying Prospective Portfolio Company Costs, funding Portfolio Investments and paying Organization Costs, Management Fees and Operating Costs). Pending application for the foregoing purposes, Capital Contributions shall be invested by the Partnership in short term investments as provided in Section 7.3. After the expiration of the Commitment Period, Capital Contributions cannot be called by the General Partner (and the Limited Partners shall have no obligation to make Capital Contributions to the Partnership) to fund Portfolio Investments, except (i) for a period of 12 months following the expiration of the Commitment Period, for any new Portfolio Investment as to which, prior to the expiration of the Commitment Period, the Partnership and the party with whom the investment is to be made have signed a letter of intent (or other similar instrument) or definitive agreement with respect thereto, and (ii) for any follow-on investment in any Portfolio Investment existing at the end of the Commitment Period or made thereafter pursuant to the foregoing clause (i) (each permitted investment referred to in clause (i) or (ii), an “**Existing Investment**”). If the General Partner determines that a portion of the Unpaid Commitments reserved by the Partnership to fund an Existing Investment may not be used, the General Partner may, in its discretion, reallocate such amount to another Existing Investment (and may call for Capital Contributions in respect thereof).

Section 3.2 Payment of Capital Contributions.

(a) In connection with the payment by the Limited Partners of Capital Contributions other than those set forth in Section 10.3, each Limited Partner (exclusive of an Excused Partner under the circumstances provided in Section 3.5) shall pay to the Partnership such Limited Partner's portion, as set forth in a written notice from the General Partner (a "**Call Notice**"), of such Capital Contribution. In connection with any such Call Notice, the amount of each Limited Partner's Capital Contribution (as may be adjusted pursuant to Section 3.4) shall equal (x) with respect to any portion thereof intended for Operating Costs and Organization Costs, the amount calculated pursuant to Section 5.10(c), (y) with respect to any portion thereof intended for Management Fees, the amount calculated pursuant to Section 5.11(a), and (z) with respect to any portion thereof intended for any Portfolio Investment, the product of A and B, where "A" is the aggregate amount of Capital Contributions being requested of the Limited Partners by the General Partner, and where "B" is such Limited Partner's Contribution Percentage. In no event shall any Limited Partner be required to make a Capital Contribution to the Partnership pursuant to a Call Notice which exceeds such Limited Partner's Unpaid Commitment. Each Call Notice shall be submitted by the General Partner to the Limited Partners at least 10 Business Days prior to the date specified in clause (ii) below and shall set forth therein (i) the name of the Partnership, (ii) the date by which the Capital Contributions being called for are due and payable, (iii) the total amount of the Capital Contributions being called from all Limited Partners, (iv) the Capital Contribution to be made by the Limited Partner to which the Call Notice is directed, the current aggregate Capital Contributions that have been made through the date of the Call Notice by the Limited Partner to which the Call Notice is directed and the amount, as of the date of the Call Notice, of the Unpaid Commitment of the Limited Partner to which the Call Notice is directed, (v) the Partnership account to which such Capital Contribution is to be paid, including wiring information, (vi) the purpose and use for which such Capital Contribution is to be made (including that portion to be used to pay Management Fees or other Partnership expenses) both on an aggregate basis and for the Limited Partner to which the Call Notice is directed and (vii) in the event such Capital Contribution will be used to make an investment in a Portfolio Company, a brief description of the identity, nature and business of such Portfolio Company and, if an Existing Fund or a Future Fund will also invest in such Portfolio Company, a statement as to the allocation between the Partnership and such Existing Fund or Future Fund, except that the General Partner may exclude the specific identity of the Portfolio Company (but not the description of the nature and business of such Portfolio Company) if the General Partner determines in good faith that notifying the Limited Partners of such identity would risk jeopardizing the investment in the Portfolio Company. Each Call Notice must be signed by an authorized officer of the General Partner or come from an authorized email account. The General Partner shall provide to the Limited Partners a list of authorized signatories and specimen signatures and authorized email addresses and shall update such list to reflect any changes as necessary.

(b) All Capital Contributions to the Partnership by the Limited Partners shall be made by wire transfer of immediately available funds to the account designated by the General Partner in the subject Call Notice.

(c) Payments of any Interest Component as contemplated in Section 10.3(a) by any party becoming an additional Limited Partner pursuant to Section 10.3 shall not be considered to

be the payment by such Limited Partner of any portion of its Commitment and shall not reduce such Limited Partner's Unpaid Commitment.

(d) If the Limited Partners who are "benefit plan investors" (within the meaning of Section 3(42) of ERISA) in the aggregate hold, or are reasonably expected to hold, 25% or more of the total value of any class of equity interests in the Partnership (as determined in accordance with Section 3(42) of ERISA), then an ERISA Partner shall not be required to contribute capital to the Partnership until such ERISA Partner has received the opinion of counsel provided for in Section 8.6(b), unless such Capital Contribution will be held in an escrow account, established by the General Partner, that is intended to comply with the requirements set forth in U.S. Department of Labor Advisory Opinion 95-04A.

Section 3.3 Restrictions on Reinvestment of Capital; Temporary Returns of Contributed Capital.

(a) The Partnership may reinvest Reinvestable Amounts in Portfolio Investments, subject to the following limitations. Without the prior approval of the LPAC, the aggregate amount reinvested shall not exceed 50% of Total Commitments. After the expiration of the Commitment Period, no such reinvestment shall be made that would not be permitted to be made with Capital Contributions pursuant to Section 3.1(b). In the event any Reinvestable Amounts are not distributed by the Partnership and are reinvested pursuant to this Section 3.3(a), the General Partner shall promptly notify the Limited Partners of such reinvestment and provide them with the same information as would be set forth in a Call Notice if the reinvested amount had been called as a Capital Contribution pursuant to Section 3.2(a). If and to the extent any Reinvestable Amounts are distributed by the Partnership, each Limited Partner's Unpaid Commitment shall be increased, on a dollar-for-dollar basis, by the amount of such distribution and subject to recall as provided in Section 3.1 and 3.2. To the extent the General Partner determines appropriate, the General Partner may treat amounts reinvested as deemed to have been distributed to and recontributed by the Limited Partners.

(b) If (i) the Limited Partners make Capital Contributions to the Partnership, which Capital Contributions have been requested hereunder for the purpose of the Partnership making an investment and (ii) the investment is either not consummated by the Partnership or such Capital Contributions are in excess of the amount needed by the Partnership to consummate such investment, the Partnership shall return by distribution to the Limited Partners such Capital Contributions or that portion thereof in excess of the amount needed to consummate the investment within 75 days of the due date for such Capital Contribution. Each Limited Partner's Unpaid Commitment shall be increased, on a dollar-for-dollar basis, by the amount of such distribution and subject to call as provided in Section 3.1 and Section 3.2.

(c) If a distribution or a return of Capital Contributions to the Limited Partners is subject to recall in accordance with the terms of Section 3.3(a) or Section 3.3(b), as applicable, the General Partner shall provide notice to that effect to the Limited Partners contemporaneously with such distribution or return of Capital Contributions.

Section 3.4 Non-Payment of Capital Contributions. In the event any Limited Partner fails to pay the full amount of a Capital Contribution called for under Section 3.2 on the date on

which such Capital Contribution is due and such default is not cured within 10 days after written and telephonic notice thereof given by the General Partner to such Limited Partner (a “**Defaulting Partner**”), the following provisions shall apply:

(a) Whenever the vote or Consent of the Defaulting Partner would otherwise be required or permitted under this Agreement, the Defaulting Partner shall not be entitled to participate in such vote or Consent, and such vote or Consent shall be calculated as if such Defaulting Partner were not a Partner.

(b) The General Partner may commence legal proceedings against the Defaulting Partner to collect the due and unpaid amount of Capital Contributions, together with interest thereon for the account of the Partnership from the date due at the Default Rate, plus the costs and expenses of collection (including reasonable attorneys’ fees and expenses).

(c) The General Partner may, but shall not be obligated to, advance all or a portion of the Defaulting Partner’s unpaid Capital Contribution to the Partnership on behalf of the Defaulting Partner, and such advance shall be repaid by the Defaulting Partner to the General Partner with interest for the account of the General Partner on the amount outstanding from time to time commencing on the date of the advance at the Default Rate. To the extent the General Partner advances funds to the Partnership on behalf of a Defaulting Partner, all Partnership distributions that would otherwise be made to the Defaulting Partner shall be paid to the General Partner (with any such amounts being applied first against accrued but unpaid interest and then against principal) until all amounts payable by the Defaulting Partner to the General Partner under this subsection (c) (including interest) have been paid in full.

(d) The General Partner may elect, upon notice to the Defaulting Partner, to reduce the Defaulting Partner’s (i) Capital Account balance by an amount equal to 50% of the respective amount existing as of the date of the default and (ii) Unpaid Commitment to zero. Thereupon, the Defaulting Partner shall not be obligated to make any further Capital Contributions, the LP Percentage and Contribution Percentage of such Defaulting Partner and of each other Partner shall be redetermined as of the date of such default to reflect the new Commitment of the Defaulting Partner, and the General Partner shall revise the LP Schedule to reflect the reduction of the Commitment of the Defaulting Partner. The Partners agree (i) that the damages suffered by the Partnership as the result of a failure by a Partner to pay a Capital Contribution to the Partnership that is required by this Agreement cannot be estimated with reasonable accuracy, (ii) that the foregoing provisions of this Section 3.4(d) shall act as liquidated damages for the default by the Defaulting Partner (which each Partner hereby agrees are reasonable), and (iii) that the provisions of this Section 3.4 are also agreed upon by the Partners in reliance on Section 17-502(c) of the Act.

(e) The General Partner may offer to all the non-defaulting Partners, pro rata in proportion to their Commitments, the option of purchasing the Defaulting Partner’s limited partnership interest in the Partnership on such terms as the General Partner determines, in its sole discretion, represent the reasonable fair market value of such interest, but in no event less than the purchaser’s agreement to assume the Defaulting Partner’s obligation to pay the unpaid Capital Contribution plus that portion of the Defaulting Partner’s Commitment then remaining.

(f) At the election of the General Partner, distributions of the Partnership that would otherwise be payable to the Defaulting Partner hereunder shall not be paid to the Defaulting Partner, but instead shall be applied against the amount of the unpaid Capital Contribution (plus interest at the Default Rate and related costs). Any amounts so applied shall be deemed to have been distributed to the Defaulting Partner for purposes of Section 4.3 and the calculations contemplated thereby.

(g) The General Partner may, but shall not be obligated to, send an amended or new Call Notice to the Partners other than the Defaulting Partner in an amount equal to the unpaid amount of the Defaulting Partner's Capital Contribution previously requested by the General Partner and otherwise in accordance with Section 3.2; provided, however, that no Limited Partner shall be obligated to make a Capital Contribution for investment in any one Portfolio Company in an amount outstanding at any time in excess of 20% of such Limited Partner's Commitment without such Limited Partner's consent.

(h) No right, power, or remedy conferred upon the Partnership or the General Partner under this Section 3.4 shall be exclusive, and each such right, power, or remedy shall be cumulative and in addition to every other right, power, or remedy, whether conferred under this Section 3.4 or now or hereafter available at law or in equity or by statute or otherwise. While the General Partner shall have the discretion to select and pursue one or more of the remedies or rights set forth in this Section 3.4 with respect to a Defaulting Partner, such discretion shall not, without the approval of the LPAC, extend to an election on the part of the General Partner to either waive all remedies or not pursue any remedy against a Defaulting Partner. The Defaulting Partner shall be liable for the costs and expenses (including reasonable attorneys' fees and expenses) incurred by the Partnership or the General Partner in enforcing any of the remedies or rights set forth in this Section 3.4. Each Partner acknowledges by its execution of this Agreement that it has been admitted to the Partnership in reliance upon its agreement that the Partnership and the General Partner may have and exercise any and all rights, powers and remedies provided for in this Section 3.4 or otherwise available at law or in equity or by statute or otherwise, and furthermore specifically agrees that the General Partner shall have the right and power to take such other action as it in its sole discretion may deem reasonably necessary or advisable to protect the interests of the Partnership and the other Partners upon a Limited Partner's default.

(i) The General Partner shall not call capital from any non-Defaulting Partner for the payment of any Management Fees attributable to a Defaulting Partner.

(j) The General Partner shall give prompt written notice to the LPAC if any Related Limited Partner or any Limited Partner that has a Commitment of \$25,000,000 or more becomes a Defaulting Partner under this Section 3.4 and of the remedies the General Partner will pursue under this Section 3.4 in respect of such Limited Partner.

Section 3.5 Excuse and Exclusion.

(a) A Limited Partner shall be excused from making a Capital Contribution to the Partnership, in each case in respect of a particular Portfolio Investment, if the following conditions are met:

(i) (A) such Limited Partner reasonably determines that the making of such investment as described in the relevant Call Notice (and such Limited Partner's making a Capital Contribution in respect of such investment) is reasonably likely to have a material adverse effect on such Limited Partner or will violate a written policy of such Limited Partner prohibiting its participation in certain investments (which policy such Limited Partner notified the General Partner of on or before the closing on which such Limited Partner was admitted to the Partnership) or (B) the General Partner reasonably determines that such Limited Partner's making a Capital Contribution in respect of such investment is reasonably likely to have a Material Adverse Effect on the Partnership or that the participation of such Limited Partner in such investment would prevent the Partnership from being able to consummate such investment or would otherwise result in a material delay or a material increase in the risk or difficulty to the Partnership of consummating such investment or impose any material filing, tax, regulatory or other burden to which the Partnership, a Portfolio Company or any Partner or its Affiliates would not otherwise be subject;

(ii) in the case of a determination by a Limited Partner pursuant to Section 3.5(a)(i)(A), such Limited Partner shall notify the General Partner in writing no later than five Business Days after delivery of the relevant Call Notice (or such later date as the General Partner may determine) of its intention to avail itself of the provisions of this Section 3.5(a), and shall deliver to the General Partner (A) in the case of a material adverse effect on such Limited Partner, an opinion of counsel, which opinion of counsel shall be reasonably satisfactory to the General Partner, to the effect of Section 3.5(a)(i)(A) (other than as to materiality), (B) in the case of a violation of written policy, an officer's certificate representing that the making of such investment will violate a written policy of such Limited Partner prohibiting its participation in certain investments, and (C) such other information concerning the circumstances giving rise to the excuse as the General Partner may reasonably request; and

(iii) in the case of a determination by the General Partner pursuant to Section 3.5(a)(i)(B), the General Partner shall advise such Limited Partner in writing, no later than five Business Days after delivery of the relevant Call Notice, of its intention to invoke the provisions of this Section 3.5(a) and shall deliver to such Limited Partner (A) in the case of a Material Adverse Effect, an opinion of counsel, which opinion of counsel shall be reasonably satisfactory to the Limited Partner, to the effect of Section 3.5(a)(i)(B) (other than as to materiality) and (B) in the case of a determination that the participation of such Limited Partner in such investment would prevent the Partnership from being able to consummate such investment or would otherwise result in a material delay or a material increase in the risk of difficulty to the Partnership of consummating such investment or impose a material filing, tax, regulatory or other burden, an officer's certificate to such effect.

The General Partner and the affected Limited Partner shall use their respective commercially reasonable efforts to alleviate the circumstances described in Section 3.5(a)(i) and if, as a result of such efforts, such circumstances are alleviated, including through a reduction of such Limited Partner's Capital Contribution, the provisions of this Section 3.5(a) shall not apply or shall apply only to the affected portion of such Capital Contribution, as the case may be. Each Limited Partner

agrees that its rights under this Section 3.5(a) will be exercised on an investment-by-investment basis and in good faith. A Limited Partner that is excused from a Portfolio Investment under this Section 3.5(a) shall have no right to receive any distributions in respect of such Portfolio Investment. The General Partner may waive all or any portion of the conditions applicable to Limited Partners set forth in this Section 3.5(a).

(b) If any Limited Partner is excused from an investment pursuant to Section 3.5(a) (an “**Excused Partner**”), the General Partner may elect for the Partnership to participate in such investment without the participation of such Excused Partner or not to proceed with such investment. If the General Partner elects for the Partnership to participate in the investment, the General Partner may (i) increase the Capital Contributions with respect to such investment from the other Limited Partners in proportion to their Contribution Percentages to the extent necessary to fund the excused amount; provided that no Limited Partner shall be obligated to make a Capital Contribution for investment in any one Portfolio Company in excess of the percentage limitations set forth in Section 5.2(a) and Section 5.2(d)(i), or (ii) offer to such other Partners, as the General Partner shall determine, the opportunity to co-invest (other than in their capacity as Partners) an aggregate amount equal to the excused amount. The operation of this Section 3.5 shall not limit the obligation of any Excused Partner to contribute to the Partnership the full amount of its Unpaid Commitment in respect of all Portfolio Investments in which the Excused Partner participates and all Operating Costs, Management Fees and Organization Costs.

(c) If at any time the General Partner reasonably determines, after consultation with the affected Limited Partner and counsel to the General Partner, that there is a reasonable likelihood that the continuing participation in the Partnership by such Limited Partner would have a Material Adverse Effect on the General Partner, the Partnership, a Portfolio Investment, any Portfolio Company or any of their respective Affiliates, and that such Material Adverse Effect can be prevented or remedied only by a Disposition of all or a portion of such Limited Partner’s interest in the Partnership, such Limited Partner shall, upon the written request and with the reasonable cooperation of the General Partner, use commercially reasonable efforts to Dispose of such Limited Partner’s entire interest in the Partnership (or such portion of its interest as the General Partner shall determine is sufficient to prevent or remedy such Material Adverse Effect) to any other Person at a price reasonably acceptable to such Limited Partner, in a transaction that complies with Section 10.1. If a determination is made by the General Partner under this Section 3.5(c) that would apply to more than one Limited Partner in substantially the same manner, the General Partner shall request that all of the affected Limited Partners take the actions set forth in the preceding sentence in proportion to their respective Commitments.

Section 3.6 Interest on and Return of Capital Contributions. No interest shall accrue on any Capital Contributions and no Partner shall have the right to withdraw or to be repaid any Capital Contributions made by such Partner except as otherwise specifically provided in this Agreement.

Section 3.7 No Other Capital Contributions. The obligations of the Partners to make Capital Contributions to the Partnership are contained only in this Article III and in Section 10.3(a). This Section 3.7 shall not be interpreted so as to limit the General Partner’s obligations under Section 9.4.

Section 3.8 Payments and Advances by the General Partner. If (a) the General Partner has submitted a Call Notice pursuant to Section 3.2(a) for the purpose of funding a Portfolio Investment and (b) prior to receipt in full of the Capital Contributions which are the subject of the Call Notice, an urgent need to fund such Portfolio Investment arises, the General Partner may, but shall not be obligated to, make an optional loan to the Partnership in an amount equal to the difference between the amount of the Call Notice and the amount of the Capital Contributions then contributed. Subject to the rights of the General Partner under Section 3.4 with respect to any Limited Partner who fails to pay timely to the Partnership the amount owed by the Limited Partner specified in the subject Call Notice, any such optional loan made by the General Partner shall not bear interest. No such optional loan by the General Partner shall be deemed to be a contribution to the capital of the Partnership. Any such optional loan by the General Partner shall be repaid from Capital Contributions thereafter paid pursuant to the subject Call Notice.

Section 3.9 Sponsor Commitment. The Related Limited Partners shall make aggregate Commitments equal to at least 3.0% of the Total Commitments. In addition, the Senior Advisors shall make aggregate Commitments equal to at least \$20,000,000.

ARTICLE IV - ALLOCATIONS AND DISTRIBUTIONS

Section 4.1 Allocations for Purposes of Maintaining Capital Accounts.

(a) After giving effect to the allocations under Section 4.1(b), Profit and Loss (and to the extent determined by the General Partner to be necessary and appropriate to achieve the resulting Capital Account balances described below, any allocable items of gross income, gain, loss and expense includable in the computation of Profit and Loss) for each Allocation Period shall be allocated among the Partners during such Allocation Period, in such a manner as shall cause the Capital Accounts of the Partners (as adjusted to reflect all allocations under Section 4.1(b), and all distributions through the end of such Allocation Period) to equal, as nearly as possible, (i) the amount such Partners would receive if all assets of the Partnership on hand at the end of such Allocation Period were sold for cash equal to their Book Values, all liabilities of the Partnership were satisfied in cash in accordance with their terms (limited in the case of non-recourse liabilities to the Book Value of the property securing such liabilities) and all remaining or resulting cash were distributed to the Partners under Section 4.3, decreased, in the case of the General Partner, by any amounts the General Partner is obligated to contribute to the Partnership pursuant to Section 9.4 and increased, in the case of any Limited Partner, by any amounts that would be distributed to such Limited Partner pursuant to Section 9.4 if the Partnership were dissolved at such time, (ii) minus such Partner's share of Minimum Gain and Partner Nonrecourse Debt Minimum Gain, computed immediately prior to the hypothetical sale of assets, and the amount any such Partner is treated as obligated to contribute to the Partnership, computed immediately after the hypothetical sale of assets.

Notwithstanding the foregoing, the General Partner may make such allocations as it deems reasonably necessary to give economic effect to the provisions of this Agreement, taking into account facts and circumstances as the General Partner deems reasonably necessary for this purpose.

(b) Notwithstanding any of the foregoing provisions of this Section 4.1 to the contrary, items of the Partnership's income, gain, loss, and deduction referenced in this Section 4.1(b) for each Allocation Period shall be allocated among the Partners as follows:

(i) Nonrecourse Deductions shall be allocated to the Partners as determined by the General Partner, to the extent permitted by the Treasury Regulations.

(ii) If during any Allocation Period there is a net increase in Partner Nonrecourse Debt Minimum Gain attributable to Partner Nonrecourse Debt that gives rise to Partner Nonrecourse Deductions, each Partner bearing the Economic Risk of Loss for such Partner Nonrecourse Debt shall be allocated such Partner's share of Partner Nonrecourse Deductions as determined under Treasury Regulations Section 1.704-2(b)(4) (consisting first of cost recovery or depreciation deductions with respect to property that is subject to such Partner Nonrecourse Debt and then, if necessary, a pro rata portion of the Partnership's other items of deductions, Code Section 705(a)(2)(B) expenditures and losses, with any remainder being treated as an increase in Partner Nonrecourse Debt Minimum Gain attributable to Partner Nonrecourse Debt in the subsequent Allocation Period). If more than one Partner bears the Economic Risk of Loss for such Partner Nonrecourse Debt, the Partner Nonrecourse Deductions attributable to such Partner Nonrecourse Debt shall be allocated among the Partners according to the ratio in which they bear the Economic Risk of Loss. This Section 4.1(b)(ii) is intended to comply with the provisions of Treasury Regulations Section 1.704-2(i) and shall be interpreted consistently therewith.

(iii) Notwithstanding any other provision hereof to the contrary except Section 4.1(b)(iv) (dealing with Minimum Gain), if for any Allocation Period there is a net decrease in Partner Nonrecourse Debt Minimum Gain (or if there was a net decrease in Partner Nonrecourse Debt Minimum Gain for a prior Allocation Period and the Partnership did not have sufficient amounts of income and gain during prior periods to allocate among the Partners under this Section 4.1(b)(iii)), items of income and gain shall be allocated to each Partner in an amount equal to such Partner's share of the net decrease in Partner Nonrecourse Debt Minimum Gain (as determined pursuant to Treasury Regulations Section 1.704-2(i)(4)). This Section 4.1(b)(iii) is intended to comply with the partner nonrecourse debt minimum gain chargeback requirement in Treasury Regulations Section 1.704-2(i)(4) and shall be interpreted consistently therewith.

(iv) Notwithstanding any provision hereof to the contrary, if for any Allocation Period there is a net decrease in Minimum Gain (or if there was a net decrease in Minimum Gain for a prior Allocation Period and the Partnership did not have sufficient amounts of income and gain during prior periods to allocate among the Partners under this Section 4.1(b)(iv)), each Partner shall be allocated items of Partnership income and gain in an amount equal to such Partner's share of the net decrease in such Minimum Gain (as determined pursuant to Treasury Regulations Section 1.704-2(g)(2)). This Section 4.1(b)(iv) is intended to comply with the minimum gain chargeback requirement in Treasury Regulations Section 1.704-2(f) and shall be interpreted consistently therewith.

(v) The losses and deductions allocated pursuant to this Section 4.1 shall not exceed the maximum amount of losses and deductions that can be allocated to a Partner without causing or increasing a deficit balance in the Partner's Adjusted Capital Account. If, at the end of any Allocation Period, as a result of the allocations otherwise provided for in this Section 4.1, the Adjusted Capital Account balance of any Partner shall become negative, items of deduction and loss otherwise allocable to such Partner for such Allocation Period, to the extent such items would have caused such negative balance, shall instead be allocated to Partners having positive Adjusted Capital Account balances remaining at such time in proportion to such balances.

(vi) Notwithstanding any provision hereof to the contrary except Section 4.1(b)(iii) and Section 4.1(b)(iv), in the event that a Partner unexpectedly receives any adjustment, allocation or distribution described in Treasury Regulations Section 1.704-1(b)(2)(ii)(d)(4)-(6) that causes or increases a deficit balance in such Partner's Adjusted Capital Account, items of Partnership income and gain (consisting of a pro rata portion of each item of income, including gross income, and gain for the Allocation Period) shall be allocated to that Partner in an amount and manner sufficient to eliminate the deficit balance as quickly as possible; provided that, an allocation pursuant to this Section 4.1(b)(vi) shall be made only if and to the extent that such Partner would have a deficit balance in its Adjusted Capital Account after all other allocations provided for in this Article IV have been tentatively made as if this Section 4.1(b)(vi) were not in this Agreement. It is intended that this Section 4.1(b)(vi) qualify and be construed as a "qualified income offset" within the meaning of Treasury Regulations Section 1.704-1(b)(2)(ii)(d).

(vii) In the event that any Partner has a deficit balance in its Adjusted Capital Account at the end of any Allocation Period, such Partner shall be allocated items of Partnership gross income, gain and Simulated Gain in the amount of such deficit as quickly as possible; provided that an allocation pursuant to this Section 4.1(b)(vii) shall be made only if and to the extent that such Partner would have a deficit balance in its Adjusted Capital Account after all other allocations provided for in this Article IV have been tentatively made as if Section 4.1(b)(vi) and this Section 4.1(b)(vii) were not in this Agreement.

(viii) To the extent an adjustment to the adjusted tax basis of any Partnership properties pursuant to Code Section 734(b) (including any such adjustments pursuant to Treasury Regulations Section 1.734-2(b)(1)) is required pursuant to Treasury Regulations Section 1.704-1(b)(2)(iv)(m)(2) or 1.704-1(b)(2)(iv)(m)(4) to be taken into account in determining Capital Accounts as the result of a distribution to any Partner in complete liquidation of such Partner's interest in the Partnership, the amount of such adjustment to Capital Accounts shall be treated as an item of gain (if the adjustment increases the basis of the asset) or loss (if the adjustment decreases such basis) and such gain or loss shall be allocated to the Partners in accordance with Treasury Regulations Section 1.704-1(b)(2)(iv)(m)(2) if such Treasury Regulations Section applies, or to the Partner to whom such distribution was made if Treasury Regulations Section 1.704-1(b)(2)(iv)(m)(4) applies.

(ix) Simulated Depletion for each Depletable Property, and Simulated Loss upon the disposition of a Depletable Property, shall be allocated among the Partners in proportion to their shares of the Simulated Basis in such property.

(x) In the event that the excuse procedure in Section 3.5 is invoked or there is an exercise of remedies pursuant to Section 3.4 in respect of a default resulting in a change in the economic interests of the Partners, the Partnership's allocations pursuant to Section 4.1(a) shall be adjusted as determined to be appropriate by the General Partner to properly reflect the economic interests of the Partners in the Portfolio Investment to which such excuse or exercise of remedies relates.

(xi) To the extent any payment by an additional Limited Partner under Section 10.3(a)(iii) is paid to the Partnership and is treated as income recognized by the Partnership rather than a payment between Partners, such income shall be allocated to the Partners to which such payment is distributable under Section 10.3.

(xii) Placement Fees and Excess Organization Costs shall be allocated among the Partners who actually make Capital Contributions with respect to such costs and expenses. Management Fees shall be allocated in the manner provided in Section 5.11.

(xiii) To the extent the General Partner is required to make contributions to the Partnership under Section 9.4 as a Clawback Amount, any expense or deduction arising from the contribution of such monies and their distribution to the other Partners shall be specially allocated to the General Partner and any income arising in respect of the Partnership's receipt of such contributions shall be specially allocated to the Partners that would have otherwise been allocated and distributed the income and monies relating to such Clawback Amount but for their initial allocation and payment to the General Partner.

(xiv) Items of income, gain, loss, expense or credit resulting from a Covered Audit Adjustment shall be allocated to the Partners in accordance with the applicable provisions of the Bipartisan Budget Act.

(xv) To the extent, if any, that General Partner expenses and any items of loss, expense or deduction resulting therefrom are deemed to constitute items of Partnership loss or deduction rather than items of loss, expense or deduction of the General Partner, such General Partner expenses and other items of loss, expense or deduction shall be allocated one hundred percent (100%) to the General Partner and the General Partner's Capital Account shall be credited with a deemed capital contribution of the same amount.

Section 4.2 Other Allocation Rules.

(a) Allocations for U.S. Federal Income Tax Purposes.

(i) Except as otherwise provided in this Section 4.2(a) or Section 4.2(b), the taxable income or loss of the Partnership (and items thereof) for any taxable year shall be allocated among the Partners to the maximum extent possible in the same manner as the corresponding items (if any) are allocated among the Partners for purposes of maintaining their Capital Accounts.

(ii) In accordance with Section 704(c) of the Code, the Treasury Regulations thereunder, and the portions of the Treasury Regulations under Section 704(b) that apply the principles of Section 704(c), income and deductions with respect to any property carried on the books of the Partnership at an amount that differs from such property's adjusted tax basis shall, solely for U.S. federal income tax purposes, be allocated among the Partners in a manner to take into account any variation between the adjusted tax basis of such property to the Partnership and such Book Value. In making such allocations, the General Partner shall use such method or methods as it determines to be reasonable and in accord with applicable Treasury Regulations.

(iii) Any (A) recapture of depreciation or any other item of deduction shall be allocated, in accordance with Treasury Regulations Sections 1.1245-1(e) and 1.1254-5, to the Partners who received the benefit of such deductions (taking into account the effect of remedial allocations) and (B) recapture of grants or credits shall be allocated to the Partners in accordance with applicable law.

(iv) Tax credits of the Partnership shall be allocated among the Partners as provided in Treasury Regulations Sections 1.704-1(b)(4)(ii) and 1.704-1(b)(4)(viii).

(v) Allocations pursuant to this Section 4.2(a) are solely for purposes of U.S. federal, state and local taxes and, except as otherwise specifically provided, shall not affect, or in any way be taken into account in computing, any Partner's Capital Account or share of Profits, Losses, other items or distributions pursuant to any provision of this Agreement.

(vi) If, as a result of an exercise of a non-compensatory option to acquire an interest in the Partnership, a Capital Account reallocation is required under Treasury Regulations Section 1.704-1(b)(2)(iv)(s)(3), the Partnership shall make corrective allocations pursuant to Treasury Regulations Section 1.704-1(b)(4)(x).

(b) Income Tax Allocations with Respect to Depletable Properties.

(i) Cost and percentage depletion deductions with respect to any Depletable Property shall be computed separately by the Partners rather than the Partnership. For purposes of such computations, the U.S. federal income tax basis of each Depletable Property shall be allocated to each Partner in accordance with such Partner's Capital Interest Percentage as of the time such Depletable Property is acquired by the Partnership (and any additions to such U.S. federal income tax basis resulting from expenditures required to be capitalized in such basis shall be allocated among the Partners in a manner designed to cause the Partners' proportionate shares of such adjusted U.S. federal income tax basis to be in accordance with their Capital Interest Percentages as determined at the time of any such additions), and shall be reallocated among the Partners in accordance with the Partners' Capital Interest Percentages as determined immediately following the occurrence of an event giving rise to an adjustment to the Book Values of the Partnership's Depletable Properties pursuant to clause (b) of the definition of Book Value. The Partnership shall inform each Partner of such Partner's allocable share of the U.S. federal income tax basis of each Depletable Property promptly following the acquisition of such Depletable Property by the Partnership, any adjustment resulting from expenditures

required to be capitalized in such basis, and any reallocation of such basis as provided in the previous sentence.

(ii) For purposes of the separate computation of gain or loss by each Partner on the taxable disposition of Depletable Property, the amount realized from such disposition shall be allocated (i) first, to the Partners in an amount equal to the Simulated Basis in such Depletable Property in proportion to their allocable shares thereof and (ii) second, any remaining amount realized shall be allocated consistent with the allocation of Simulated Gains.

(iii) The allocations described in this Section 4.2(b) are intended to be applied in accordance with the Partners' "interests in partnership capital" under Code Section 613A(c)(7)(D); provided, however, that the Partners understand and agree that the General Partner may authorize special allocations of federal income tax basis, income, gain, deduction or loss, as computed for U.S. federal income tax purposes, in order to eliminate differences between Simulated Basis and adjusted U.S. federal income tax basis with respect to Depletable Properties, in such manner as determined consistent with the principles outlined in Section 4.2(a)(ii). The provisions of this Section 4.2(b) and the other provisions of this Agreement relating to allocations under Code Section 613A(c)(7)(D) are intended to comply with Treasury Regulations Section 1.704-1(b)(4)(v) and shall be interpreted and applied in a manner consistent with such Treasury Regulations.

(iv) Each Partner, with the assistance of the Partnership, shall separately keep records of its share of the adjusted tax basis in each Depletable Property, adjust such share of the adjusted tax basis for any cost or percentage depletion allowable with respect to such property and use such adjusted tax basis in the computation of its cost depletion or in the computation of its gain or loss on the disposition of such property by the Partnership. Upon the reasonable request of the Partnership, each Partner shall advise the Partnership of its adjusted tax basis in each Depletable Property and any depletion computed with respect thereto, both as computed in accordance with the provisions of this subsection for purposes of allowing the Partnership to make adjustments to the tax basis of its assets as a result of certain transfers of interests in the Partnership or distributions by the Partnership. The Partnership may rely on such information and, if it is not provided by the Partner, may make such reasonable assumptions as it shall determine with respect thereto.

(c) Other Allocation Rules.

(i) All items of income, gain, loss, deduction, and credit allocable to any interest in the Partnership that may have been transferred shall be allocated between the transferor and the transferee in accordance with a method selected by the General Partner and permissible under Section 706 of the Code and the applicable Treasury Regulations.

(ii) The Partners' proportionate shares of the "excess nonrecourse liabilities" of the Partnership, within the meaning of Treasury Regulations Section 1.752-3(a)(3), shall be allocated to the Partners in any manner determined by the General Partner and permissible under the Treasury Regulations.

(iii) The definition of Capital Account set forth in Section 7.1 and the allocations set forth in Section 4.1(b), Section 4.2(a), Section 4.2(b) and the preceding provisions of this Section 4.2(c) are intended to comply with the Treasury Regulations. If the General Partner determines that the determination of a Partner's Capital Account or the allocations to a Partner are not in compliance with the Treasury Regulations or the intended economics of this Agreement, the General Partner is authorized to make any appropriate adjustments.

Section 4.3 Distributions Attributable to Portfolio Investments. Except as otherwise provided herein, Distributable Cash attributable to any Portfolio Investment shall be distributed as soon as reasonably practicable after receipt by the Partnership and shall initially be apportioned among the Limited Partners in proportion to their participation in such Portfolio Investment. The amount apportioned to each Related Limited Partner shall be distributed to such Related Limited Partner and the amount apportioned to each Investor Limited Partner shall be distributed as follows:

(a) First, 100% to such Investor Limited Partner until the cumulative amount distributed to such Investor Limited Partner pursuant to this Section 4.3(a) is equal to the sum of the aggregate Capital Contributions of such Investor Limited Partner made to date;

(b) Second, 100% to such Investor Limited Partner until the cumulative amount distributed to such Investor Limited Partner pursuant to this Section 4.3 is sufficient to provide such Investor Limited Partner with a preferred return equal to 8% per annum compounded annually on the Capital Contributions described in Section 4.3(a) made through the time of such distribution (the "**Preferred Return**"), computed from their respective Drawdown Dates;

(c) Third, 80% to the General Partner and 20% to such Investor Limited Partner until the cumulative amount distributed to the General Partner attributable to such Investor Limited Partner pursuant to this Section 4.3 is equal to 20% of the excess of (i) the cumulative amounts distributed to such Investor Limited Partner and to the General Partner attributable to such Investor Limited Partner pursuant to this Section 4.3 over (ii) the Capital Contributions of such Investor Limited Partner then described in Section 4.3(a); and

(d) Fourth, 80% to such Investor Limited Partner and 20% to the General Partner (with the amounts distributed to the General Partner pursuant to Section 4.3(c) and this Section 4.3(d) with respect to such Investor Limited Partner being called "**Carried Interest Distributions**").

Notwithstanding the foregoing, the General Partner may elect to defer or irrevocably waive the receipt of any cash portion of any Carried Interest Distributions otherwise payable to the General Partner, and instead distribute such portion to the applicable Investor Limited Partners (which portion shall be allocated among the Investor Limited Partners in proportion to the amounts otherwise distributable to the General Partner with respect to each applicable Investor Limited Partner). In such event the General Partner may subsequently elect to distribute to itself in cash out of amounts otherwise distributable to the applicable Investor Limited Partners any amount previously deferred or irrevocably waived and not yet recovered pursuant to this paragraph so long as the cumulative amount distributed to the General Partner with respect to any Investor Limited Partner does not exceed the cumulative amount that would have been distributed to the General Partner with respect to such Investor Limited Partner in the absence of this sentence. The General

Partner shall promptly notify the applicable Investor Limited Partners of the amount of any receipt of cash deferred or irrevocably waived pursuant to the immediately preceding sentence.

If an amount distributable to the General Partner pursuant to Section 4.3 would exceed the General Partner's tax basis in its interest in the Partnership at the time of the distribution, the General Partner may cause the Partnership to loan such amount otherwise distributable to the General Partner based upon reasonable terms. Any amount loaned to the General Partner pursuant to this paragraph shall be treated as having been distributed to the General Partner for purposes of Section 4.3, the General Partner may subsequently elect to distribute to itself in cash out of amounts otherwise distributable to the Investor Limited Partners any amount loaned and not yet repaid so long as the amount distributed is used to repay any outstanding loans, and any Partnership income attributable to such loan shall be allocated to, and accrue for the benefit of, the General Partner only.

Section 4.4 Distributions Not Attributable to Portfolio Investments. All Short-Term Non-Portfolio Investment Income and other Distributable Cash not attributable to a Portfolio Investment shall be distributed to the Limited Partners in accordance with their LP Percentages.

Section 4.5 Distributions in Kind.

(a) Prior to the dissolution and winding up of the Partnership, the General Partner may distribute only Freely Tradable Securities as distributions in kind. If a distribution consists of both cash and Securities or other property, or Securities of more than one class (with each lot of Securities with a separate basis or holding period being treated as a separate class of Securities), each Partner receiving such distribution shall, to the extent practicable, receive the same proportion of cash and Securities or other property, or of each class of Securities being distributed.

(b) In the event that a distribution of Freely Tradable Securities or other Securities or other property is made, such Securities or other property shall be deemed to have been sold at their Market Value and the proceeds of such sale shall be deemed to have been distributed in the form of Distributable Cash to the Partners pursuant to Section 4.3. Distributions of Freely Tradable Securities and, upon dissolution, winding up and liquidation of the Partnership, distributions of any other Securities or other property shall be made in proportion to the aggregate amounts that would be distributed to each Partner pursuant to Section 4.3, as determined by the General Partner.

(c) In connection with any distribution in kind, the General Partner shall provide at least 10 Business Days' written notice to each Limited Partner of such distribution. In the case of Securities, such notice shall include a brief description of the business activities of the Portfolio Company to which such Securities relate, shall set forth the date on which the General Partner has determined to cause such distribution to be made and shall offer to each Limited Partner the right to request to receive such distribution in the form of the proceeds of the Disposition of the Securities that otherwise would have been distributed to such Limited Partner. Upon the written request of a Limited Partner, the General Partner shall use its reasonable best efforts to Dispose of the Securities distributable to such Limited Partner and distribute the net proceeds thereof to the Limited Partner; provided, that (i) those Limited Partners electing to receive proceeds instead of Securities shall bear all of the expenses of such Disposition, (ii) any distributions to electing Limited Partners pursuant to this sentence of Section 4.5(c) shall be deemed to have been

distributed in the form of Distributable Cash to such Limited Partners pursuant to Section 4.3, (iii) the calculations required by Section 4.3 and Section 9.3 shall be made as if such Securities had been distributed as contemplated by the first sentence of Section 4.5(b), and (iv) the General Partner or an Affiliate of the General Partner may be the purchaser of such Securities only with such Limited Partner's Consent. Any Limited Partner that fails to respond in writing to any notice from the General Partner pursuant to this Section 4.5(c) within five Business Days following receipt thereof shall receive the distribution in kind.

(d) If any Partner would otherwise be distributed an amount of any Securities that would cause such Partner to own or control in excess of the amount of such Securities that it may lawfully own or control, would subject such Partner to any material regulatory filing or would raise material contractual or regulatory issues for such Partner, the General Partner may cause the Partnership, as agent for such Partner, to sell all or any portion of such Securities distributable to such Partner on behalf of (and at the expense of) such Partner as if such Partner had made the election described in Section 4.5(c).

(e) With respect to any distribution of Securities, the Partnership shall, with or prior to such distribution, provide to the Limited Partners the following information (to the extent applicable): (i) the class and number of Securities being distributed; (ii) the per share cost of such Securities; (iii) the distribution value of such Securities (as determined in accordance with this Agreement); (iv) notation as to whether such Securities are restricted or constitute Freely Tradable Securities; (v) the name of the brokerage firm handling such distribution on behalf of the Partnership; and (vi) the name and telephone number of a contact person at such firm.

In the event that the General Partner distributes Securities in connection with the liquidation of the Partnership, the General Partner may cause certificates evidencing any Securities to be distributed to be imprinted with legends as to such restrictions on Disposition as it may determine are necessary or appropriate, including legends as to applicable U.S. federal or state or non-U.S. securities laws or other legal or contractual restrictions, and may require any Limited Partner to which Securities are to be distributed, as a condition to such distribution, to agree in writing (x) that such Limited Partner will not Dispose of such Securities except in compliance with such restrictions and (y) to such other matters as the General Partner may determine are necessary or appropriate.

Section 4.6 Tax Distributions.

(a) Notwithstanding the distribution provisions of Section 4.3, if, with respect to the General Partner for any Fiscal Year, (A) the product of (x) the net taxable income allocated to the General Partner pursuant to this Agreement for any Fiscal Year, in respect of its right to receive Carried Interest Distributions and (y) the Assumed Tax Rate applicable for such Fiscal Year exceeds (B) the aggregate amount of Carried Interest Distributions distributed to the General Partner during such Fiscal Year pursuant to Section 4.3, the General Partner may, in its sole discretion, elect to make an advance ("**Tax Advance**") to the General Partner in an amount up to the aggregate amount of such excess. The General Partner may pay Tax Advances quarterly based on estimates in a manner to allow the General Partner (or its owners) to satisfy its quarterly estimated payment obligations with respect to such taxable income.

(b) Tax Advances shall be treated as advances on Carried Interest Distributions to the General Partner and shall reduce subsequent Carried Interest Distributions to the General Partner. To the extent that an amount otherwise distributable to the General Partner is so applied, it shall be treated for all purposes hereof as if such amount had actually been distributed to the General Partner as Carried Interest Distributions.

Section 4.7 General Distribution Provisions.

(a) Distributions shall be made only to the extent of Available Assets and in compliance with the Act and other applicable law.

(b) Any distribution by the Partnership pursuant to Articles IV and IX to the Person shown on the Partnership's records as a Limited Partner or to such Person's legal representatives, or to the assignee of such Person's right to receive such distributions as provided herein, shall acquit the Partnership and the General Partner of all liability to any other Person that may be interested in such distribution by reason of any Disposition of such Person's interest in the Partnership for any reason (including a Disposition of such interest by reason of the death, incompetence, bankruptcy, liquidation or winding up of such Person).

(c) In connection with any distribution of Distributable Cash, the General Partner shall use its reasonable best efforts to provide at least one Business Day's written notice to each Limited Partner of such distribution. Such notice shall include, if applicable, the name of the Portfolio Company from which such distribution originated.

Section 4.8 Withholding.

(a) Withholding Taxes.

(i) *Investor-Related Taxes.* To the extent the General Partner, the Partnership or any Affiliate of the foregoing is required by any applicable rule, regulation or law to withhold or to make tax payments on behalf of or with respect to any Partner (including any Partnership-Level Taxes), including any interest and penalties imposed thereon, or with respect thereto ("**Investor-Related Taxes**"), the Partnership may withhold such amounts or make such tax payments as so required.

(ii) *Deemed Investor-Related Taxes.* If the proceeds directly or indirectly received by the Partnership from a Portfolio Investment are reduced on account of taxes paid or incurred (directly or indirectly) by the Partnership or the Portfolio Investment or any other Person or withheld (directly or indirectly) by any Person, and such taxes (including Partnership-Level Taxes) relate to or are attributable or allocable to one or more Partners, the amount of the reduction shall be borne by the relevant Partners and treated as if it were paid by the Partnership as an Investor-Related Tax with respect to such Partners pursuant to Section 4.8(a)(i) for all purposes of this Agreement. If the proceeds to the Partnership from a Portfolio Investment are reduced on account of taxes paid or incurred (directly or indirectly) by the Partnership or the Portfolio Investment or any Person or withheld (directly or indirectly) by any Person, and such taxes are imposed on or with respect to the Partnership and do not relate to and are not attributable to or allocable to any of the Partners, the amount of the reduction shall not be treated as an Investor-Related Tax

and rather shall be treated as an Operating Cost. Any determinations made by the General Partner pursuant to this Section 4.8(a) shall be binding upon the Partners.

(b) **Repayment of Investor-Related Taxes.** All Investor-Related Taxes paid on behalf of a Partner, plus interest thereon at a rate equal to the greater of (x) the Prime Plus Rate as of the date of payment of such Investor-Related Taxes and (y) the applicable underpayment rate for such period as specified in Section 6621 of the Code, shall (i) be paid on demand by the Partner on whose behalf such Investor-Related Taxes were made (it being understood that no such payment shall reduce such Partner's Unpaid Commitment or increase such Partner's Capital Contributions and any such payment shall be payable without regard to such Partner's Unpaid Commitment and notwithstanding the termination of the Commitment Period), or (ii) with the Consent of the General Partner, in its sole discretion, be repaid by reducing the amount of the current or next succeeding distribution or distributions which would otherwise have been made to such Partner or, if such distributions are not sufficient for that purpose, by so reducing the proceeds of liquidation otherwise payable to such Partner. Notwithstanding the foregoing, whenever repayment of an Investor-Related Tax by a Partner is made as described in clause (ii), for all other purposes of this Agreement such Partner shall be treated as having received all distributions unreduced by the amount of such Investor-Related Tax.

(c) **Tax Forms.** If requested by the Partnership or the General Partner, each Limited Partner shall, if legally able to do so, deliver to the Partnership: (i) an affidavit in a form reasonably satisfactory to the General Partner that such Limited Partner (or its direct or indirect owners, as the case may be) is not subject to withholding under the provisions of any federal, state, local, foreign or other law; (ii) any certificate or other document that the General Partner may reasonably request with respect to any such laws, including any form, certification, or other information required by FATCA; or (iii) any other form or instrument reasonably requested by the General Partner relating to such Limited Partner's status under such law. If any Limited Partner fails or is unable to deliver to the Partnership or the General Partner an affidavit described in clause (i) or certificate or other documentation described in clause (ii), the General Partner may cause the Partnership to withhold amounts from such Limited Partner in accordance with Section 4.8(a)(i), and such Limited Partner acknowledges that it may be subject to the deemed Investor-Related Taxes provisions of Section 4.8(a)(ii).

(d) **Overwithholding.** None of the Partnership, the Partnership Representative, or the General Partner shall be liable for any excess Investor-Related Taxes withheld (directly or indirectly) in respect of any Partner, and, in the event of overwithholding, a Partner's sole recourse shall be to apply for a refund from the appropriate governmental authority.

(e) **Investor-Related Taxes — Reimbursement of Liabilities.** Each Partner hereby agrees to reimburse the Partnership, the Partnership Representative and the General Partner for any liability (including any liability for Partnership-Level Taxes) with respect to Investor-Related Taxes (including interest thereon) required or made on behalf of or with respect to such Partner (including penalties imposed with respect thereto). Notwithstanding any other provision of this Agreement, any Person who ceases to be a Partner shall be treated as a Partner for purposes of this Section 4.8 and the obligations of a Partner pursuant to this Section 4.8 shall survive indefinitely with respect to any taxes withheld or paid or incurred (directly or indirectly) by the Partnership or the Portfolio Investment or any other Person that relate to the period during which such Person

was actually a Partner, regardless of whether such taxes are assessed, withheld or otherwise paid during such period; provided, however, that if the General Partner determines in its sole discretion that seeking indemnification for Partnership-Level Taxes is not practicable, or that seeking such indemnification has failed, then, in either case, the General Partner may require the substituted Partner that acquired directly or indirectly from such former Partner the interest in the Partnership associated with such portion of the Partnership-Level Tax to pay such amount or treat such portion as an Operating Cost.

(f) Information for Partners. After receipt of a written request of any Partner, the Partnership shall use commercially reasonable efforts to provide such information to such Partner and take such other action as may be reasonably necessary to assist such Partner in making any necessary filings, applications or elections to obtain any available exemption from, or any available refund of, any withholding imposed by any foreign taxing authority with respect to amounts distributable or items of income allocable to such Partner hereunder to the extent not adverse to the Partnership or any Partner; provided, however, that in each case any such requesting Partner shall cooperate with the Partnership with respect to any such filing, application or election to the extent reasonably determined by the General Partner and that any filing fees, taxes or other out-of-pocket expenses reasonably incurred and related thereto shall be paid and borne by such requesting Partner or, if there is more than one requesting Partner, by such requesting Partners pro rata (determined in accordance with such Partners' respective Commitments).

ARTICLE V - MANAGEMENT

Section 5.1 Power and Authority of General Partner. Subject to any approval rights of the LPAC or the Limited Partners set forth in this Agreement, the General Partner shall have full, exclusive and unilateral power and authority on behalf of the Partnership to manage, control, administer and operate the properties, business and affairs of the Partnership in accordance with this Agreement and to do or cause to be done any and all acts necessary or incidental thereto, and (except as aforesaid) the scope of such power and authority shall encompass all matters in any way connected with such business or incidental thereto, including (except as aforesaid) the power and authority:

(a) to cause the Partnership to make or purchase privately negotiated investments in accordance with this Agreement;

(b) to monitor the Partnership's Portfolio Investments and to vote, take any action or exercise any right, directly or indirectly, required of or accorded to the Partnership with respect to the Portfolio Investments or any other Partnership assets;

(c) to sell, exchange, transfer or otherwise Dispose of all or any portion of the Portfolio Investments or other Partnership assets;

(d) to negotiate, make and to enter into such agreements and contracts with such parties and to give such receipts, releases and discharges with respect to any and all of the foregoing and any matters incident thereto as the General Partner may deem advisable or appropriate;

(e) to employ from time to time third parties to render services to the Partnership, including but not limited to, attorneys, independent certified public accountants, petroleum

engineers, consultants, brokers, agents and advisors (including, subject to due consideration of any conflicts of interest, attorneys, accountants, petroleum engineers, consultants, brokers, agents and advisors who also may act as attorneys, accountants, petroleum engineers, consultants, brokers, agents and advisors for the General Partner or any of its Affiliates);

(f) to procure and maintain in force such insurance as the General Partner shall deem prudent to serve as protection against liability for loss, damage and other risks which may be occasioned by the activities to be engaged in by the Partnership;

(g) to control any matters affecting the rights and obligations of the Partnership, including the conduct of any litigation or arbitration proceedings and the incurring of legal expenses and the settlement of claims and litigation;

(h) to open, maintain and close bank accounts and custodial accounts and to execute and deliver all checks, drafts, endorsements and other orders for the payment of Partnership funds;

(i) to appear and to represent the Partnership before any governmental authority or regulatory agency and to make all necessary or appropriate filings before such authority or agency;

(j) to set aside funds for reasonable reserves, anticipated contingencies and working capital;

(k) to form or combine Feeder Funds, Blocker Corporations and Alternative Investment Vehicles;

(l) to prepare and file all tax returns of the Partnership;

(m) to make such elections under the Code and other relevant tax laws as to the treatment of items of Partnership income, gain, loss and deduction, and as to all other relevant matters, as the General Partner deems necessary or appropriate;

(n) to take all actions the General Partner deems necessary or appropriate to prevent the assets of the Partnership from being deemed to constitute "plan assets" under ERISA;

(o) to retain the Manager to provide management, advisory and related services to the Partnership in accordance with the Management Agreement;

(p) (i) to cause the Partnership to borrow money or enter into transactions having a similar leveraging effect, (ii) to guarantee the obligations of, or otherwise provide credit support to, any Portfolio Company, and (iii) to secure the payment of the foregoing by security interests in, pledges of or other encumbrances on rights of the General Partner;

(q) to enter into Side Letters in connection with a Limited Partner's participation in the Partnership, which grants such Limited Partner rights that are not contained in this Agreement;

(r) to cause any Alternative Investment Vehicle, Feeder Fund or Blocker Corporation to take any action that it may cause the Partnership to take, including those described in this Section 5.1;

- (s) to determine the Capital Interest Percentage of any Partner; and
- (t) to take such other action, execute and deliver such other documents and perform such other acts as may be deemed by the General Partner to be necessary or advisable to carry out the business and affairs of the Partnership.

Section 5.2 Restrictions on General Partner's Power and Authority.

(a) The General Partner shall not, without having received the prior Consent of those Investor Limited Partners whose aggregate Investor LP Percentages equal or exceed 66 2/3%, cause the Partnership to invest more than 25% of Total Commitments in any single Portfolio Company and its Affiliates.

(b) The General Partner shall not, without having received the prior Consent of those Investor Limited Partners whose aggregate Investor LP Percentages equal or exceed 66 2/3%, merge or consolidate the Partnership with any partnership or other entity, convert the Partnership into another type of entity, or cause the Partnership to participate in an exchange of interests or some other type of business combination with any partnership or other entity.

(c) The General Partner shall not, without having received the prior Consent of those Investor Limited Partners whose aggregate Investor LP Percentages equal or exceed 80%, cause the Partnership to file a voluntary petition in bankruptcy or take any other similar action.

(d) The General Partner shall not, without having received the prior Consent of the LPAC:

- (i) cause the Partnership to invest more than 15% of Total Commitments in any single Portfolio Company and its Affiliates;

- (ii) cause the Partnership to invest more than 15% of Total Commitments in Portfolio Companies whose principal assets are located outside of North America;

- (iii) cause the Partnership to invest more than 15% of Total Commitments in Portfolio Companies outside the Principal Investment Focus; provided, that any such investments shall be related to the energy industry;

- (iv) cause the Partnership to purchase Securities of public companies, except to the extent of not more than 15% of Total Commitments (determined based on the cost of such Securities at the time of investment) for (i) Securities acquired in private investment in public equity (PIPE) transactions and (ii) Securities purchased in the public market by the Partnership in anticipation of an acquisition of a company or as an investment in an existing Portfolio Company; provided, that the following shall not be considered "Securities purchased in the public markets" for purposes of making such determination: any temporary investments (e.g., certificates of deposit, short-term U.S. governmental Securities, etc.), investments in Securities of Persons that, at the time of the initial investment of the Partnership, were not publicly traded, or publicly traded Securities received by the Partnership in connection with the sale of a Portfolio Company;

(v) cause the Partnership to make any investment in any fund or similar collective investment entity that provides for a carried interest or management fee to be paid to any other Person, except that the General Partner may cause the Partnership to invest in any entity if such entity is or will be primarily an operating company and is not or will not be primarily engaged in the business of owning or investing in entities managed by third parties;

(vi) cause the Partnership to make any investment in a Portfolio Company organized, domiciled or primarily doing business in a country identified by the Financial Action Task Force as a “High Risk and Non-Cooperative Jurisdiction”;

(vii) cause the Partnership to commence any tender offer or solicitation of proxies for the control of any public company that is opposed by a majority of the board of directors (or equivalent governing body) of such company;

(viii) cause the Partnership to enter into any swap, forward, hedge or other derivative financial transaction; provided, however, the foregoing shall not be deemed to apply to a Portfolio Company or to otherwise preclude a Portfolio Company from entering into, or to limit, modify or affect the right of the governing body of a Portfolio Company (including the Partnership’s designated representatives to such governing body) from causing a Portfolio Company to enter into, commodity hedging transactions pertaining to oil, gas and related hydrocarbons and minerals, long term fixed price physical marketing agreements or financial hedges, such as an interest rate swap;

(ix) cause the Partnership to enter into any material transaction with the General Partner or any of its Affiliates on terms less favorable to the Partnership than would be obtained on an arm’s-length basis, and the General Partner shall disclose any material transactions between the Partnership and the General Partner or any of its Affiliates to the LPAC on a quarterly basis;

(x) other than the Prospective Portfolio Companies disclosed to prospective Limited Partners prior to the Initial Closing Date, cause the Partnership to make an investment in an issuer in which the General Partner or an Affiliate thereof owns a material amount of Securities;

(xi) cause the Principals (including Principals who hereafter cease to be involved in the operations of the Partnership) and other employees (or former employees) of EnCap or its Affiliates (any such person, an “**Ownership Group Member**”) in the aggregate to no longer own, either directly or indirectly, at least 75% of (A) the voting and equity interests in the General Partner (including the equity interests in or attributable to Carried Interest Distributions, if any, received by the General Partner hereunder) and (B) the equity and voting interests in EnCap and its general partner, in each case, that the Ownership Group Members owned as of the Initial Closing Date; provided, however, that for purposes of this Section 5.2(d)(xi), an Ownership Group Member’s ownership interest shall be deemed to include any interest which is owned by (1) such Ownership Group Member’s spouse or former spouse, (2) members of such Ownership Group Member’s immediate family, their heirs or legatees, or trusts or other entities established for the

benefit of such persons for customary estate planning purposes or (3) a family or charitable foundation established by such Ownership Group Member or his family members; provided, further, that in the instance of a Principal, such Principal's ownership interest shall be also deemed to include all or any portion of such Principal's ownership interest which may be Disposed of after such Principal's death to a third party not otherwise referenced above, provided such third party provides a guaranty with respect to any Clawback Amount attributable to such Disposed-of interest;

(xii) cause the Partnership to borrow any money or pledge or encumber Partnership assets, except as provided in Section 5.3; and

(xiii) cause the Partnership to call Capital Contributions in excess of 45% of the Total Commitments in any twelve-month period.

(e) The General Partner shall not guarantee the obligations of, or otherwise provide credit support to, Portfolio Companies in the name of or on behalf of the Partnership in an aggregate amount outstanding at any time in excess of the aggregate Unpaid Commitments at such time, and the amount of each such guarantee shall be considered an outstanding Portfolio Investment for the purpose of applying the investment limitations in this Section 5.2.

(f) Prior to the Final Closing Date, for purposes of compliance with the investment restrictions set forth in Section 5.2(a), Section 5.2(d)(i), Section 5.2(d)(ii), Section 5.2(d)(iii), Section 5.2(d)(iv) and Section 5.2(d)(xiii), the Total Commitments to the Partnership shall be deemed to be the greater of (x) actual Total Commitments and (y) \$4 billion, in each case, immediately following the relevant investment. The General Partner shall not be deemed to have breached any of the investment restrictions set forth in Section 5.2(a), Section 5.2(d)(i), Section 5.2(d)(ii), Section 5.2(d)(iii), Section 5.2(d)(iv) and Section 5.2(d)(xiii) with respect to any Portfolio Investment made prior to the Final Closing Date based on then-targeted Total Commitments even if, after the Final Closing Date, the specified percentage of the Total Commitments is exceeded. If multiple Portfolio Investments are held by a single Alternative Investment Vehicle or other investment entity, the General Partner may treat each Portfolio Investment held by such Alternative Investment Vehicle or other investment vehicle as a separate Portfolio Investment for purposes of applying the investment limitations in Section 5.2(a), Section 5.2(d)(i), Section 5.2(d)(ii), Section 5.2(d)(iii), Section 5.2(d)(iv) and Section 5.2(d)(xiii).

Section 5.3 Subscription Facility.

(a) The General Partner and the Partnership may incur debt by entering from time to time into credit facilities (each a "**Subscription Facility**"), subject to the following limitations:

(i) the General Partner and the Partnership shall only use the proceeds from any Subscription Facility to bridge amounts called or expected to be called under Call Notices;

(ii) the maturity date of each borrowing under a Subscription Facility shall not be more than 90 days after such borrowing, unless approved by the LPAC; and

(iii) the aggregate principal amount of such borrowings under Subscription Facilities outstanding at any time shall not exceed \$400,000,000.

(b) Each Subscription Facility may be secured by (i) a pledge or other security interest to a third-party lender (or an agent for the benefit of a group of lenders) by the Partnership of all or a portion of the aggregate Unpaid Commitments and bank accounts to which Capital Contributions are funded or held and (ii) a pledge or other security interest by the General Partner of the rights of the General Partner contained herein, including the right to deliver Call Notices, to receive payment of Capital Contributions and apply the same to obligations under the Subscription Facilities, to exercise all rights of the General Partner with respect to Unpaid Commitments, and to enforce all remedies against Partners that fail to fund their respective Unpaid Commitments pursuant to Call Notices and in accordance with the terms of this Agreement. The General Partner and the Partnership may participate in, guarantee, secure and borrow funds under Subscription Facilities together with one or more of the Alternative Investment Vehicles on any basis that the General Partner determines is fair and reasonable to the Partnership.

Section 5.4 Investment Opportunities.

(a) The General Partner shall use its reasonable best efforts to find investment opportunities within the Principal Investment Focus. Subject to Section 5.6(b), during the Commitment Period, all investment opportunities within the Principal Investment Focus presented to the General Partner, the Manager, the Manager's officers and employees or the Principals shall be made available to the Partnership before being offered to any other Person.

(b) Prior to making an investment hereunder involving proved reserves, the Partnership shall utilize the services of independent petroleum engineers for the purpose of assisting the General Partner in analyzing the merits of the investment, except in instances where the General Partner reasonably determines that, given the nature of the issuer, the structure of the investment and other relevant facts and circumstances, such utilization is not appropriate or necessary.

(c) The General Partner in its sole discretion may, but shall not be obligated to, offer co-investment opportunities to any or all of the Limited Partners and their designated Affiliates and to third parties on terms identical or substantially similar to, and no more favorable than (in any material respect), those offered to the Partnership. Each Limited Partner, to the extent it or its designated Affiliate desires to participate in such opportunities, may notify the General Partner in writing at any time of the types, amounts and other parameters of the co-investments in which such Limited Partner or Affiliate has an interest. Any co-investment opportunity may, if the General Partner so requires, be made through one or more investment vehicles Controlled and managed by the General Partner or an Affiliate (and, for purposes of clarity, any such investment vehicle shall not be considered an Alternative Investment Vehicle for purposes hereof). The General Partner and its Affiliates shall not be deemed to provide investment advice with respect to any such co-investment opportunity, and any Limited Partner or designated Affiliate participating in such co-investment opportunity shall be solely responsible for making its own decision as to the merits of such opportunity. This Section 5.4(c) shall not be deemed to modify or limit the investment rights or obligations of the General Partner under Section 5.6(b), provided it complies with the terms of such Section.

Section 5.5 Time Devoted to Partnership Business.

(a) Until the end of the term of the Partnership, the General Partner shall devote all of its business time to the business and operations of the Partnership and the Feeder Funds.

(b) During the period commencing as of the Initial Closing Date and ending on the first to occur of (i) the end of the Commitment Period and (ii) the point in time at which a Successor Fund organized in accordance with the terms hereof makes its first investment, each Key Person (while active as an employee or partner of EnCap) shall devote substantially all of his or her business time to the business and operations of the Partnership; provided, however, that (x) none of the Key Persons shall be required to devote all business time to the Partnership's business and (y) EnCap and the Key Persons shall be permitted to devote business time to the business and operations of the Existing Funds and any Future Funds as shall be necessary in order to comply with their respective duties and obligations to the Existing Funds and any Future Funds. After the expiration of the period described in the immediately preceding sentence, each Key Person (while active as an employee of EnCap) shall devote such amount of their business time as is reasonably necessary to manage properly the affairs and activities of the Partnership.

Section 5.6 Other Activities.

(a) During the Commitment Period, the General Partner and its Affiliates, either directly or indirectly, shall not purchase or make any investment within the Principal Investment Focus, except through the Partnership or for the following:

(i) any investments, securities or other assets currently held by any Existing Fund and any additional or "follow-on" investments, securities or other assets thereto;

(ii) any investments, securities or other assets made or acquired by any Existing Fund or Future Fund;

(iii) any investments, securities or other assets received in exchange for, as a result of a merger, consolidation, conversion, exchange, combination or other reorganization involving, or as distributions from partnerships or other entities holding, investments, securities or other assets referred to in Section 5.6(a)(i) and (ii) above;

(iv) any personal investments (made either directly or indirectly) by the Principals and other Affiliates of the General Partner who are natural persons, provided such personal investments are (A) in publicly traded securities or (B) in passive investments not to exceed \$2.5 million per investment;

(v) as provided in Section 5.15 and Section 5.16; and

(vi) any investments approved by the LPAC.

(b) During the Primary Investment Period, the General Partner and its Affiliates shall not form or acquire a new investment fund for the same or substantially similar purpose to that contemplated hereunder and cause such fund to commence investment activities (a "**Successor Fund**") unless the General Partner or such Affiliate receives the prior Consent of those Investor

Limited Partners whose aggregate Investor LP Percentages equal or exceed 66 2/3%. If, in accordance with the immediately preceding sentence and prior to the expiration of the Commitment Period, the General Partner or an Affiliate organizes a Successor Fund, the General Partner shall in good faith equitably apportion any prospective investment opportunities among the Partnership and the Successor Fund, giving due consideration to the amount of the Unpaid Commitments, the types of investments previously made by the Partnership, diversification (geographic or otherwise) and other salient factors. For the purposes of this Agreement, a “Successor Fund” shall not be deemed to include any successor fund to EnCap Energy Transition Fund II-A, L.P. and its parallel partnerships, EnCap Flatrock Midstream Fund V, L.P., any other fund hereafter established by EnCap or its Affiliates whose investment objective is substantially dissimilar to that of the Partnership or any co-investment fund or continuation fund established by EnCap or its Affiliates. The General Partner shall notify the Limited Partners when EnCap or its Affiliates commence the active marketing of any Successor Fund or any other Future Fund, including its primary investment focus and principal terms.

(c) Except as provided in Section 5.6(a) and (b): (i) the General Partner or any Affiliate of the General Partner may engage or invest, directly or indirectly, in any business activity or venture of any nature or description, including those that may be the same as or similar to the Partnership’s business and in direct competition therewith, and the General Partner or such Affiliate shall have no obligation to offer any such business activity or venture to the Partnership; and (ii) neither the Partnership nor any Limited Partner shall have any right, by virtue of this Agreement or the partnership relationship created hereby, in such investments or such other activities or ventures, and such investments, activities or ventures, even if they are the same or directly competitive with the business of the Partnership, shall not be deemed wrongful or improper or in violation of this Agreement.

Section 5.7 Liability; Standard of Care.

(a) The General Partner shall be personally liable for the debts and obligations of the Partnership except as otherwise provided in the documents creating such debts or obligations; but all such debts and obligations shall be paid or discharged first with the assets of the Partnership before the General Partner shall be obligated to pay or discharge any such debt or obligation with its personal assets.

(b) The General Partner has the liabilities set forth herein and, unless otherwise modified herein, under the Act to (i) Persons other than the Partnership and the other Partners and (ii) the Partnership and the other Partners. No Covered Person shall be liable to the Partnership or any Partner, and each Partner does hereby release such Covered Person, for any act or omission, including any mistake of fact or error in judgment, taken, suffered or made by such Covered Person in good faith and in the belief that such act or omission is in or is not contrary to the best interests of the Partnership and is within the scope of authority granted to such Covered Person by this Agreement, provided that such act or omission (x) in the instance of a Covered Person, other than a member of the LPAC, was not the result of fraud, willful or intentional misconduct or criminal wrongdoing, gross negligence, a material breach of applicable securities laws or a breach of this Agreement or any Side Letter which materially and adversely affects the business and operations of the Partnership or the Limited Partners’ investment in the Partnership and (y) in the instance of

a Covered Person who is or was a member of the LPAC, was not the result of fraud or willful or intentional misconduct.

(c) The General Partner may consult with legal counsel, accountants, appraisers, investment bankers, and other consultants and advisers selected and retained by the General Partner with due care and any written opinion of any such person as to matters which the General Partner reasonably believes to be within such person's professional or expert competence shall be full and complete authorization and protection in respect of any action taken or omitted by the General Partner hereunder in good faith and in accordance with such opinion.

(d) The General Partner may rely on and shall be protected in acting or refraining from acting upon any resolution, certificate, statement, instrument, opinion, report, notice, request, Consent, order, bond, debenture, or other paper or document reasonably believed by it to be genuine and to have been signed or presented by the proper party or parties.

(e) To the extent that, at law or in equity, a Covered Person has duties and liabilities relating thereto to the Partnership or to the Partners, any Covered Person acting under this Agreement shall not be liable to the Partnership or any Partner for its good faith reliance on the provisions of this Agreement. The provisions of this Agreement, to the extent that they restrict the duties and liabilities of a Covered Person otherwise existing at law or in equity and to the extent permitted by law, are agreed by the Partners to replace such other duties and liabilities of such Covered Person.

Section 5.8 Indemnification.

(a) The Partnership shall indemnify to the maximum extent permitted under the Act and save harmless each Covered Person from and against any and all losses, claims, demands, liabilities, expenses, judgments, fines, settlements and other amounts arising from any and all claims, demands, actions, suits or proceedings, whether civil, criminal, administrative or investigative, of whatever nature that may accrue to or be incurred by any Covered Person or in which a Covered Person may be involved, or threatened to be involved, as a party or otherwise, that relates to or arises out of the Partnership or its business and affairs. Notwithstanding the foregoing, (i) no Covered Person shall be indemnified by the Partnership for any acts or omissions by the Covered Person that (A) in the instance of a Covered Person, other than any member of the LPAC or any Limited Partner represented by any member of the LPAC, constitute fraud, willful or intentional misconduct or criminal wrongdoing, gross negligence, a material breach of applicable securities laws or a breach of this Agreement or any Side Letter which materially and adversely affects the business and operations of the Partnership or the Limited Partners' investment in the Partnership or (B) in the instance of a member of the LPAC or any Limited Partner represented by any member of the LPAC, that constitutes fraud or willful or intentional misconduct and (ii) no Covered Person in its capacity as a Limited Partner shall be indemnified for any losses arising from its Commitment to or interest in the Partnership.

(b) Subject to Section 5.8(h), expenses incurred by a Covered Person in defending or investigating a threatened or pending action, suit or proceeding shall be paid by the Partnership in advance of the final disposition of such action, suit or proceeding upon receipt of (i) a written undertaking by or on behalf of such Covered Person to repay such amount if it shall ultimately be

determined that it is not entitled to be indemnified by the Partnership as authorized by this Section 5.8 and (ii) a written affirmation from such Covered Person of such Covered Person's good faith belief that the Covered Person has met the standard of conduct necessary for indemnification under Section 5.8(a).

(c) The Partnership shall, to the maximum extent permitted under the Act, pay or reimburse expenses incurred by a Covered Person in connection with the Covered Person's appearance as a witness or other participation in a proceeding involving or affecting the Partnership at a time when the Covered Person is not a named defendant or respondent in the proceeding.

(d) The General Partner shall have the right to require that any contract entered into by the Partnership provides that neither the General Partner nor any Limited Partner shall have personal liability for the obligations of the Partnership thereunder. This Section 5.8(d) shall not be deemed (i) to constitute any limitation or modification of the General Partner's duties and obligations under Section 5.7 and (ii) to permit the General Partner to cause the Partnership to execute a contract that provides a Limited Partner will have personal liability for the obligations of the Partnership thereunder.

(e) The indemnification provided by this Section shall be in addition to any other rights to which each Covered Person may be entitled under any agreement or vote of the Partners, as a matter of law or otherwise, both as to action in the Covered Person's capacity as a Partner or an officer, director, member, employee or agent of a Partner or an Affiliate thereof or as a member of the LPAC (or as a Limited Partner associated with such member or an Affiliate of such Limited Partner) or as a Partnership Representative or as a Person serving at the request of the Partnership as set forth above and to action in another capacity, and shall continue as to a Covered Person who has ceased to serve in such capacity and shall inure to the benefit of the heirs, successors, assigns, administrators and personal representatives of the Covered Person. Prior to a Covered Person receiving any indemnification payment from the Partnership, such Covered Person shall first seek recovery under any indemnity or any insurance policies by which such Covered Person is indemnified or covered from any issuer in which the Partnership has an investment. Solely for purposes of clarification, and without expanding the scope of indemnification pursuant to this Section 5.8, the Partners intend that, to the maximum extent permitted by law, as between (i) Portfolio Companies of the Partnership, (ii) the Partnership and (iii) the General Partner and its Affiliates, this Section 5.8 shall be interpreted to reflect an ordering of liability for potentially overlapping or duplicative indemnification payments, with any applicable Portfolio Company having primary liability, the Partnership having only secondary liability, the Feeder Funds having only tertiary liability and (if applicable) the General Partner and its Affiliates having only quaternary and subsequent liability. The possibility that a Covered Person may receive indemnification payments from a Portfolio Company shall not restrict the Partnership from making payments under this Section 5.8 to a Covered Person that is otherwise eligible for such payments, but such payments by the Partnership are not intended to relieve any Portfolio Company from any liability that it would otherwise have to make indemnification payments to such Covered Person and, if a Covered Person that has received payments from the Partnership pursuant to this Section 5.8 actually receives duplicative indemnification payments from a Portfolio Company for the same fees, costs and expenses, such Covered Person shall repay the Partnership as soon as practicable to the extent of such duplicative payments. To the extent necessary or appropriate under applicable law in order to effect such intention of the Partners in the case of potentially overlapping

or duplicative indemnification payments by the Partnership and a Portfolio Company, the Partnership shall, to the extent permitted by law, use commercially reasonable efforts to pursue a right of subrogation against such Portfolio Company if the Partnership makes payments to a Covered Person pursuant to this Section 5.8 with regard to the same fees, costs and expenses for which such Covered Person was otherwise eligible for indemnification payments from such Portfolio Company. As used in this Section 5.8, indemnification payments made or to be made by a Portfolio Company shall be deemed to include (A) advancement of expenses with regard to indemnification obligations, (B) payments made or to be made by any successor to the indemnification obligations of such Portfolio Company and (C) equivalent payments made or to be made by or on behalf of such Portfolio Company (or such successor) pursuant to an insurance policy or similar arrangement.

(f) In no event may a Covered Person subject the Partners to personal liability by reason of the indemnification provided by this Section 5.8.

(g) A Covered Person shall not be denied indemnification in whole or in part under this Section 5.8 because the Covered Person had an interest in the transaction with respect to which the indemnification applies if the transaction was otherwise permitted and approved pursuant to the terms of this Agreement and in the absence of any fraud, willful or intentional misconduct or criminal wrongdoing, gross negligence, a material breach of applicable securities laws or a breach of this Agreement or any Side Letter which materially and adversely affects the business and operations of the Partnership or the Limited Partners' investment in the Partnership on behalf of the Covered Person and its Affiliates.

(h) If indemnification payments made by the Partnership to a Covered Person under this Section 5.8 with respect to a given matter (i) exceed \$200,000 in the aggregate, the General Partner shall give prompt notice of same to the LPAC, and (ii) exceed \$400,000 in the aggregate, the General Partner shall give prompt notice of same to the Limited Partners. In addition, the Partnership shall not advance any expenses to a Covered Person pursuant to Section 5.8(b) in connection with any action or suit brought against such Covered Person by those Investor Limited Partners whose aggregate Investor LP Percentages exceed 60%.

(i) Notwithstanding the foregoing, the Partnership's indemnification obligations under this Section 5.8 shall not extend or apply to: (i) any intra-General Partner disputes or proceedings (e.g., a dispute or proceeding between the current or former shareholders, officers, directors, employees, partners, members, managers or agents of the General Partner or Affiliates of the General Partner, provided, however, that for purposes of this example, it is understood that "Affiliates of the General Partner" shall not include any Portfolio Company) or disputes or proceedings among the General Partner and its Affiliates; or (ii) any act or omission of any Covered Person in such Covered Person's role as an officer or director of a former Portfolio Company, if such act or omission (A) occurs subsequent to when the Partnership has Disposed of its entire interest in such Portfolio Company and (B) does not reasonably relate to activities, matters or events arising or occurring during the term of the Partnership's investment in such Portfolio Company.

Section 5.9 Return of Distributions.

(a) The General Partner may require the Partners to return distributions to the Partnership in an amount sufficient to satisfy all or any portion of the indemnification obligations of the Partnership pursuant to Section 5.8 or other liabilities of the Partnership, whether such obligations arise before or after the last day of the term of the Partnership or, with respect to any Partner, before or after such Partner's withdrawal from the Partnership, in such amounts as shall result in each Partner retaining cumulative distributions from the Partnership (net of any returns of distributions under this Section 5.9) equal to the cumulative amount that would have been distributed to such Partner had the amount of such cumulative distributions been reduced by the amount of such obligations, as equitably determined by the General Partner.

(b) A Limited Partner's liability under this Section 5.9 to return distributions received by it shall be limited to an amount equal to the lesser of 25% of such Limited Partner's Commitment and 25% of the total distributions received by such Limited Partner. In addition to the foregoing, no Limited Partner shall be required to return distributions to the Partnership later than the second anniversary of the distribution, provided that if at the end of such period there are any proceedings pending or claims outstanding, the General Partner shall notify the Limited Partners in writing of the general nature of such proceedings or claims and an estimate of the amount of distributions that may be required to be returned pursuant to this Section 5.9 and the obligation of the Partners to return distributions pursuant to this Section 5.9 shall be extended with respect to each such proceeding or claim until the date such proceedings or claims are ultimately resolved and distributions are returned to the Partnership in respect thereof pursuant to this Section 5.9. Any distributions returned pursuant to this Section 5.9 shall not be treated as Capital Contributions, but shall be treated as returns of distributions and reductions in Distributable Cash, in making subsequent distributions pursuant to Article IV and Section 9.3 and in determining the amount that the General Partner is required to contribute to the Partnership pursuant to Section 9.4. Nothing in this Section 5.9, express or implied, is intended or shall be construed to give any Person other than the Partnership or the Partners any legal or equitable right, remedy or claim under or in respect of this Section 5.9 or any provision contained herein.

Section 5.10 Payment or Reimbursement of Organization Costs, Operating Costs and other Costs.

(a) The Partnership shall pay, or shall reimburse the Manager or any Affiliate thereof for its payment of, (i) Organization Costs; provided, however, that the maximum amount to be paid or reimbursed by the Partnership shall not exceed \$3,500,000 (and any Organization Costs in excess of \$3,500,000 (such excess amount, the "**Excess Organization Costs**") shall be borne by the Manager through a 100% offset against the Management Fee or a payment for Related Limited Partners as provided in Section 5.12(d)), and (ii) any Placement Fees, but such Placement Fees shall be borne by the Manager through a 100% offset against the Management Fee for Investor Limited Partners or a payment for Related Limited Partners as provided in Section 5.12(d).

(b) The Partnership shall pay, or shall reimburse the Manager or any Affiliate thereof for its payment of, all Operating Costs.

(c) With respect to any Capital Contribution intended for any payment of Operating Costs (other than Operating Costs described in Section 5.10(d)) or Organization Costs, each Limited Partner shall be responsible for the portion of such Operating Costs or Organization Costs equal to such Limited Partner's LP Percentage.

(d) Any Operating Costs attributable solely to a Feeder Fund or Blocker Corporation shall be allocated or paid in such manner as the General Partner in its reasonable discretion shall determine, which may include withholding such amount from distributions to Feeder Fund Investors, advancing such amount and then subsequently withholding such amount from distributions to Feeder Fund Investors or requiring Feeder Fund Investors to pay such amount outside of their commitment to the Feeder Fund. Consistent with the foregoing, to the extent capital is called from Feeder Fund Investors to pay any such fees, costs or expenses, such amounts shall not be treated as a Capital Contribution for purposes of this Agreement.

Section 5.11 Management Fee.

(a) Commencing as of and including the Initial Closing Date or the date of the Partnership's first capital contribution to a Portfolio Investment (the "**Initial Investment Date**"), as applicable based on such Investor Limited Partner's Management Fee Election, or such other later date chosen by the General Partner in its sole discretion, and ending on the first to occur of March 31, June 30, September 30 or December 31 following the earlier of (i) the end of the Commitment Period or (ii) the point in time at which a Successor Fund is organized in accordance with the terms hereof and a management fee is first paid by or commences to accrue with respect to such Successor Fund (the "**Initial Management Fee Period**"), the Partnership shall pay or cause an Affiliate to pay to the Manager an annual fee (the "**Management Fee**") with respect to each Investor Limited Partner equal to the Initial Management Fee Rate with respect to such Investor Limited Partner. After the expiration of the Initial Management Fee Period and until the 10th anniversary of the Initial Closing Date (the "**Subsequent Management Fee Period**"), the Management Fee shall be reduced to the Subsequent Management Fee Rate. There shall be no further payments of Management Fee after the expiration of the Subsequent Management Fee Period.

(i) "**Base Amount**" shall mean, with respect to each Investor Limited Partner, (A) the aggregate Capital Contributions made by such Investor Limited Partner to the Partnership to fund Portfolio Investments reduced by (but not below zero) (B) the sum of (x) amounts distributed to such Investor Limited Partner that constitute the return of capital of a Portfolio Investment that has been the subject of a Disposition (including the amount of any resulting loss in connection with the final Disposition of such Portfolio Investment), (y) the amount of Capital Contributions made by such Investor Limited Partner to fund a Portfolio Investment where the General Partner has determined that all of such Portfolio Investment will not be repaid or recouped by the Partnership, and (z) the amount of Capital Contributions made by such Investor Limited Partner to fund a Portfolio Investment where the General Partner has determined that part of such Portfolio Investment will not be repaid or recouped by the Partnership, but solely to the extent of such part.

(ii) "**Initial Management Fee Rate**" and "**Subsequent Management Fee Rate**" shall mean, with respect to each Investor Limited Partner, at such Investor Limited

Partner's election set forth in its subscription documents (its "**Management Fee Election**"):

(A) in the case of Early Closing Investor Limited Partners, either:

(1) during the Initial Management Fee Period, 1.75% of its Base Amount (the "**Initial Management Fee Rate**"), and during the Subsequent Management Fee Period, 1.5% of its Base Amount (the "**Subsequent Management Fee Rate**"); or

(2) during the Initial Management Fee Period, 1.4% of its Commitment (the "**Initial Management Fee Rate**"), and during the Subsequent Management Fee Period, 1.4% of its Base Amount (the "**Subsequent Management Fee Rate**"); and

(B) in the case of Later Closing Investor Limited Partners, either:

(1) during the Initial Management Fee Period, 2% of its Base Amount (the "**Initial Management Fee Rate**"), and during the Subsequent Management Fee Period, 1.5% of its Base Amount (the "**Subsequent Management Fee Rate**"); or

(2) during the Initial Management Fee Period, 1.5% of its Commitment (the "**Initial Management Fee Rate**"), and during the Subsequent Management Fee Period, 1.5% of its Base Amount (the "**Subsequent Management Fee Rate**").

(b) Except as provided below, payments of the Management Fee shall be made quarterly in advance on each Fee Payment Date of each year. The first payment (i) shall be due on the Initial Funding Date or the Initial Investment Date, as applicable (or with respect to Investor Limited Partners admitted to the Partnership pursuant to Section 10.3, on the date provided for in such Section) for the period from the Initial Closing Date or Initial Investment Date, as applicable based upon the Investor Limited Partner's Management Fee Election, up to but not including the next Fee Payment Date, whichever will first occur after the Initial Funding Date or the Initial Investment Date, as applicable, and (ii) shall be prorated based on the number of days in such period. On that Fee Payment Date (whichever has first occurred after the Initial Funding Date or the Initial Investment Date, as applicable) and on each Fee Payment Date thereafter, the Management Fee for the next three-month period shall be due. "**Fee Payment Date**" shall mean January 1, April 1, July 1 and October 1 of each year.

Section 5.12 Transaction, Break-Up and Other Fees.

(a) Neither the Manager nor any Affiliate thereof shall be permitted to charge and receive a transaction or similar fee in connection with any investment made by the Partnership hereunder.

(b) Neither the Manager nor any Affiliate thereof shall be permitted to charge and receive any fee, reimbursement, or other form of compensation in the nature of a commitment or

break-up or other arrangement as a result of the failure to consummate such investment by the Partnership hereunder.

(c) Neither the Manager nor any Affiliate thereof shall be permitted to receive and retain fees (other than Management Fees) (whether in cash or other property) from any Portfolio Company in which the Partnership then has an investment (or otherwise paid by any Portfolio Company or any other Person in connection with an investment in which the Partnership has an interest) for providing advisory, investment banking, monitoring or directors' services. Any fees for directors' services that any employee of the Manager receives for providing directors' services shall be remitted, net of taxes, to the Manager and shall, in each case, reduce the Management Fee of each Investor Limited Partner by its proportionate share of such remitted amount and, to the extent such reduction of Management Fees has not offset all such fees as of the expiration of the Subsequent Management Fee Period, the remaining amount of its proportionate share of such remitted amount shall be distributed to such Investor Limited Partner.

(d) An amount equal to each Limited Partner's proportionate share of all Placement Fees and all Excess Organization Costs paid by the Partnership shall, in each case, reduce the Management Fee of any Investor Limited Partner by an identical amount.

Section 5.13 Suspension Events.

(a) The General Partner shall give prompt written notice to the LPAC if any Key Person either (i) ceases to be involved in the day-to-day operations of EnCap or (ii) fails to comply with his or her obligations under Section 5.5 (which failure shall be determined without giving effect to the parenthetical "(while active as an employee of EnCap)" in such Section) (such cessation, a "**Key Person Departure**"). If a Key Person Departure occurs during the Commitment Period, the remaining Key Person shall appoint one or more of Kyle M. Kafka, Brad A. Thielemann, or another person approved by the LPAC as successor Key Persons. If (i) the remaining Key Person fails to make such appointment within 180 days of the Key Person Departure or (ii) both Key Persons cease to be involved in the day-to-day operations of EnCap, then a "**Key Person Event**" shall have occurred. If, as a result of any such appointment, there are more than two Key Persons, a Key Person Event shall only occur if there are not at least two Key Persons involved in the day-to-day operations of EnCap and any such appointments shall be made by a majority vote of the Key Persons.

(b) The term "**Suspension Event**" shall mean any of the following:

(i) the occurrence of a Key Person Event;

(ii) the occurrence of a Cause Event; or

(iii) the Consent, whether at a meeting by, or Consents obtained within a consecutive 120-day period of, Investor Limited Partners whose aggregate Investor LP Percentages exceed 75% to suspend the Commitment Period.

(c) Upon the occurrence of a Suspension Event and until any waiver pursuant to Section 5.13(d) (the "**Suspension Event Period**"), without the Consent of Investor Limited Partners whose aggregate Investor LP Percentages exceed the applicable threshold set forth in

Section 5.13(d), the Partnership shall not make or purchase any investments other than (A) an investment with respect to which the Partnership was, at the time of the Suspension Event, contractually obligated to make or in Portfolio Companies with respect to which the Partnership had, at or prior to the Suspension Event, contractually provided a commitment of capital thereto, (B) acquiring any Securities issued as a dividend on, in a reclassification with respect to, or in exchange for Securities that the Partnership owns at such time, or (C) acquiring or receiving any additional properties or similar consideration in connection with an investment previously made by the Partnership. During the Suspension Event Period and thereafter and except as provided above in this Section 5.13, the General Partner shall continue to manage the Portfolio Investments and other assets owned by the Partnership at that time and shall continue to have all of the rights and powers that the General Partner would have otherwise had with respect to such Portfolio Investments or other assets as if a Suspension Event had not occurred.

(d) Notwithstanding the foregoing, a Suspension Event may be waived and the Commitment Period reinstated:

(i) in the instance of a Suspension Event described in Section 5.13(b)(i), upon the Consent, within the 120-day period commencing on the date of the occurrence of such Suspension Event, of Investor Limited Partners whose aggregate Investor LP Percentages exceed 50%;

(ii) in the instance of a Suspension Event described in Section 5.13(b)(ii), upon the Consent, within the 120-day period commencing on the date of the occurrence of such Suspension Event, of Investor Limited Partners whose aggregate Investor LP Percentages exceed 66 2/3%; and

(iii) in the instance of the Suspension Event described in Section 5.13(b)(iii), upon the Consent, within the 120-day period commencing on the date of the occurrence of such Suspension Event, of Investor Limited Partners whose aggregate Investor LP Percentages exceed 75%.

(e) Upon the occurrence of a Suspension Event, the General Partner shall call and attend a meeting of the LPAC at which the General Partner shall (i) disclose any investments which the Partnership is then contractually obligated to make and the unfunded portion of any existing capital commitments that the Partnership has made to Portfolio Companies (in each case as described in Section 5.13(c)(A)), and (ii) summarize its proposal for the amount and timing of any investments that it proposes to make pursuant to those obligations and commitments.

Section 5.14 Insurance.

(a) During the term of the Partnership, the General Partner shall, to the extent commercially reasonable, maintain at the Partnership's expense the following insurance coverages: (i) an error and omissions policy with a limit of at least \$20,000,000 and a market deductible for such policy and (ii) fidelity coverage, including employee dishonesty coverage, with a limit of at least \$2,000,000 and a deductible of no more than \$200,000.

(b) In the event the Partnership obtains "key man" life insurance on any of the Principals, the Partnership shall be named as a beneficiary under any such policy.

(c) Upon written request of a Limited Partner, the General Partner shall provide such Limited Partner with evidence of insurance, including a schedule of coverage, establishing to the reasonable satisfaction of such Limited Partner the nature and extent of coverage granted by each insurance policy maintained by the General Partner pursuant to Section 5.14(a).

(d) The General Partner shall disclose to the LPAC on no less than a quarterly basis any material changes in the insurance coverage contemplated by this Section 5.14.

Section 5.15 Feeder Funds. The General Partner may form one or more Feeder Funds to participate (indirectly through one or more Blocker Corporations) as a Limited Partner or Limited Partners, subject to the following:

(a) The General Partner may not form a Feeder Fund, admit investors to any Feeder Fund (except in connection with a permitted transfer of an interest in such Feeder Fund) or permit an existing Feeder Fund Investor to increase its capital commitment to any Feeder Fund after the Additional Subscription Period.

(b) The provisions of this Agreement shall not be applied to any Blocker Corporation and shall instead be applied to each Feeder Fund Investor as if such Feeder Fund Investor had made a direct Commitment in the amount of its commitment to the applicable Feeder Fund to the Partnership, unless the context otherwise so requires. The General Partner may make such adjustments and determinations as are reasonably necessary to accomplish the purpose of this Section 5.15, including to the extent that a Feeder Fund is treated in whole or in part as a Related Limited Partner. Distributions received by a Blocker Corporation that is a Limited Partner pursuant to Section 4.3 that are attributable to a Feeder Fund Investor shall be deemed to be received by such Feeder Fund Investor for purposes of Section 4.3 (including references thereto in Section 9.4) when received by the applicable Blocker Corporation.

(c) Each Feeder Fund Investor shall be a third-party beneficiary of and be able to enforce the provisions of this Agreement as if it were an Investor Limited Partner or Related Limited Partner, as applicable.

(d) The General Partner may take into account the use of Alternative Investment Vehicles by any Feeder Fund or Feeder Fund Investors when applying the provisions of this Agreement, including Article IV.

Section 5.16 Alternative Investment Vehicles.

(a) If the General Partner determines that for legal, tax or regulatory reasons it is in the best interests of the Partnership or of some or all of the Partners that some or all of the Partners (directly or indirectly via a Feeder Fund) participate in a Portfolio Investment through an alternative investment structure, the General Partner may (i) structure the making of such Portfolio Investment outside of the Partnership by requiring each such Partner (or Feeder Fund) to make such investment through a limited partnership or other vehicles and entity structures that are appropriate under the circumstances (each, an “**Alternative Investment Vehicle**”) that shall invest on a parallel basis with or in lieu of the Partnership (which, for the avoidance of doubt, may participate in such Portfolio Investment in respect of any Partners not participating through an Alternative Investment Vehicle), as the case may be, and (ii) in the case of an existing Portfolio

Investment (or portion thereof), transfer all or a portion of such investment to an Alternative Investment Vehicle. If the General Partner utilizes an Alternative Investment Vehicle, each Partner or Feeder Fund that is to participate in such Portfolio Investment through the Alternative Investment Vehicle shall be admitted as a partner, member or other equity holder of such Alternative Investment Vehicle and each Partner participating directly or indirectly therein shall make capital contributions to the Alternative Investment Vehicle to the same extent, for the same purposes and on the same terms and conditions as such Partner is required to make Capital Contributions directly or indirectly to the Partnership, and such capital contributions shall reduce the Unpaid Commitment of such Partner to the same extent as if Capital Contributions were made directly or indirectly to the Partnership with respect thereto. To the maximum extent practicable, but subject to tax, regulatory or other legal considerations, each Partner that participates in Portfolio Investments through Alternative Investment Vehicles shall have the same economic interest in all material respects in such Portfolio Investments as such Partner would have had if such Portfolio Investment had been made solely by the Partnership, and the provisions of this Agreement regarding distributions, allocations of net profit and net loss and the Clawback Amount shall be applied as if such Portfolio Investments had been made solely by the Partnership.

(b) If the General Partner determines that an Alternative Investment Vehicle will be utilized pursuant to Section 5.16(a), (i) within 10 days prior to the formation of any Alternative Investment Vehicle, the General Partner shall provide written notice to each Limited Partner that will become an investor in such Alternative Investment Vehicle of the name, address, date of formation, tax identification number (if applicable), and jurisdiction of formation of the Alternative Investment Vehicle, and the total commitments that initially will be made by such Limited Partner to such Alternative Investment Vehicle; (ii) the organizational documents of any Alternative Investment Vehicle shall have substantially similar terms as this Agreement (as practicable and applicable) in all material respects, including provisions regarding termination, removal of the General Partner, indemnification and exculpation, ERISA, transfer restrictions and tax structuring covenants; (iii) each Alternative Investment Vehicle shall be managed by the General Partner or its Affiliate; (iv) the Limited Partners in any Alternative Investment Vehicle shall be given entity and limited liability opinions substantially similar in all material respects to opinions given to the Limited Partners at the closing of the Partnership; (v) if a Limited Partner defaults on its obligations to any Alternative Investment Vehicle it shall be a Defaulting Partner to the same extent that the Limited Partner would be a Defaulting Partner under this Agreement and any default remedies imposed by the General Partner under the terms of this Agreement or the governing document of the Alternative Investment Vehicle will be aggregated so as to provide the same result as if such defaulting Limited Partner had made all investments through the Partnership; and (vi) with respect to an Alternative Investment Vehicle that is formed in a jurisdiction outside of the U.S., the General Partner shall comply with Section 8.7; provided, however, that the foregoing requirements shall not apply if the Limited Partners investing through the Alternative Investment Vehicle are solely one or more Feeder Funds.

(c) With respect to any Portfolio Investment, subject to tax, regulatory or legal considerations, the Partnership and any Alternative Investment Vehicle formed to invest in such Portfolio Investment shall invest and divest on economic terms that are the same, and at the same time, in all material respects. The respective interests of the Partnership and any Alternative Investment Vehicle in any Portfolio Investment (and their respective shares of any investment expenses or indemnification obligations) shall generally be in proportion to the capital committed

by each to such Portfolio Investment. Any Alternative Investment Vehicle shall bear all costs and expenses relating to its formation, operation and liquidation.

ARTICLE VI - LIMITED PARTNERS; LPAC

Section 6.1 No Participation in Management. No Limited Partner shall take part in the management or control of the Partnership's investment or other activities, transact any business in the Partnership's name or have the power to sign documents for or otherwise bind the Partnership. No Limited Partner shall hold itself out as being a general partner of the Partnership. Except as expressly provided herein, no Limited Partner shall have the right to vote for the election, removal or replacement of the General Partner. No provision of this Agreement shall obligate any Limited Partner to refer investments to the Partnership or restrict any investments that such Limited Partner may make. The exercise by any Limited Partner of any right conferred herein shall not be construed to constitute participation by such Limited Partner in the control of the investment or other activities of the Partnership so as to make such Limited Partner liable as a general partner for the debts and obligations of the Partnership for purposes of the Act or otherwise.

Section 6.2 Liability of Limited Partners. The Limited Partners, subject to Section 4.8, shall not be liable for the debts, liabilities, contracts or other obligations of the Partnership except for the Unpaid Commitment of a Limited Partner, except to the extent of the Limited Partners' share of the assets (including undistributed revenues) of the Partnership and except as otherwise provided in the Act.

Section 6.3 Representatives of the Limited Partners. Upon request of the General Partner, each Limited Partner shall provide to the General Partner a list of each officer, attorney-in-fact, employee and other person who is then authorized to act for or on behalf of such Limited Partner with respect to the matters provided for in this Agreement. The General Partner shall be entitled to fully rely on any vote, Consent, election or other action given, made or taken by such person on behalf of such Limited Partner, and until the General Partner is notified in writing to the contrary, such person shall be authorized to take all action on behalf of such Limited Partner which the Limited Partner is authorized to take hereunder.

Section 6.4 Incapacity. The Incapacity of a Limited Partner shall not cause a winding up and dissolution of the Partnership, but the rights of such Limited Partner to share in the profits and losses of the Partnership, to give any Consents required of such Limited Partner under the terms of this Agreement, to receive distributions of Partnership funds, and to assign its interest in the Partnership pursuant to Article X shall, on the occurrence of such an event, devolve on such Limited Partner's trustee, receiver or liquidator, as the case may be, and the Partnership shall continue as a limited partnership. The trustee, receiver or liquidator, as the case may be, shall be liable for all the obligations of the Incapacitated Limited Partner. However, in no event shall such trustee or receiver become a substituted Limited Partner, except in accordance with Article X.

Section 6.5 LPAC.

(a) As promptly as practicable after the Initial Closing Date, the General Partner shall select and form an "LPAC" (as herein called), which shall consist following the Final Closing Date of at least 5, but no more than 11, individuals who are representatives of the Investor Limited

Partners; provided, however, that (i) no single Investor Limited Partner shall have more than one representative serving on the LPAC at any one time; and (ii) without limiting the foregoing or the definition of Investor Limited Partner, the members of the LPAC must be non-Affiliates of the General Partner. Any vacancy arising on the LPAC shall be filled by the General Partner (subject, however, to the provisos in the first sentence of this Section 6.5(a)). Any member of the LPAC may be removed at any time (A) with or without cause, by the Consent of Investor Limited Partners whose aggregate Investor LP Percentages equal or exceed 66 2/3% and (B) by the General Partner if such member represents a Limited Partner that (x) is a Defaulting Partner hereunder or (y) Disposed of greater than 50% of its interest in the Partnership to a non-Affiliate. Any member of the LPAC may, by written notice to the General Partner, appoint an alternate to act for such member in his or her absence.

(b) The functions of the LPAC shall be (i) to consent to, approve, review or waive any matter requiring the consent, approval, review or waiver of the LPAC as set forth in this Agreement, to consult with and advise the General Partner on such other matters, including investment strategy, about which the General Partner may from time to time, in its sole discretion, determine to consult with the LPAC; (ii) to approve each determination of Market Value for purposes of Section 4.5(b); and (iii) to approve such other matters and perform such other functions as are provided for in this Agreement or in any agreement governing a Feeder Fund; provided, that the functions and activities of the LPAC and each member thereof acting in such capacity shall be limited to those permitted under the Act for limited partners who are deemed not to participate in the control of the business of a partnership.

(c) The LPAC shall have the authority to adopt rules and procedures, not inconsistent with this Agreement, or the agreement governing each Feeder Fund, relating to the conduct of its affairs; provided, however, that (i) in any event such rules and procedures shall include the requirement that each member shall be required to recuse himself from voting on any matter being considered by the LPAC for which such member (or the Limited Partner or investor represented by such member) has a conflict of interest, (ii) except when a greater number is required elsewhere in this Agreement, all approvals, disapprovals, and other actions taken by the LPAC shall be authorized by a majority in number of the members of the LPAC then holding office and eligible to vote on the matter being considered, and excluding from such calculation any recusals or abstentions and (iii) without limiting any other manner in which the LPAC may choose to act, any matter requiring approval of the LPAC may be approved without a meeting of the LPAC if, after notice of such matter is given to each member of the LPAC by the General Partner, the General Partner receives the written Consent (which written Consent may be in the form of an Electronic Transmission that does not include a manual signature) of a majority in number of the members of the LPAC then holding office and eligible to vote on the matter, excluding from such calculation any recusals or abstentions. In no event shall the LPAC (or any member thereof) have the power to bind the Partnership, the Limited Partners, the Feeder Funds or the Feeder Fund Investors, or the authority to act for or on behalf of any of them. The General Partner shall, if requested by the LPAC, meet with or otherwise make itself reasonably available to, the LPAC on at least a quarterly basis and at a mutually convenient time. Any member of the LPAC that either (x) does not attend a duly called meeting of the LPAC or otherwise abstains from voting on the subject action at such meeting, or (y) after receiving prior written notice of a subject action to be taken by written Consent of the LPAC, does not respond to such notice within five Business Days, shall be deemed to have abstained from the LPAC's vote on such subject action.

(d) Each member of the LPAC (and the Limited Partner represented by such member) (i) shall have no duties (fiduciary or otherwise) to the Partnership or any Partner and (ii) in determining to take, or refrain from taking, any action in such capacity shall be permitted to take into consideration only the interests of the Limited Partner represented by such member and, in so doing, shall not be considered to have acted fraudulently or engaged in intentional misconduct. Each member of the LPAC, and each Limited Partner or Feeder Fund Investor associated with a member of the LPAC, and their respective Affiliates, shall be indemnified to the extent set forth in Section 5.8.

(e) The LPAC, with the written approval of the General Partner (which approval shall not be unreasonably withheld), may retain independent legal counsel and financial advisors to assist in carrying out the functions of the LPAC; provided, however, that if the legal fees and expenses reasonably anticipated to be incurred in engaging such legal counsel as to a given matter or related matters are reasonably expected to exceed \$200,000, the LPAC shall first obtain the Consent of the Investor Limited Partners whose aggregate Investor LP Percentages exceed 50%. Any fees and expenses relating to the retention of such counsel or financial advisor shall be an Operating Cost.

(f) The LPAC shall serve without compensation. The Partnership shall reimburse all reasonable out-of-pocket expenses of the members of the LPAC incurred in attending meetings and otherwise as a result of their service on the LPAC.

(g) The General Partner shall provide the Limited Partners with the names and contact information of the LPAC members within a reasonable time after the completion of the Additional Subscription Period, reasonably prompt notice of any changes to the composition of the LPAC and, upon a Limited Partner's request, copies of any minutes of such LPAC meeting. Each Limited Partner agrees that any such information provided to a Limited Partner pursuant to this Section 6.5(g) shall be deemed Confidential Information and shall be subject to Section 7.4.

ARTICLE VII - ACCOUNTING, REPORTING AND BANKING MATTERS; CONFIDENTIALITY

Section 7.1 Books of Account; Capital Accounts.

(a) The General Partner shall keep books of account for the Partnership in accordance with generally accepted accounting principles in the United States consistently applied and in accordance with the terms of this Agreement. Such books shall be maintained at the United States principal office of the Partnership or at such other place or places in the United States as determined by the General Partner. The calendar year shall be selected as the accounting and Fiscal Year of the Partnership.

(b) An individual capital account (a "**Capital Account**") shall be maintained by the Partnership for each Partner in accordance with the rules of Treasury Regulations Section 1.704-1(b)(2)(iv) and the following provisions:

(i) The Capital Account of each Partner shall, except as otherwise provided herein, be (A) credited with the amount of cash and the initial Book Value of any other property contributed to the Partnership by such Partner, including, to the extent applicable,

pursuant to Section 7.1(b)(ii) (net of liabilities secured by such contributed property that the Partnership is considered to assume or take subject to under Section 752 of the Code), (B) credited with allocations to such Partner of Profits pursuant to Section 4.1(a) and any other items of income or gain allocated to such Partner pursuant to Section 4.1(b), (C) credited with any other increases allowed or required by Treasury Regulations Section 1.704-1(b)(2)(iv), (D) debited with allocations to such Partner of Losses pursuant to Section 4.1(a) and any other items of loss or deduction allocated to such Partner pursuant to Section 4.1(b), (E) debited by the amount of cash or the Book Value of any property distributed to such Partner (net of liabilities secured by such distributed property that such Partner is considered to assume or take subject to under Section 752 of the Code) and (F) debited with any other decreases allowed or required by Treasury Regulations Section 1.704-1(b)(2)(iv).

(ii) If any Partnership-Level Tax (A) for purposes of maintaining Capital Accounts and allocating Profits and Losses, is treated as an expense of the Partnership, and (B) for purposes of Section 4.3, relates to one or more Partners (each such Partner, an “**Affected Partner**”) and is recoverable from such Affected Partners in accordance with Section 4.8, then to the extent that the General Partner determines it is appropriate for purposes of properly maintaining Capital Accounts (including by avoiding duplicative reductions thereto), the Partnership (1) shall allocate the expense with respect to such tax to the Affected Partners in accordance with Section 4.1(b)(xiv), (2) to the extent the Partnership recovers the Partnership-Level Tax by payment from the Affected Partners (whether directly or in repayment of a deemed loan), shall increase the Affected Partners’ Capital Accounts by the amount of such payment in accordance with Section 7.1(b)(i)(A) (notwithstanding that for all other purposes of this Agreement, the amount of such payment shall not reduce such an Affected Partner’s Unpaid Commitment nor increase such Affected Partner’s Capital Contributions and any such payment shall be payable without regard to such Affected Partner’s Unpaid Commitment and notwithstanding the termination of the Commitment Period), and (3) to the extent the Partnership recovers the Partnership-Level Tax by reducing the distributions to which the Affected Partners would otherwise be entitled to receive, shall not reduce the Capital Account of the Affected Partners by the amount of the distributions that were offset (notwithstanding that the amount of such distributions that were offset will be treated as having been distributed to the Affected Partners).

(iii) In the event of a Disposition of interests in the Partnership made in accordance with this Agreement, the Capital Account of the assigning Partner that is attributable to the Disposed interests in the Partnership shall, if applicable, for U.S. tax purposes, carry over to the assignee Partner in accordance with the provisions of Treasury Regulations Section 1.704-1(b)(2)(iv)(I).

Notwithstanding anything herein to the contrary, the provisions of this Agreement relating to the maintenance of Capital Accounts are intended to comply with applicable Treasury Regulations under Section 704 of the Code and to provide for allocations that have “substantial economic effect” or are in accordance with the Partners’ interests in the Partnership, in each case, within the meaning of those Treasury Regulations. The provisions of this Agreement shall be interpreted and applied in a manner consistent with this intention and the General Partner shall have the authority

to adjust the allocations or manner in which Capital Accounts are maintained to comply therewith. Except as otherwise required by applicable law, no Partner shall have any liability to restore all or any portion of a deficit balance in such Partner's Capital Account.

Section 7.2 Reports.

(a) The General Partner shall furnish to the Limited Partners the following reports and other information at the respective times indicated:

(i) within 30 days after the end of each of the first three quarters of each Fiscal Year: (A) unaudited financial statements for the Partnership as of the end of and for such quarter, including a balance sheet and statements of income, Partners' equity, and cash flow prepared in accordance with U.S. generally accepted accounting principles, consistently applied (except as disclosed therein), except (1) that such financial statements may omit footnote disclosures required by U.S. generally accepted accounting principles and year-end adjustments and (2) for the notes and financial highlights disclosures; (B) a statement of the estimated capital of the Partnership and distributions to the Partners, an estimate of such Partner's Unpaid Commitment; (C) detailed quarterly reports describing any fees received by the Partnership, the General Partner, the Principals, EnCap and their respective Affiliates from the issuer of any Security held by the Partnership or any Portfolio Company during such period, including the total amount of such fees received during the period, and a breakdown of each fee including (1) the amount of the fee, (2) the reason the fee is being paid (e.g., a description of any services provided to the Portfolio Company), (3) the date the fee was paid, and (4) from whom such fee was received; and (D) a reasonably detailed summary of distributions made to Feeder Fund Investors during such quarter.

(ii) within 45 days after the end of each of the first three quarters of each Fiscal Year, a report or reports which (A) sets forth a description of each Portfolio Investment made or Disposed of by the Partnership during such quarter, (B) contains a list of each Portfolio Investment of the Partnership as of the end of such quarter and the cost or fair market value of such Portfolio Investment as of such date as estimated by the General Partner based on the most recent engineering or other relevant information in the possession of the General Partner with respect to such Portfolio Investment, (C) summarizes the performance of each Portfolio Investment of the Partnership for such quarter and identifies any material variances from any projections or plans previously furnished to the Limited Partners for such Portfolio Investment, and (D) contains a current valuation of each Limited Partner's allocable share of Partnership assets as estimated by the General Partner based on the most recent engineering or other relevant information in the possession of the General Partner with respect to each Portfolio Investment of the Partnership;

(iii) within 45 days after the end of each of the first three quarters of each Fiscal Year and within 120 days after the end of each Fiscal Year of the Partnership, a report that sets forth (A) the status of Preferred Return, (B) a statement of any Carried Interest Distributions made as of the last day of such quarter or Fiscal Year, as applicable, and

(C) the amount of the Clawback Amount, if any, as of the last day of such quarter or Fiscal Year, as applicable;

(iv) within 90 days after the end of each Fiscal Year of the Partnership, (A) a report which shall (1) discuss and review the status of each Portfolio Investment and its performance for such Fiscal Year and identify any material variances from any projections or plans previously furnished to the Limited Partners for such Portfolio Investment, (2) set forth the cost or fair market value of the Portfolio Investment as of the end of such Fiscal Year as estimated by the General Partner based on the most recent engineering or other relevant information in the possession of the General Partner with respect to such Portfolio Investment, and (3) contain a current valuation of each Limited Partner's allocable share of Partnership assets as estimated by the General Partner based on the most recent engineering or other relevant information in the possession of the General Partner with respect to each Portfolio Investment of the Partnership, (B) financial statements for the Partnership as of the end of and for such Fiscal Year, including a balance sheet and statements of income, Partners' equity, and cash flow, prepared in accordance with U.S. generally accepted accounting principles (and reflecting, in all material respects, valuations of the Partnership's investments that are prepared utilizing the guidelines contained in United States GAAP Accounting Standards Codification Topic 820: Fair Value Measurements and Disclosures, as in effect from time to time), which financial statements shall be audited by an Acceptable Accounting Firm and shall be accompanied by a statement of such accountants that their examination in connection with such financial statements has been made in accordance with generally accepted auditing standards, (C) a statement of the capital of the Partnership for such Fiscal Year, (D) a statement in reasonable detail of distributions to the Partners, and (E) a detailed report describing any fees received by the Partnership, the General Partner, the Principals, EnCap and their respective Affiliates from the issuer of any Security held by the Partnership or any Portfolio Company during such Fiscal Year, including the total amount of such fees received during such Fiscal Year, and a breakdown of each fee including (1) the amount of the fee, (2) the reason the fee is being paid (e.g., a description of any services provided to the Portfolio Company), (3) the date the fee was paid, and (4) from whom such fee was received;

(v) within 120 days after the end of each Fiscal Year of the Partnership, a calculation of the Management Fee with respect to each Investor Limited Partner;

(vi) promptly upon the request of any Limited Partner (and subject to Section 7.4), (A) such information concerning the Partnership or any of its Portfolio Investments as the Limited Partner may reasonably request and which the General Partner can provide without unreasonable effort and (B) a current copy of the LP Schedule (unless the General Partner or the Partnership is prohibited from revealing the identity or other identifying information of any Limited Partner, in which case such information with respect to such Limited Partner may be redacted from the LP Schedule);

(vii) within a reasonable time following the Final Closing Date, a reasonably itemized summary of Organization Costs through such date; and

(viii) such other reports and information as the General Partner may determine from time to time.

(b) If the Partnership's audited financial statements are accompanied by an auditor's opinion that is qualified in any manner, the Partnership's financial statements and/or the auditor's opinion shall disclose and describe the nature of such qualification and the amount, if applicable, of each item or event giving rise to or reflecting a departure from U.S. generally accepted accounting principles.

(c) Contemporaneously with the delivery of the audited financial statements contemplated by Section 7.2(a)(iv), the General Partner shall represent in writing to the Limited Partners that it has complied in all material respects with the material terms and provisions of this Agreement and any Side Letters executed and delivered by the General Partner as contemplated by Section 13.9.

(d) Within 120 days of the end of each Fiscal Year of the Partnership, the chief financial officer of the General Partner or another executive officer of the General Partner shall execute and deliver to the Limited Partners a letter stating that to his or her knowledge (i) the audited financial statements of the Partnership for such Fiscal Year fairly present in all material respects the financial condition, results of operations and cash flows for the Partnership as of the date and for the periods presented in such financial statements, and (ii) distributions by the Partnership to the Limited Partners for such Fiscal Year have been made in accordance with this Agreement; provided that if he or she cannot make such statements, the letter shall instead provide a description of the reasons therefor.

(e) The General Partner shall retain the books of accounts and records of the Partnership for at least seven years following the date of dissolution of the Partnership pursuant to Article IX of this Agreement.

(f) As to a given Limited Partner, the General Partner shall use its reasonable best efforts to provide such Limited Partner with such reports as shall be reasonably requested by it in order to comply with laws applicable to such Limited Partner.

Section 7.3 Bank Accounts. The General Partner shall cause one or more accounts to be maintained in a bank or banks, each such bank having capital and surplus accounts totaling not less than \$500,000,000. The accounts maintained by the General Partner shall be used for the payment of the expenditures incurred by the Partnership in connection with the business of the Partnership, and in which shall be deposited any and all receipts of the Partnership. The General Partner shall determine the number of and the persons who will be authorized as signatories on each such bank account. There shall not be deposited in any of such accounts any funds other than the funds belonging to the Partnership, and no other funds shall in any way be commingled with such funds. All funds of the Partnership in excess of \$1,000,000 on hand at any time and not invested in any Portfolio Companies (and not pending anticipated investment within 30 days) shall be invested only in U.S. Treasuries with a remaining maturity of 60 days or less, or bank deposits, certificates of deposit or banker's acceptances with any bank meeting the minimum capital and surplus requirements stated above.

Section 7.4 Review of Information; Confidentiality.

(a) Except as may be required by applicable law or valid subpoena or other lawful process or by the rules of any applicable stock exchange or any other regulatory or self-regulatory body or other regulatory requirements, each Limited Partner shall (consistent with its reasonable practices and procedures adopted in good faith for handling confidential information) keep confidential all written information furnished to it by the General Partner (including any investment or other information which such Limited Partner is permitted to access on the Partnership's website, by virtue of being a Limited Partner), and shall not disclose any such information to any Person whatsoever (other than such Limited Partner's officers, directors, employees, beneficial owners that are Affiliates of such Limited Partner, members of such Limited Partner's investment board, committee or such similar body, attorneys, accountants, or advisors (provided each of such Persons is informed of the confidential nature of such information and agrees in writing to keep such information confidential) or the General Partner or another Limited Partner) or use it for any purpose other than in connection with its investment in the Partnership; provided, however, that the foregoing covenant of each Limited Partner shall not apply to any information that (i) was or becomes generally available to the public other than as a result of disclosure by the Limited Partner, (ii) becomes available to the Limited Partner from a source other than the General Partner or an Affiliate thereof, provided that such source is not (to the knowledge of the Limited Partner) bound by a confidentiality agreement with the General Partner or such Affiliate or (iii) the Limited Partner can establish was within the Limited Partner's possession prior to it being furnished to the Limited Partner by or on behalf of the General Partner or an Affiliate thereof, provided that the source of such information was not (to the knowledge of the Limited Partner) bound by a confidentiality agreement with the General Partner or any of its Affiliates in respect thereof (the information described above that each Limited Partner is required to maintain as confidential hereunder being called in this Section 7.4 "Confidential Information"). Each Partner agrees and acknowledges that this Agreement, the terms of the Partnership and information provided by the Partnership or the General Partner with respect to the Partnership, any Feeder Fund, any Portfolio Investment or any Affiliate of the Partnership or any entity in which a Portfolio Investment has been made constitute proprietary trade secrets and confidential financial and commercial information, and that disclosure of any such information could cause irreparable and significant competitive harm to the Partnership and the Partners. If any Limited Partner is compelled by law, subpoena, legal process, rules of any stock exchange or any other regulatory or self-regulatory body, or other regulatory requirements to disclose any Confidential Information with which such Limited Partner reasonably believes it is legally obligated to comply, such Limited Partner shall, unless prohibited by law, notify the General Partner as promptly as practicable prior to disclosure and shall use its commercially reasonable efforts to claim any applicable exception that is reasonably knowable to such Limited Partner after good faith examination to the relevant requirement and otherwise to limit disclosure to only such information the disclosure of which would be necessary to comply with such requirement; provided, however, that no such notice shall be required in connection with any routine or periodic examination or similar process by any regulatory or self-regulatory body or authority. The restrictions set forth herein do not apply to any disclosures relating to the U.S. federal and state income tax treatment and tax structure of the transaction contemplated hereby and all materials of any kind (including opinions and tax analyses) relating to the tax treatment and tax structure of the Partnership. Without limitation, the parties hereto recognize that the National Association of Insurance Commissioners is a self-regulatory body for purposes of this Section 7.4.

(b) Any confidentiality agreement that a Limited Partner may be required to agree to in order to access any website maintained by the General Partner or the Partnership, or any Affiliate of either of them, for the purpose of making certain documents available or delivering notices to the Limited Partners under this Agreement shall be subject to the confidentiality provisions of this Agreement and any applicable Side Letter.

(c) A Limited Partner and its employees, representatives and other agents may disclose the following information in its reports or information statements given to such Limited Partner's beneficial owners: (i) the fact that it has invested in or committed capital to the Partnership, (ii) the aggregate amount of Capital Contributions to the Partnership, (iii) the amount of the Limited Partner's Capital Contributions to the Partnership, (iv) the year the first investment was made, (v) a description of the general focus of the Partnership (i.e., industry and geographic focus and target stage of investments) and (vi) the Limited Partner's net internal rate of return with respect to the Partnership's performance as prepared by the Limited Partner.

(d) The General Partner may, to the maximum extent permitted by applicable law or this Agreement, keep confidential from any Limited Partner (or group of Limited Partners, including Limited Partners subject to any law, order, regulation or governmental request requiring disclosure to the public of information relating to their respective interests in the Partnership), or require any such Limited Partner to return, any information (i) that the General Partner is required by law, agreement, or otherwise to keep confidential, or (ii) the disclosure of which the General Partner reasonably believes may have an adverse effect on (A) the ability to entertain, negotiate or consummate any proposed investment or any transaction directly or indirectly related to, or giving rise to, such proposed investment, (B) the Partnership or any Feeder Fund, or (C) any investment and any other information that the General Partner reasonably believes to be in the nature of trade secrets or the disclosure of which the General Partner in good faith believes is not in the best interests of the Partnership or could damage the Partnership or its business or that the Partnership is required by law or by agreement with a third party to keep confidential, including the locations or identities of investments set forth on the schedules of any annual reports to be delivered to the Limited Partners.

Section 7.5 Certain Notices. The General Partner shall give the Limited Partners notice of the occurrence of any of the following events as promptly as reasonably practicable:

(a) if the General Partner, the Manager or a Principal files for bankruptcy protection or if any petition is filed or proceeding is instituted against the General Partner or a Principal under any bankruptcy or insolvency law;

(b) of (i) the receipt by the General Partner, or any party referenced in this Section 7.5(b) and of which the General Partner becomes aware, of written notice from the Securities and Exchange Commission or other regulatory or administrative body with authority over an Existing Fund, the Partnership, a Feeder Fund, the General Partner, the Manager, EnCap or any of their respective Affiliates (including, for the avoidance of doubt, any Principal) that alleges a material violation of law by an Existing Fund, the Partnership, a Feeder Fund, the General Partner, the Manager, EnCap or any of their respective Affiliates (including, for the avoidance of doubt, any Principal) to the extent any such investigation relates to their involvement with an

Existing Fund, the Partnership, a Feeder Fund, the General Partner, the Manager, or EnCap, and (ii) the outcome, when resolved, of any such investigation;

(c) if any legal action is brought against the Partnership, a Feeder Fund, the General Partner, the Manager or a Principal by any Person or governmental authority and which, if adversely determined, would be reasonably likely to materially adversely affect such Person's ability to perform his or her duties to the General Partner, the Manager, the Partnership, a Feeder Fund or EnCap or affect the General Partner's ability to perform its obligations under this Agreement or materially adversely affect the business and operations of the Partnership, the outcome, when resolved, of any such legal action;

(d) if the General Partner, the Manager, or any Principal is convicted of or pleads guilty or nolo contendere to a material securities laws violation or a felony;

(e) the death or incapacitation of any Principal or any other cessation of a Principal's active involvement in the management of the Partnership's Portfolio Investments;

(f) any assignment, pledge, mortgage, hypothecation, sale or other Disposition or encumbrance by a Principal of all or any part of such Principal's interest in the General Partner, other than to an EnCap Related Party, an employee incentive vehicle affiliated with EnCap or entities owned solely by any one or group of EnCap Related Parties, or family or charitable foundations or family investment vehicle for any of the foregoing;

(g) any material change in the management structure or the senior management composition of EnCap;

(h) if the Partnership changes its auditors and the reason for such change;

(i) any Consent or vote taken by the Limited Partners under this Agreement and the results thereof;

(j) a material breach by the General Partner of any of its duties or obligations hereunder or a material representation herein;

(k) a Cause Event; or

(l) a Suspension Event.

ARTICLE VIII - TAX, ERISA, AND OTHER REGULATORY RELATED MATTERS

Section 8.1 Tax Status. The Partners agree to classify the Partnership as a partnership for U.S. federal income tax purposes. Neither the Partnership, the General Partner, nor any Limited Partner shall file an election to classify the Partnership as an association taxable as a corporation for U.S. federal income tax purposes.

Section 8.2 Tax Elections. The General Partner (a) may, in its sole discretion, or shall, if required by law, cause the Partnership to make a timely election under Section 754 of the Code (and a corresponding election under state and local law), and the Partners shall cooperate to provide

the Partnership with all information necessary in connection with such election and (b) may, in its sole discretion, cause the Partnership to make any other election with respect to taxes the General Partner may deem appropriate. Upon request of the General Partner, each Partner shall cooperate in good faith with the Partnership in connection with the Partnership's efforts to elect out of the application of the Partnership-level audit and adjustment rules of the Bipartisan Budget Act, if applicable.

Section 8.3 Tax Returns; Other Information. The General Partner shall prepare or cause to be prepared and timely file all U.S. federal, state and local income and other tax returns and reports as may be required as a result of the business of the Partnership. The General Partner shall use reasonable efforts to furnish to each Partner, (i) within 105 days, in the case of U.S. federal returns, and (ii) within 150 days, in the case of state and other tax returns, in each case, following the end of each Fiscal Year, such information regarding the amount of such Partner's share in the Partnership's taxable income or loss for such Fiscal Year, in sufficient detail to enable such Partner to prepare its tax returns.

Section 8.4 Partnership Representative. The General Partner may appoint and replace a Partnership Representative and authorize the Partnership Representative to take any and all actions determined by the General Partner and permissible under the Bipartisan Budget Act. Pursuant to Section 12.1(e), the General Partner shall have the authority to amend this Section 8.4 to give effect to the provisions of the Bipartisan Budget Act and each Partner agrees to be bound by the provisions of any such amendment. The Partnership Representative is authorized to take such actions and to execute and file all statements and forms on behalf of the Partnership that are approved by the General Partner and are permitted or required by the applicable provisions of the Bipartisan Budget Act (including a "push-out" election under Section 6226 of the Code or any analogous election under state or local tax law) or in connection with any other tax proceeding. Each Partner agrees to cooperate with the Partnership Representative and to do or refrain from doing any or all things requested by the Partnership Representative and approved by the General Partner (including paying any and all resulting taxes, additions to tax, penalties and interest in a timely fashion) in connection with any examination of the Partnership's affairs by any federal, state, or local tax authorities, including resulting administrative and judicial proceedings. No Partner shall have any claim against the Partnership Representative, the General Partner or the Partnership for any actions taken (or any failures to take action) by such Persons in good faith pursuant to Section 4.8 or this Section 8.4. Any reasonable, documented cost or expense incurred by the Partnership Representative in connection with its duties, including the preparation for or pursuance of administrative or judicial proceedings, shall be paid by the Partnership.

Section 8.5 Capital Interest Gains and Losses. The Related Limited Partners' interests in the Partnership are intended to represent "capital interests" within the meaning of Treasury Regulation Section 1.1061-3(c)(3), and the General Partner shall maintain the books and records of the Partnership such that any Profit and Loss (and items thereof) attributable to such capital interests shall be considered "Capital Interest Gains and Losses" (as defined in Treasury Regulation Section 1.1061-3(c)(2)) not subject to Section 1061 of the Code (including by compliance with the rules set forth in Treasury Regulation Section 1.1061-3(c)(3) and (4)). For the avoidance of doubt, this Section 8.5 is intended to satisfy the "clear identification requirement" set forth in Section 1061 and the Treasury Regulations promulgated thereunder.

Section 8.6 ERISA Matters.

(a) The General Partner, on behalf of the Partnership, shall use its reasonable best efforts to manage the business and affairs of the Partnership in such a manner that the Partnership will qualify (i) as a “venture capital operating company” within the meaning of the Plan Assets Regulation or (ii) under some other exemption under such regulation or any other applicable law, rule or regulation that causes the assets of the Partnership not to be “plan assets” for purposes of ERISA. The General Partner shall give written notice to the ERISA Partners of which applicable exemption the Partnership is operating under that causes the assets of the Partnership not to be “plan assets” for purposes of ERISA.

(b) If the ERISA Partners in the aggregate hold, or are reasonably expected to hold, 25% or more of the total value of any class of equity interest in the Partnership (as determined in accordance with Section 3(42) of ERISA), then the General Partner shall deliver to each ERISA Partner an opinion of counsel to the effect that the Partnership should qualify as a “venture capital operating company” (as defined in subsection (a) above).

(c) To the extent the Partnership does not hold “plan assets” pursuant to ERISA by virtue of the “insignificant participation exception” in the Plan Assets Regulation, the General Partner shall provide each ERISA Partner with a certificate, dated as of the date that the first Call Notice is issued under this Agreement, to the effect that participation by the ERISA Partners in the Partnership is not “significant” within the meaning of the Plan Assets Regulation. The General Partner shall provide each ERISA Partner with an annual certificate within 60 days following the end of each of the Partnership’s annual valuation period (as defined in 29 C.F.R. § 2510.3-101(d)) or, to the extent the Partnership does not hold “plan assets” pursuant to ERISA by virtue of the “insignificant participation exception” in the Plan Assets Regulation, within 60 days of the end of each calendar year during the term of the Partnership, to the effect that (i) the Partnership continues to qualify as a “venture capital operating company” (as defined in subsection (a) above) or (ii) participation by the ERISA Partners in the Partnership is not “significant”, as applicable.

(d) In the event that the General Partner determines that there is a reasonable likelihood that any portion of the assets of the Partnership would be deemed to constitute “plan assets” for purposes of ERISA, or if the General Partner otherwise becomes aware of any violation of ERISA by the Partnership, the General Partner shall notify the ERISA Partners of such as promptly as practicable.

(e) The General Partner shall provide to a Limited Partner upon its request such information as may be necessary to permit the Limited Partner (and its beneficial owners) to file any ERISA, state or other regulatory filings required under ERISA or comparable state law (including Form 5500) (“**Regulatory Information**”). Such Regulatory Information may be disclosed to the Limited Partner’s underlying beneficial owners as may be necessary to permit such beneficial owners to file Form 5500 and any other required regulatory filing without first notifying the General Partner or otherwise complying with the notice requirements set forth in Section 7.4.

(f) If the General Partner determines to use its reasonable best efforts to qualify the Partnership as a “venture capital operating company” (as defined in Section 8.6(a) above), then

the General Partner may structure all or any portion of the investments of the Partnership so that the Partnership invests directly, or through entities wholly owned by the Partnership (within the meaning of U.S. Department of Labor Advisory Opinion 95-04A), in “venture capital investments” and “derivative investments” (as such terms are defined in the Plan Assets Regulation) to the extent determined necessary or desirable by the General Partner.

Section 8.7 Investments Outside of the United States. If the Partnership proposes to invest in any entity organized under the laws of a jurisdiction other than the United States, the General Partner shall (a) obtain the written advice of counsel qualified to practice law in such jurisdiction that the limited liability of the Limited Partners related to the activities of the Partnership in such jurisdiction will be recognized and (b) obtain the advice of a qualified professional regarding tax efficient structures for such investment.

Section 8.8 FCPA and Anti-Money Laundering Compliance. The General Partner represents that it is aware and generally familiar with relevant ethics, anti-bribery, anti-corruption or similar laws, including (i) the FCPA, (ii) Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001, (iii) the International Emergency Economic Powers Act of 1977, as amended, (iv) the International Money Laundering Abatement and Financial Anti-Terrorist Financing Act of 2001, as amended, (v) the United States Trading with the Enemy Act of 1917, as amended, (vi) the Bribery Act 2010 (United Kingdom), (vii) the Specially Designated Nationals and Blocked Persons List published by the Office of Foreign Assets Control of the U.S. Department of the Treasury, (viii) the Bank Secrecy Act of 1970, as amended, (ix) the Money Laundering Control Act of 1986, and (x) the Corruption of Foreign Public Officials Act of 1998 (Canada) (collectively, “**Ethics Laws**”) and the general purposes of such Ethics Laws. The General Partner represents that none of the Partnership, the General Partner or any Principal has knowingly committed any actions or will knowingly commit any actions that would result in a violation by the Partnership of any Ethics Laws and that it will use its commercially reasonable efforts to ensure compliance with all Ethics Laws by the Partnership and the General Partner’s Affiliates, officers and employees.

Section 8.9 Media Company Provision. The Partnership shall not acquire an interest in a Media Company. As used herein, “**Media Company**” shall mean an entity that, directly or indirectly, owns, Controls or operates or has an attributable interest in (i) a U.S. broadcast radio or television station or a U.S. cable television system, (ii) a “daily newspaper”, (as such term is defined in Section 73.3555 of the Federal Communication Commission’s (“**FCC**”) rules and regulations), (iii) any U.S. communications facility operated pursuant to a license granted by the FCC and subject to the provisions of Section 310(b) of the Communications Act of 1934, as amended, or (iv) any other business that is subject to FCC regulations under which the ownership of the Partnership in such entity may be attributed to a Limited Partner or under which the ownership of a Limited Partner in another business may be subject to limitation or restriction as a result of the ownership of the Partnership in such entity.

Section 8.10 Treatment of BHCA Interests for Voting Purposes. For any determination that is to be made under this Agreement or the Act based upon a specified proportion or percentage of Total Commitments or aggregate Capital Contributions and any other vote required of Limited Partners under this Agreement or the Act, any BHCA Interests shall be disregarded. For purposes of any such determination or vote, the applicable proportion or

percentage required shall be expressed as a fraction, and shall be calculated by excluding from both the numerator and the denominator the aggregate of all BHCA Interests.

Section 8.11 CFIUS.

(a) The General Partner is hereby authorized to take such actions as may be necessary or appropriate to cause the Partnership to (i) avoid being or becoming a Foreign Person and (ii) make no Portfolio Investment that constitutes a Covered Transaction. However, the General Partner shall be under no obligation to (A) cause the Partnership to forego an investment that would constitute a Covered Transaction or (B) take any action to avoid the Partnership being or becoming a Foreign Person. To the extent the Partnership is or becomes a Foreign Person or enters into a Covered Transaction, the General Partner shall seek to manage the affairs of the Partnership in a manner that manages any CFIUS risk related to the Portfolio Investments. The General Partner may take such steps in managing the affairs of the Partnership, amending the Agreement, or adjusting the rights of the LPAC or of any Limited Partner with respect to the Partnership as it determines to be necessary or appropriate to ensure that the Partnership does not qualify as a Foreign Person or as it otherwise deems necessary in the General Partner's sole discretion consistent with Section 8.11(h) below.

(b) A Limited Partner shall be deemed to be a Foreign Person LP for purposes of this Agreement (i) upon any determination by the General Partner that such Limited Partner is a Foreign Person LP hereunder or (ii) if such Limited Partner is a Foreign Person under the DPA. Each Limited Partner acknowledges and agrees that (i) it has accurately responded to the questions in the section labeled "**CFIUS Foreign Person Status**" in its Subscription Agreement and (ii) it shall promptly provide notice of any changes to its status that would alter the responses provided in its Subscription Agreement. Each Non-Foreign Person LP shall not accept any investment or engage in any activity that would cause it to become a Foreign Person without providing advance written notice to the Partnership. Whether or not such notice is provided, any Non-Foreign Person LP that becomes a Foreign Person shall immediately upon such change in status become a Foreign Person LP subject to the restrictions in Section 8.11(c).

(c) No Foreign Person LP and no LP Affiliate of any Foreign Person LP shall have the authority to:

(i) approve, disapprove, or otherwise control any decision of the General Partner, including any decision of the Partnership to engage in a Portfolio Investment; or

(ii) unilaterally dismiss, prevent the dismissal of, select, or determine the compensation of the General Partner;

and in addition, without the written consent of the General Partner, each Foreign Person LP shall not, and shall cause its LP Affiliates not to:

(iii) independently invest in any Portfolio Investment;

(iv) have the right to communicate with the Partnership, any Portfolio Investment or the management thereof regarding the day to day operations of its business;

(v) become actively involved, directly or indirectly, in the management or operation of the Partnership or any Portfolio Investment (outside of participation on the LPAC);

(vi) obtain or seek to obtain access to Material Nonpublic Technical Information of the Partnership or any Portfolio Investment;

(vii) obtain or seek to obtain membership or observer rights on the board of directors or equivalent governing body of the Partnership, if any, or any Portfolio Investment (outside of participation on the LPAC);

(viii) become involved with or engage in any substantive decision-making of the Partnership or any Portfolio Investment regarding U.S. critical infrastructure, critical technologies, or sensitive personal data as defined under the DPA;

(ix) become involved with or engage in the purchase, lease, or concession of U.S. real estate by the Partnership or any Portfolio Investment; or

(x) maintain any other relationship to the Partnership or any Portfolio Investment, including service as a director, officer, or in another management or decision-making role, other than (A) the relationship with the Partnership permitted under this Agreement and (B) ordinary course commercial relationships with Portfolio Investments.

(d) Each Limited Partner shall ensure that no foreign government will hold greater than 10% of the undiluted equity in it or its LP Affiliates during the term of the Partnership.

(e) Each Limited Partner shall cooperate with any requests for information from the General Partner made from time to time for the purpose of determining compliance with this Section 8.11 and with the DPA, including requests for additional information on that Limited Partner's (and its LP Affiliates') holdings, investments, and relationships with U.S. Persons. Each Limited Partner shall cooperate with the General Partner with respect to any reporting and disclosure requirements imposed upon the Partnership under the DPA or by CFIUS. Each Limited Partner shall use reasonable best efforts to provide relevant information requested by CFIUS or other U.S. government authorities on behalf of and on matters related to CFIUS.

(f) The General Partner may determine that it is in the best interests of the Partnership or any of the Partners (i) to make or hold the investments of any Foreign Person LP through an Alternative Investment Vehicle as described in Section 5.16(a), (ii) to allocate profits and/or losses from a particular Portfolio Investment or (iii) to otherwise isolate any Foreign Person LP from one or more Portfolio Investments, in each case (i)-(iii) in order to reduce the likelihood of the Partnership entering into or having been deemed to have entered into a Covered Transaction. In the event of such determination, the General Partner is hereby authorized to take all such actions as may be necessary to effect the foregoing.

(g) Each Limited Partner shall cooperate with the Partnership in any such action as the General Partner deems necessary in the General Partner's sole discretion to comply with the DPA or CFIUS laws, rules, regulations, directives or special measures.

(h) The General Partner shall be authorized without the consent of any Person, including any other Partner, to take such action as it determines in its sole discretion to be necessary or advisable to comply with the DPA or CFIUS laws, rules, regulations, directives or special measures, including the actions contemplated by this Agreement.

(i) Each Foreign Person LP shall, to the maximum extent permitted by applicable law, indemnify and hold the Partnership and each Covered Person harmless from and against any loss, claim, demand, cost, expense of any nature, judgment, penalty, settlement, compromise, damage, injury suffered or sustained, or any other amount, or any nature whatsoever, known or unknown, liquid or illiquid, suffered by the Partnership or any such Covered Person arising, directly or indirectly, from such Foreign Person LP's breach of any of the provisions of this Agreement applicable to Foreign Person LPs. Notwithstanding the generality of the foregoing, the General Partner shall be held harmless for any of its acts and omissions in connection with the enforcement of the provisions of this Section 8.11(i). Neither the Partnership nor any Covered Person shall be liable to the Foreign Person LP or to any other Partner in connection with: (i) any determination of Foreign Person status; or (ii) any other matter related to compliance with the DPA or CFIUS laws, rules, regulations, directives, or special measures.

ARTICLE IX - DISSOLUTION, LIQUIDATION AND TERMINATION

Section 9.1 Dissolution. The Partnership shall be dissolved upon the occurrence of any of the following:

(a) The expiration of a 10-year period commencing on the Final Closing Date, unless the General Partner, with the approval of the LPAC, agrees to extend the term of the Partnership for up to two additional one year periods in order to permit an orderly liquidation and winding up of the Partnership.

(b) The occurrence of an event of withdrawal from the Partnership by the General Partner as provided for in the Act.

(c) The Consent of the General Partner and those Investor Limited Partners whose aggregate Investor LP Percentages equal or exceed 75%.

(d) The occurrence of any event which under the Act causes the dissolution of a limited partnership.

(e) Action has been taken by those Investor Limited Partners holding the requisite interest under Section 11.4(a) or 11.4(b) to remove the General Partner and a Replacement GP has not been elected in accordance with Section 11.4(d) within 120 days of the effective date of such action by such Investor Limited Partners.

Section 9.2 Continuation. Upon the occurrence of an event described in Section 9.1(b), the Partnership shall not be dissolved and the business of the Partnership shall be continued if those Limited Partners whose aggregate LP Percentages equal or exceed 75% so elect in the manner provided in Section 17-801(3) of the Act, and the provisions of Section 17-402 of the Act shall be applicable; provided, however, that notwithstanding any other provisions of the

Act, the sole remedy of the Limited Partners shall be to convert the interest of the General Partner to that of a Limited Partner.

Section 9.3 Liquidation and Termination. Upon dissolution of the Partnership, unless reconstituted under Section 9.2, the General Partner or, if the withdrawal of the General Partner caused the dissolution of the Partnership or the Partnership is dissolved pursuant to Section 9.1(e), a Person selected by those Investor Limited Partners whose aggregate Investor LP Percentages exceed 50% shall act as liquidator or shall appoint one or more liquidators who shall have full authority to wind up the affairs of the Partnership and make the final distribution as provided herein. The liquidator shall continue to operate the Partnership business and properties with all of the power and authority of the General Partner. The steps to be accomplished by the liquidator are as follows:

(a) As promptly as possible after dissolution and again after final liquidation, the liquidator, if requested by any Partner, shall cause a proper accounting to be made by the Partnership's independent accountants of the Partnership's assets, liabilities and operations through the last day of the month in which the dissolution occurs or the final liquidation is completed, as appropriate.

(b) The liquidator shall pay all of the debts and liabilities of the Partnership (including all expenses incurred in liquidation) or otherwise make adequate provision therefor (including without limitation the establishment of a cash escrow fund for contingent liabilities in such amount and for such term as the liquidator may reasonably determine). Without limiting the foregoing, the liquidator shall use its reasonable best efforts to sell or otherwise Dispose of any non-cash assets or other properties of the Partnership; provided, however, that if the liquidator determines that a sale or Disposition of all or any part of the Partnership's non-cash assets or other properties would cause undue loss to the Partners or otherwise be impractical, the liquidator may defer a sale or Disposition of such assets or properties until such time as the liquidator shall determine that there is no substantial risk of loss. After making payment or provision for all debts and liabilities of the Partnership, the liquidator shall then, by payment of cash or property (valued as of the date of dissolution of the Partnership at its fair market value by the appraiser selected in the manner provided above), distribute to the Partners such amounts in accordance with Section 4.3. Such a distribution shall be in cash or in kind as determined by the liquidator, subject to Section 4.5; provided, however, that notwithstanding anything herein to the contrary, in no event shall any U.S. federal, state or Indian oil and gas lease or any interest therein be distributed to any Partner unless such Partner is qualified or eligible under U.S. law to own or hold, directly or indirectly, U.S. federal, state or Indian oil and gas leases or interests therein. Each Partner shall have the right to designate another Person to receive any property which otherwise would be distributed in kind to that Partner pursuant to any provision of this Agreement; provided, however, that the provisions of Section 4.8 shall apply to any Person so designated. The Partnership shall not make any distribution of Securities or other assets to any Limited Partner (either directly or pursuant to any merger or exchange involving the Partnership), and shall not permit the interests of the Partners in the Partnership to be converted or exchanged into any other Securities or assets pursuant to any merger, exchange or other transaction, if such Limited Partner notifies the General Partner in writing that such distribution or transaction would cause such Limited Partner to be in violation of applicable law (or otherwise would be adverse for such Limited Partner) and such Limited Partner makes the election set forth in the preceding, or the following, sentence. If a Limited Partner

would receive in any such distribution or transaction an amount of any Securities or assets that would cause such Limited Partner to own or Control in excess of the amount of such Securities or assets that it may lawfully own or Control or would otherwise create an adverse effect for such Limited Partner, the General Partner shall, at the written request and expense (limited to reasonable out-of-pocket expenses incurred by the Partnership or the General Partner in connection with such request) of such Limited Partner, Dispose of all or any portion of such Securities or assets and distribute the net proceeds of such Disposition to such Limited Partner or otherwise make alternative arrangements for the sale or transfer of such Securities or assets into an escrow account on mutually agreeable terms. Prior to making any distribution referenced in the immediately preceding sentence and prior to any such merger, exchange or other transaction, the General Partner shall provide to the Limited Partners written notice of such event as required by applicable law and, in any event, at least 10 Business Days prior to any such event.

(c) The liquidator shall comply with any applicable requirements of the Act and all other applicable laws pertaining to the winding up of the affairs of the Partnership and the final distribution of its assets. The liquidator shall proceed to liquidate the Partnership and windup its affairs as soon as reasonably practicable following the dissolution of the Partnership. Notwithstanding the foregoing, the General Partner shall have the discretion, in order to maximize the value of certain Portfolio Investments for the Partnership and the Limited Partners, to make alternative arrangements for the Disposition of such Portfolio Investments into a liquidating trust, an escrow account or other comparable account or vehicle for the account and benefit of the Partnership and the Limited Partners.

(d) No Partner shall be obligated to restore a deficit balance in its Capital Account at any time; provided, that the foregoing shall not be deemed to limit or override the General Partner's obligations under Section 9.4.

(e) Subject to Section 9.4, the distribution of cash or property to the Partners in accordance with the provisions of this Section 9.3 shall constitute a complete return to the Partners of their Capital Contributions and a complete distribution to the Partners of their interests in the Partnership and all Partnership property.

Section 9.4 Return by General Partner of Excess Distributions. If, after giving effect to all distributions made pursuant to Sections 4.3 and 9.3, but before giving effect to this Section 9.4, either:

(a) the General Partner has received Carried Interest Distributions in respect of any Investor Limited Partner (other than a Defaulting Partner) that exceed 20% of (i) the Partnership's distributions to such Investor Limited Partner pursuant to Sections 4.3 and 9.3 plus total Carried Interest Distributions received by the General Partner in respect of such Investor Limited Partner minus (ii) the Capital Contributions made by such Investor Limited Partner to the Partnership from the inception of the Partnership ("**Excess Carried Interest Distributions**"); or

(b) any Investor Limited Partner (other than a Defaulting Partner) has received distributions pursuant to Sections 4.3 and 9.3 that are less than such Investor Limited Partner's aggregate Capital Contributions plus its Preferred Return (such deficiency, a "**Preferred Return Shortfall**"),

then the General Partner shall contribute to the Partnership an amount (the “**Clawback Amount**”) equal to the greater of the Excess Carried Interest Distributions or the Preferred Return Shortfall, but in no event in excess of (x) the amount of the Carried Interest Distributions received by the General Partner in respect of such Investor Limited Partner, less (y) the Deemed Cumulative Tax Liability with respect to such Carried Interest Distributions, which shall be distributed promptly to such Investor Limited Partner. If a return of distribution occurs under Section 5.9 after determination of the amount that the General Partner is required to contribute to the Partnership pursuant to this Section 9.4 (a “**Post-Term Return**”), then the amount that the General Partner is required to contribute to the Partnership pursuant to this Section 9.4 shall be re-calculated to take into account the Post-Term Return.

Section 9.5 Clawback Guaranty. The General Partner represents that it has entered into, and shall enforce the terms of, the guaranty agreement by and between the Partnership and the Principals with regard to the payment of the Clawback Amount under Section 9.4 (the “**Clawback Guaranty**”), and not to waive, terminate or amend such letter agreement, or cause the Partnership to waive, terminate or amend such letter agreement, without the prior Consent of those Investor Limited Partners whose aggregate Investor LP Percentages equal or exceed 90%. The General Partner shall deliver to the Limited Partners (a) promptly after the Initial Closing Date, a copy of a fully signed counterpart of the Clawback Guaranty, and (b) copies of all amendments or supplements to or modifications of the Clawback Guaranty promptly after the execution thereof.

ARTICLE X - DISPOSITIONS OF INTERESTS; ADDITIONAL LIMITED PARTNERS; REBALANCING

Section 10.1 Dispositions by Limited Partners.

(a) Except as set forth in this Article X or in Section 3.5(c), no Limited Partner may Dispose all or any part of its interest in the Partnership (and for these purposes, a Limited Partner’s interest in the Partnership shall include any interest in the capital or profits of the Partnership, including the right to receive distributions from the Partnership) without the prior written Consent of the General Partner, which Consent shall be in the sole discretion of the General Partner, and compliance with Section 10.1(b); provided that in the case of any Disposition to an Affiliate of such Limited Partner (but not subsequent transfers by such Affiliate), the Consent of the General Partner shall not be necessary as long as the Disposition otherwise complies with Section 10.1(b). Notwithstanding the foregoing, no Limited Partner may enter into, create, sell or Dispose of any financial instrument or contract the value of which is determined in whole or in part by reference to the Partnership (including the amount of Partnership distributions, the value of Partnership assets, or the results of Partnership operations), within the meaning of Section 1.7704-1(a)(2)(i)(B) of the Treasury Regulations.

(b) Any purported Disposition by a Limited Partner pursuant to the terms of this Article X shall be subject to the satisfaction of the following conditions:

(i) the Limited Partner that proposes to effect such Disposition (an “**Assignor**”) or the Person to whom such Disposition is to be made (an “**Assignee**”) shall have undertaken to pay all reasonable expenses incurred by the Partnership or the General Partner in connection therewith;

(ii) the General Partner shall have been given at least 30 days' prior written notice of the proposed Disposition;

(iii) the Partnership shall have received from the Assignee and, in the case of clause (C) below, from the Assignor to the extent specified by the General Partner, (A) such assignment agreement and other documents, instruments and certificates as may be reasonably requested by the General Partner, pursuant to which such Assignee shall have agreed to be bound by this Agreement, including if requested a counterpart of this Agreement executed by or on behalf of such Assignee, (B) a certificate or representation to the effect that the representations set forth in the Subscription Agreement of such Assignor are (except as otherwise disclosed to and Consented to by the General Partner) true and correct with respect to such Assignee as of the date of such Disposition and (C) such other documents, opinions, instruments and certificates as the General Partner shall have reasonably requested;

(iv) such Assignor or Assignee shall have delivered to the Partnership the opinion of counsel, which opinion and counsel shall be reasonably satisfactory to the General Partner, described in Section 10.1(c);

(v) each of the Assignor and the Assignee shall have provided a certificate or representation to the effect that (A) the proposed Disposition will not be effected on or through (1) a U.S. national, regional or local securities exchange, (2) a non-U.S. securities exchange or (3) an interdealer quotation system that regularly disseminates firm buy or sell quotations by identified brokers or dealers and (B) it is not, and its proposed Disposition or acquisition (as the case may be) will not be made by, through or on behalf of, (1) a person, such as a broker or a dealer, making a market in interests in the Partnership or (2) a person that makes available to the public bid or offer quotes with respect to interests in the Partnership;

(vi) the Assignor and the Assignee shall have agreed in writing to provide the Partnership with any information reasonably requested by the General Partner relating to any tax elections made relating to such Disposition; and

(vii) in the General Partner's reasonable determination, such Disposition will not create undue risk that the Partnership will become a publicly traded partnership for purposes of Section 7704 of the Code, and the Assignor shall execute and deliver such instruments, in form and substance reasonably satisfactory to the General Partner, as the General Partner may deem necessary or desirable to ensure that such Disposition will not cause the Partnership to become a publicly traded partnership for purposes of Section 7704 of the Code or otherwise be treated as a corporation under the Code;

The General Partner may waive any or all of the conditions set forth in this Section 10.1(b) if the General Partner determines that such waiver is in the best interests of the Partnership.

(c) The opinion of counsel referred to in Section 10.1(b)(iv) with respect to a proposed Disposition shall, unless otherwise specified by the General Partner, be substantially to the effect that:

- (i) such Disposition will not require registration under the Securities Act or violate any provision of any applicable non-U.S. securities laws;
- (ii) the Assignee is a Person that is a “qualified purchaser” as such term is defined in Section 2(a)(51) of the Investment Company Act;
- (iii) the Assignee is a Person that is a “qualified client” as defined in Rule 205-3(d)(1) promulgated under the Investment Advisers Act;
- (iv) such Disposition will not violate either this Agreement or the laws, rules or regulations of any state or any governmental authority applicable to the Assignor, the Assignee or such Disposition; and
- (v) such Disposition will not cause the Partnership to hold “plan assets” for purposes of ERISA.

In giving such opinion, counsel may, with the Consent of the General Partner, rely as to factual matters on certificates of the Assignor, the Assignee and the General Partner and may include in its opinion customary qualifications and limitations.

(d) An Assignee may be admitted to the Partnership as a substitute Limited Partner of the Partnership (a “**Substitute Partner**”) only with the Consent of the General Partner; provided, unless otherwise determined by the General Partner (i) at least 10 Business Days before such Disposition, the Assignor shall have delivered to the Partnership an affidavit of non-foreign status with respect to such Assignor that satisfies the requirements of Section 1446(f)(2) of the Code or other documentation establishing a valid exemption from withholding pursuant to Section 1446(f) of the Code or (ii) contemporaneously with the Disposition, the Assignee shall have properly withheld and remitted to the Internal Revenue Service the amount of tax required to be withheld upon the Disposition by Section 1446(f) of the Code (and shall have provided evidence to the Partnership of such withholding and remittance promptly thereafter). Unless the General Partner, the Assignor and the Assignee otherwise agree, in the event of the admission of an Assignee as a Substitute Partner, all references herein to the Assignor shall be deemed to apply to such Substitute Partner, and such Substitute Partner shall succeed to all of the rights and obligations of the Assignor hereunder; provided, for the avoidance of doubt, the Assignor shall not be relieved of its obligations under Section 4.8 pursuant to Section 4.8(e). A Person shall be deemed admitted to the Partnership as a Substitute Partner and shall be listed by the General Partner as a limited partner of the Partnership on the LP Schedule at the time that the foregoing conditions are satisfied.

(e) Unless effected in accordance with and as permitted by this Agreement, no attempted Disposition or substitution shall be recognized by the Partnership, any purported Disposition or substitution not effected in accordance with and as permitted by this Agreement shall, to the fullest extent permitted by law, be void and the Partnership shall recognize no rights of the purported Assignee, including the right to receive distributions (directly or indirectly) from the Partnership or to acquire an interest in the capital or profits of the Partnership.

(f) A change in record ownership of an interest in the Partnership by reason of a change in the identity of the trustee or other fiduciary of an ERISA Partner (including by virtue of the appointment of a successor trustee or fiduciary) shall not be deemed a Disposition within the

meaning of this Section 10.1, provided that the Limited Partner affected by such change shall notify the General Partner in writing of such change promptly and in no event later than 30 days after such event. The records of the Partnership and the LP Schedule shall be changed by the General Partner to reflect the identity of the new trustee or other fiduciary upon receipt of such notice and the execution and delivery of such documents as the General Partner shall require in connection with such change. Pending the receipt of such notice and documentation, the Partnership and the General Partner shall be entitled to rely on the records of the Partnership for all purposes in connection with the affected interest.

Section 10.2 Disposition by General Partner. The interest of the General Partner in the Partnership, whether as a General Partner or as a Limited Partner, shall not be Disposed of, in whole or in part, without the prior Consent of the Investor Limited Partners whose aggregate Investor LP Percentages equal or exceed 66 2/3%.

Section 10.3 Admission of Additional Limited Partners.

(a) For 18 months from the Initial Closing Date (the “**Additional Subscription Period**”), the General Partner may, in its sole discretion and without the approval of the Limited Partners, amend the LP Schedule for the sole purpose of adding one or more parties as an additional Limited Partner or accepting increases to a Limited Partner’s Commitment. In connection with the foregoing:

(i) Any such party becoming an additional Limited Partner shall be required to execute and deliver a counterpart of this Agreement confirming its agreement to the terms hereof.

(ii) The General Partner shall revise the LP Schedule to reflect the addition of an additional Limited Partner as a party hereto and its concomitant Commitment or an increase to a Limited Partner’s Commitment, which Commitment shall be deemed to have been given as of the Initial Closing Date for purposes of this Agreement.

(iii) At the time of becoming a party hereto, each additional Limited Partner shall be required to make a Capital Contribution to the Partnership equal to the following: (A) in the case of an additional Investor Limited Partner, the amount of Management Fees due and owing to the Manager retroactive to the Initial Closing Date or the Initial Investment Date, as applicable based upon the Investor Limited Partner’s Management Fee Election, with respect to such Limited Partner plus interest on the amount described in this Section 10.3(a)(iii)(A) at the Prime Rate from the Initial Funding Date or the Initial Investment Date, as applicable, to the date of payment of such additional Limited Partner’s first Capital Contribution; (B) such additional Limited Partner’s LP Percentage of the Organization Costs and Operating Costs previously paid by the Partnership plus, subject to Section 10.3(a)(iv), interest on the amount described in this Section 10.3(a)(iii)(B) at the rate of 8% per annum from the Initial Funding Date or the Initial Investment Date, as applicable, to the date of payment of such additional Limited Partner’s first Capital Contribution; and (C) such additional Limited Partner’s LP Percentage of the Partnership’s original cost of any investment made by it prior to the date of such additional Limited Partner’s admission to the Partnership plus, subject to Section 10.3(a)(iv), interest on the

amount described in this Section 10.3(a)(iii)(C) at the rate of 8% per annum from the date such Capital Contributions were payable by the Limited Partners that made Capital Contributions prior to the admission of such additional Limited Partner to fund such investment to the date of payment of such additional Limited Partner's first Capital Contribution.

(iv) The imposition of the Interest Component described in Section 10.3(a)(iii)(B) and Section 10.3(a)(iii)(C) is intended to provide, from a time value of money perspective, parity between those Limited Partners that have invested early and those Limited Partners that have invested later in the Partnership.

(v) Any amount due that is described in Section 10.3(a)(iii)(A) shall be (x) paid by the Partnership to the Manager or (y) to the extent required to rebalance Management Fee payments for Investor Limited Partners that elected to pay Management Fees based on the Base Amount, distributed by the Partnership to such Investor Limited Partners that made Capital Contributions to the Partnership prior to the admission of the additional Investor Limited Partner pro rata based upon their relative shares of such earlier Capital Contributions in respect of Portfolio Investments and, with respect to the Interest Component, taking into account the timing of such Capital Contributions. Any amounts due that are described in Section 10.3(a)(iii)(B) and Section 10.3(a)(iii)(C) shall be applied to future Call Notices or distributed by the Partnership to the Partners that made Capital Contributions to the Partnership prior to the admission of the additional Limited Partner pro rata based upon their relative shares of such earlier Capital Contributions in respect of Organization Costs and Operating Costs and Portfolio Investments, respectively and, with respect to the Interest Component, taking into account the timing of such Capital Contributions. Any amount distributed to a Partner under the circumstances contemplated under the immediately preceding sentence, exclusive of that portion attributable to the Interest Component, shall be deemed to increase on a dollar-for-dollar basis such Partner's Unpaid Commitment and shall be deemed to decrease on a dollar-for-dollar basis the Capital Contributions previously paid by such Partner to the Partnership.

(vi) Each Limited Partner admitted to the Partnership during the Additional Subscription Period shall succeed to the Capital Contributions of the previously admitted Partners attributable to the portion of the amount remitted to such previously admitted Partners pursuant to this Section 10.3 and its Unpaid Commitment shall be adjusted accordingly. In addition, the Capital Contributions of the previously admitted Partners shall be decreased and their Unpaid Commitments increased accordingly.

(b) Except as otherwise provided in subsection (a) above, Section 10.1 or Section 11.4(g), no Person shall be admitted to the Partnership as an additional Limited Partner without the prior Consent of the LPAC.

ARTICLE XI - PARTNER WITHDRAWAL; REMOVAL OF GENERAL PARTNER

Section 11.1 Withdrawal of Limited Partner and Return of Capital Contribution. Except as otherwise provided in Section 11.2, no Limited Partner shall be entitled to (a) withdraw from the Partnership except upon the assignment by it of all of its interest in the Partnership and

the substitution of such Limited Partner's assignee as a Limited Partner of the Partnership in accordance with Section 10.1, or (b) demand or require the return of its Capital Contributions except to the extent, if any, that distributions made pursuant to the express terms of this Agreement may be considered as such by law or by unanimous agreement of the Partners, or upon dissolution and liquidation of the Partnership, and then only to the extent expressly provided for in this Agreement and as permitted by law.

Section 11.2 ERISA Partner and Governmental Plan Partner Withdrawal.

(a) If the General Partner determines that, or a Limited Partner that is a "benefit plan investor" (within the meaning of Section 3(42) of ERISA) (an "**ERISA Partner**") notifies the General Partner in writing that, based upon an opinion of ERISA counsel (such opinion being reasonably acceptable to the General Partner and the General Partner's counsel), there is a material likelihood that the assets of the Partnership would be characterized as or would be deemed to be "plan assets" under the Plan Assets Regulation, then the General Partner shall deliver a notice to such effect to all ERISA Partners. Following delivery of such notice, the General Partner, after consultation with the ERISA Partners, shall identify and implement a course of action that would result in the Partnership's assets not being characterized as or deemed to be "plan assets." In that regard, the General Partner, in its sole discretion, may, without limitation, (i) require any ERISA Partner to withdraw from the Partnership if such ERISA Partner has violated any provision of, or made any misrepresentation in connection with, this Agreement or its Subscription Agreement, (ii) permit any ERISA Partner to withdraw without penalty, (iii) allow a Disposition of any ERISA Partner's interest in the Partnership to a substituted Limited Partner admitted to the Partnership in accordance with Section 10.1 hereof, or (iv) require all ERISA Partners to withdraw on a pro rata basis to their respective Commitments if the reason for such withdrawal is due to the level of participation by ERISA Partners in the Partnership generally, as opposed to the participation of such Limited Partner specifically. In the event the General Partner determines that there remains a material likelihood that the assets of the Partnership would be characterized as or would be deemed to be "plan assets" on the 90th day following notice to the ERISA Partners, the General Partner shall permit such ERISA Partners to withdraw from the Partnership as of such date (the "**ERISA Withdrawal Date**") without penalty. Following delivery of such notice to all ERISA Partners, the General Partner shall not treat any ERISA Partner as a Defaulting Partner to the extent that such ERISA Partner thereafter fails to make any Capital Contribution due after the date of such notice and until the date that the General Partner determines there is no longer a material likelihood that the assets of the Partnership would be deemed to be "plan assets."

(b) Effective upon the ERISA Withdrawal Date, an ERISA Partner that is withdrawing from the Partnership pursuant to subsection (a) above shall cease to be a Partner of the Partnership for all purposes and, except for its right to receive payment for its interest in the Partnership as hereinafter provided, shall no longer be entitled to the rights of a Limited Partner under this Agreement, including the right to receive allocations pursuant to Article IV, the right to receive distributions during the term of the Partnership pursuant to Article IV and upon liquidation of the Partnership pursuant to Section 9.3, and the right to vote on Partnership matters as provided in this Agreement. The General Partner shall revise the LP Schedule to reflect the withdrawal of such ERISA Partner as of its ERISA Withdrawal Date and the deletion of its Commitment.

(c) Within 90 days following the ERISA Withdrawal Date, there shall be distributed to an ERISA Partner that is withdrawing from the Partnership pursuant to subsection (a) above, in full payment and satisfaction of its interest in the Partnership, an amount equal to the amount which such ERISA Partner would have been entitled to receive pursuant to Section 9.3 if the Partnership had been liquidated on and as of the ERISA Withdrawal Date and all of the Partnership's assets had been sold on such date; provided, however, that the withdrawing ERISA Partner shall have the right to challenge such valuation of any of the Partnership's assets by written notice to the General Partner within 30 days following the ERISA Partner's being advised in writing of such valuation. If the withdrawing ERISA Partner makes a timely written objection to such valuation(s), the challenged valuation(s) shall be determined by a nationally recognized firm of independent certified public accountants or a nationally recognized investment banking firm selected by the General Partner and reasonably acceptable to the withdrawing ERISA Partner. Such Person shall determine the value of the asset or assets in question in accordance with the provisions of Section 9.3, and the determination by such Person shall be binding on all Partners. Any distribution to the withdrawing ERISA Partner pursuant to this Section 11.2 shall be made in cash, cash equivalents and/or Securities or other investments in Portfolio Companies, with each such separate group of cash, cash equivalents and/or Securities or investments in Portfolio Companies being distributed to the withdrawing ERISA Partner in proportion to such ERISA Partner's relative interest in the Partnership to the extent practicable, unless otherwise required by law or contract; provided, however, that if the General Partner determines that it would be in the best interests of the Partnership and in accordance with applicable law, the Partnership shall be permitted to issue to the withdrawing ERISA Partner a subordinated note evidencing the Partnership's obligation to the ERISA Partner set forth above, which subordinated note shall (i) bear interest at a rate reasonably acceptable to the ERISA Partner, (ii) have a maturity equal to the term of the Partnership, (iii) be prepayable to the extent a return of capital occurs on a Disposition of an investment, and (iv) be subordinated to other debts of the Partnership, but not to Limited Partner equity.

(d) Upon the withdrawal of any ERISA Partner from the Partnership pursuant to this Section 11.2, the Partners (including the withdrawing ERISA Partner) shall enter into an amendment to this Agreement reflecting such withdrawal and amending such provisions of this Agreement, including without limitation the provisions regarding allocations and distributions during the term of the Partnership and upon its liquidation, as may be appropriate, so that the intent, spirit, operation and effect of such allocation, distribution and other provisions shall, to the maximum extent possible, be preserved after taking into account the withdrawal of such ERISA Partner.

(e) At any time when the General Partner has determined that there is a material likelihood that the assets of the Partnership may be deemed to be "plan assets" under the Plan Assets Regulation, as to any specified Person, each ERISA Partner shall use reasonable efforts to provide to the General Partner, as soon as possible upon request by the General Partner (which request shall include disclosure of the Person involved), information reasonably requested as to whether such Person is a "party-in-interest" or "disqualified person" (as defined in Section 3(14) of ERISA and Code Section 4975(e)(2), respectively) with respect to such ERISA Partner.

(f) If the General Partner determines that, or a Plan Partner that is a "governmental plan" as defined in Section 3(32) of ERISA (a "**Governmental Plan Partner**") notifies the

General Partner in writing that, based upon an opinion of counsel (such opinion being reasonably acceptable to the General Partner), there is a material likelihood that, as a result of such Governmental Plan Partner continuing as a Limited Partner, such Governmental Plan Partner, the Partnership, or the General Partner (including its Affiliates) would be in violation of any statute, regulation, rule or governmental policy governing such Governmental Plan Partner, (i) that is enacted, promulgated or, with respect to which, a material change in judicial interpretation occurs, after the date of formation of the Partnership, or (ii) relating to the payment of placement agent fees or similar compensation, then such Governmental Plan Partner may elect to withdraw from the Partnership or cease making Capital Contributions as of such date. In the event of the issuance of the opinion of counsel referred to in the preceding sentence, any withdrawal of and Disposition of such Governmental Plan Partner's interest in the Partnership shall be governed by Section 11.2(b), Section 11.2(c) and Section 11.2(d) hereof, as if such Governmental Plan Partner were an ERISA Partner.

(g) If, as a consequence of any withdrawal of any ERISA Partner from the Partnership pursuant to the provisions of this Section 11.2, any Limited Partner which is a private foundation (within the meaning of Section 509(a) of the Code) will become liable for any additional taxes or penalties under Section 4943 of the Code because of "excess business holdings", such Limited Partner will have the same rights to withdraw from the Partnership as any ERISA Partner, and the provisions of this Section 11.2 shall apply to such Limited Partner mutatis mutandis.

Section 11.3 Withdrawal by General Partner. The General Partner shall not (a) withdraw voluntarily from the Partnership, either directly, by dissolution or by any other voluntary act (including without limitation any event of withdrawal from the Partnership by the General Partner as provided in Section 17-402 of the Act), other than in connection with a Disposition of its entire interest as a General Partner in accordance with the provisions of Section 10.2, or (b) allow seizure, attachment, garnishment, foreclosure or other taking of its interest in the Partnership.

Section 11.4 Removal of General Partner.

(a) Those Investor Limited Partners whose aggregate Investor LP Percentages exceed 66 2/3% may elect to remove the General Partner as the general partner of the Partnership within 120 days after notice is given to the Limited Partners of the occurrence of a Cause Event. As used herein, a "**Cause Event**" shall mean (i) the conviction by a court of competent jurisdiction of the General Partner or a Principal of a felony or a plea of nolo contendere (or its equivalent) in respect of same, in each case having a Material Adverse Effect on the Partnership; (ii) the adjudication by a court of competent jurisdiction of fraud, willful or intentional misconduct, gross negligence or a material violation of applicable Securities laws by the General Partner or any Principal with respect to the Partnership; (iii) a material breach by the General Partner of any of its duties or obligations hereunder, or any of its material representations made herein, which breach is not cured within 60 days after receipt by the General Partner of a notice authorized by Investor Limited Partners whose aggregate Investor LP Percentages equal or exceed 51% that the applicable Investor Limited Partners believe that the General Partner has committed such a material breach (provided, that if such breach is not reasonably susceptible to cure within such 60-day period and if the General Partner is diligently and in good faith taking action to cure such breach, such 60-day period shall be extended for the period of time reasonably necessary for the General Partner to cure such

breach, not to exceed 120 days); or (iv) the occurrence of an event described in Section 17-402(a)(4) of the Act with respect to the General Partner.

(b) Those Investor Limited Partners whose aggregate Investor LP Percentages exceed 75% may elect to remove the General Partner as the general partner of the Partnership without cause.

(c) Any removal of the General Partner as the general partner of the Partnership under this Section 11.4 shall be effective at such time as the actions described in Section 11.4(d) have been consummated and, in the instance of a removal pursuant to Section 11.4(b), compliance with Section 11.4(g)(iii) (the “**Removal Date**”).

(d) If an election is made to remove the General Partner as the general partner of the Partnership pursuant to this Section 11.4 (the “**Removed GP**”):

(i) a replacement general partner of the Partnership shall be designated with the Consent of those Investor Limited Partners whose aggregate Investor LP Percentages equal or exceed 51% (the “**Replacement GP**”); and

(ii) the Replacement GP shall promptly prepare and file or cause to be filed, with the assistance of the Removed GP, if and to the extent reasonably requested, an amendment to the Partnership’s Certificate filed with the Secretary of State of the State of Delaware and any other similar public filings and an amendment to this Agreement, without any further action, approval or vote of any Partner, to reflect (A) the admission of the Replacement GP as the general partner of the Partnership, (B) the withdrawal of the Removed GP as the general partner of the Partnership and (C) the change of the name of the Partnership so that it does not include the word “EnCap” or any variation thereof, including any name to which the name of the Partnership may have been changed.

(e) If an election is made to remove the General Partner as the general partner of the Partnership pursuant to Section 11.4(a):

(i) on and after the Removal Date, the Removed GP’s interest in the Partnership and in each Feeder Fund shall terminate, save and except for its rights and interests provided under this Section 11.4; in connection therewith, the (A) Unpaid Commitment of each Related Limited Partner shall be reduced to zero, (B) each Related Limited Partner’s obligation to make further Capital Contributions to the Partnership shall cease and be of no further force and effect, (C) for purposes of a vote or a Consent, each Related Limited Partner shall be deemed to be an Investor Limited Partner, (D) the Removed GP’s right to receive Carried Interest Distributions shall cease and be of no further force and effect (provided, that the foregoing shall not be deemed to limit or modify the Removed GP’s rights to receive the payment, if any, provided in Section 11.4(f)(vi) and 11.4(i)) and (E) the Removed GP’s duties and obligations under this Agreement and in the agreement of each Feeder Fund, including those under Sections 5.4(a), 5.5, and 5.6 shall cease and be of no further force and effect; and

(ii) subject to Section 11.4(f), the Removed GP and the Replacement GP shall endeavor in good faith to determine, within 60 days of the Removal Date, (i) the Fair

Market Value of all Portfolio Investments in existence as of the Removal Date (such Portfolio Investments, the “**Removal Date Investments**”) and, in turn, the amount which would be owed to the General Partner by the Partnership, assuming the Partnership and any Feeder Funds were to dissolve and liquidate on the Removal Date (the “**Removal Date Amount**”), and (ii) an allocation of the Removal Date Amount among the Partnership and any Feeder Funds (the amount allocated to the Partnership, the “**Partnership Removal Date Amount**”).

(f) If, pursuant to Section 11.4(e)(ii), the Removed GP and the Replacement GP cannot mutually agree on the Fair Market Value of the Removal Date Investments within the 60-day time period specified in such Section (the “**Initial Valuation Target Date**”):

(i) The Removed GP and the Replacement GP shall each, within 10 days following the expiration of the Initial Valuation Target Date, provide written notice of the appointment of a Qualified Appraiser (as defined below) to the other party. If the parties appoint the same Qualified Appraiser or if only one Qualified Appraiser is timely appointed, then the timely appointed Qualified Appraiser shall be the only appraiser and shall determine the Fair Market Value of the Removal Date Investments within 30 days following its appointment.

(ii) If each party timely appoints different Qualified Appraisers, such Qualified Appraisers shall agree upon a third Qualified Appraiser within 10 days following the last to occur of their respective appointments. If such Qualified Appraisers cannot agree upon a third Qualified Appraiser within 10 days following their appointment, either the Removed GP or Replacement GP may petition any United States federal district court in the Southern District of Texas to appoint such Qualified Appraiser.

(iii) The Qualified Appraiser(s) shall independently complete their determination of the Fair Market Value of the Removal Date Investments and deliver a copy of such written determination to the Removed GP and the Replacement GP within 30 days of the last Qualified Appraiser’s appointment hereunder. If there is more than one Qualified Appraiser, the Fair Market Value of the Removal Date Investments shall be the mathematical average of the two closest appraisals; provided, however, that if the two closest appraisals are not within 15% of one another, either the Removed GP or the Replacement GP shall have 10 days following receipt of both appraisals to request that the procedures outlined in this Section 11.4(f) begin again with a new Qualified Appraiser or Qualified Appraisers.

(iv) For purposes of this Section 11.4(f), a “**Qualified Appraiser**” shall mean an investment banking or other similar firm actively involved in the business of valuing and appraising companies engaged in the “upstream” sector and, to the extent any Removal Date investments include midstream assets, the “midstream” sector, of the oil and gas industry, for not less than the 10-year period immediately preceding the date of such Qualified Appraiser’s appointment. To the extent any Removal Date investments include energy transition assets, the Qualified Appraiser shall be an investment banking or similar firm actively involved in the “energy transition / alternative energy and renewables business” for not less than the 10-year period immediately preceding the date of such

Qualified Appraiser's appointment. Each Qualified Appraiser shall have access to the records, assets, properties, employees, and officers of the Partnership and each of its Portfolio Companies as of the Removal Date as it may reasonably request for the purpose of appraising the Removal Date Investments, as applicable, and the Replacement GP shall take all such actions as are reasonably necessary to grant such access.

(v) For purposes of this Section 11.4, the “**Fair Market Value**” of the Removal Date Investments shall be determined by the Removed GP and the Replacement GP or by the Qualified Appraiser(s), as applicable, by reference to what the Partnership would otherwise receive if all Removal Date Investments were to be sold on the Removal Date in an arm's-length transaction between a willing seller and a willing buyer, neither being under any compulsion to sell or buy.

(vi) The amount owed the Removed GP by the Partnership after application of Section 11.4(e)(ii) and this Section 11.4(f), as applicable, shall in aggregate (A) equal 66 2/3% of the Partnership Removal Date Amount and (B) be payable by the Partnership to the Removed GP in the form of an unsecured, non-interest-bearing promissory note in the original principal amount equal to such amount and maturing upon final liquidation of the Partnership. The Partnership shall deliver the foregoing promissory note to the Removed GP no later than five Business Days after the date on which the final determination of the amount owed the Removed GP by the Partnership is made in accordance with this Section 11.4.

(g) If an election is made to remove the General Partner as the general partner of the Partnership pursuant to Section 11.4(b):

(i) Effective as of the Removal Date, (A) the Removed GP's interest in the Partnership as a general partner shall automatically be deemed converted into an interest in the Partnership as a limited partner and the Removed GP shall automatically be deemed admitted to the Partnership as a Limited Partner immediately prior to the removal and for the purpose of receiving Carried Interest Distributions, (B) the Removed GP's duties and obligations as General Partner to the Partnership and the Limited Partners under this Agreement, including those under Sections 5.4(a), 5.5, and 5.6, shall cease and be of no further force and effect, provided, however, that the Removed GP shall remain liable under Section 9.4 and the Clawback Guaranty shall remain in full force and effect, (C) for purposes of a vote or a Consent, each Related Limited Partner shall be deemed to be an Investor Limited Partner on and after the Removal Date, (D) the Removed GP shall have no right to receive Carried Interest Distributions with respect to any Portfolio Investment that the Partnership and the party with whom the investment is to be made have not signed a letter of intent (or other similar instrument) or definitive agreement with respect thereto at the time of the Removed GP's removal (provided, that the foregoing shall not be deemed to limit or modify the Removed GP's rights to receive the payment, if any, provided in Section 11.4(f)(vi) and 11.4(i)), and (E) the Partnership's power and authority to make investments in (and fund Capital Contributions to) Portfolio Companies shall be limited solely to those Portfolio Companies in existence on the Removal Date or with respect to which the Partnership was contractually obligated to become an investor in on the Removal Date.

(ii) Without limiting Section 11.4(g)(i), the Removed GP, as a Limited Partner, (A) subject to Section 11.4(g)(i)(E), shall be obligated to fund its LP Percentage of any Call Notices issued subsequent to the Removal Date, (B) shall have the rights of a Limited Partner hereunder, including the right to vote or Consent on all matters submitted to the Limited Partners for their approval hereunder, (C) shall be entitled to receive all distributions that it would otherwise have been entitled to receive had it not been removed as the general partner of the Partnership and (D) shall receive all Carried Interest Distributions distributable to the Removed GP.

(iii) The Replacement GP shall be required to agree in writing to, and for the benefit of, the Removed GP that the Replacement GP will manage and conduct the business and affairs of the Partnership with a duty of care to the Partnership and the Limited Partners no less than that to which the Removed GP was subject to hereunder immediately prior to removal and that, consistent with such standard, will use its reasonable best efforts to (A) preserve and maintain the relationships between the Partnership and the management teams at the Portfolio Companies existing on the Removal Date, (B) honor the capital commitments made by the Partnership to those Portfolio Companies existing on the Removal Date and (C) endeavor to maximize value for the Partnership and the Partners.

(h) The Removed GP and its Affiliates shall continue to be Covered Persons and entitled to indemnification under this Agreement pursuant to Section 5.8, but only with respect to acts or omissions (A) relating to Portfolio Investments made prior to the Removal Date or (B) arising out of or relating to their activities during the period prior to the Removal Date as the general partner of the Partnership or otherwise arising out of the Removed GP's service as general partner of the Partnership.

(i) Within 30 days after the Removal Date, the Partnership shall reimburse the Manager for any Operating Costs incurred by the Manager on behalf of the Partnership prior to the Removal Date that remain unpaid.

(j) On and after the Removal Date, in no event may the Partners of the Partnership amend the terms of any of subsections (c) through (i) of this Section 11.4 or this subsection (j) without the prior written Consent of the Removed GP.

(k) Effective as of the Removal Date, the Management Agreement shall terminate. No Management Fee shall be paid to the Manager from and after the Removal Date, and any portion of the Management Fee paid prior to the Removal Date and attributable to periods after the Removal Date shall be returned by the Manager to the Partnership promptly after the Removal Date.

ARTICLE XII - AMENDMENTS; POWER OF ATTORNEY; MEETINGS OF PARTNERS AND CONSENTS

Section 12.1 Amendments.

(a) Amendments to this Agreement may be proposed (i) by the General Partner, or (ii) by those Investor Limited Partners whose aggregate Investor LP Percentages equal or exceed 33 1/3%. Any such amendment must be proposed by submitting to all Partners in writing the

proposed amendment. Subject to Section 12.1(b) through (g), any such amendment shall be approved only upon (and at the time of receipt of) the affirmative vote or written Consent of the Investor Limited Partners whose aggregate Investor LP Percentages equal or exceed 66 2/3%.

(b) Amendments to this Agreement that are of an inconsequential nature, or are necessary to comply with any applicable law or governmental regulation, or are necessary in the opinion of counsel to the Partnership to ensure that the Partnership will not be treated as an association taxable as a corporation for U.S. federal income tax purposes, or are required or contemplated by this Agreement, may be made by the General Partner without the Consent of any Limited Partner; provided, however, that any such amendment that would adversely affect any Limited Partner may be made only with the approval of such adversely affected Limited Partner. The General Partner shall provide each Limited Partner with a copy of any amendment made by the General Partner pursuant to this Section 12.1(b) and each Limited Partner shall have 10 Business Days after receipt of such amendment to notify the General Partner that it does not in good faith believe such amendment is permitted to be made by the General Partner under this Section 12.1(b). If the General Partner receives notices from Investor Limited Partners whose aggregate Investor LP Percentages exceed 20% pursuant to the immediately preceding sentence, the General Partner shall thereupon submit the amendment in question to the Investor Limited Partners for a vote under this Agreement.

(c) No amendment which amends or modifies in any material respect (i) Section 1.3, (ii) the definition of Management Fee or the other provisions relating to fees set forth in Sections 5.11 or 5.12, (iii) the definition of Operating Costs, (iv) the definition of Commitment Period, (v) amends or modifies the General Partner's standard of care in Section 5.7, (vi) Section 5.8, (vii) Section 6.5, or (viii) Section 9.4 may be made without the approval of the General Partner and those Investor Limited Partners whose aggregate Investor LP Percentages equal or exceed 75%.

(d) No amendment:

(i) which (A) increases the obligation of any Limited Partner to make Capital Contributions to the Partnership, (B) reduces any Limited Partner's share of distributions, (C) increases the Management Fee payable by a Limited Partner, or (D) otherwise adversely affects a Limited Partner's limited liability for the debts, liabilities, contracts or other obligations of the Partnership shall be made without the Consent of such Limited Partner;

(ii) which (A) in the opinion of counsel to the Partnership, would cause the Partnership to be treated as an association taxable as a corporation for U.S. federal income tax purposes, (B) amends or modifies the first sentence of Section 4.5(b) or (C) amends or modifies Section 13.9 shall be made without the approval of all Limited Partners; provided, that any amendment which is made to facilitate a merger or consolidation of the Partnership with any partnership or other entity, to convert the Partnership into another entity, or combination with any partnership or other entity, shall require the approval only of the General Partner and those Investor Limited Partners whose aggregate Investor LP Percentages equal or exceed 66 2/3%, if each of the material terms and provisions of such

merger, consolidation, conversion, exchange or combination provides for equal and/or proportionate relative treatment of each of the Limited Partners; and

(iii) to provisions of this Agreement that are specific to ERISA Partners, Governmental Plan Partners or Plan Partners only shall be made without the approval of 90% in interest of the ERISA Partners, Governmental Plan Partners or Plan Partners, as applicable.

(e) The General Partner shall be authorized to amend this Agreement, without the approval of any Partner, (i) to comply with or administer in an equitable manner the provisions of the Bipartisan Budget Act and any Treasury Regulations or other administrative pronouncements promulgated thereunder in any manner determined by the General Partner and (ii) to the extent the taxation of the right to receive Carried Interest Distributions is adversely affected by any change in law or to comply with or administer the provisions of Section 1061 and any Treasury Regulations or other administrative pronouncements promulgated thereunder, in each case, as determined by the General Partner, in its sole discretion, provided that such amendment does not adversely affect the interest of any Limited Partner. The General Partner shall bear the cost of any amendment made solely pursuant to Section 12.1(e)(ii).

(f) The General Partner shall be authorized to make any other amendment to this Agreement in connection with any Subsequent Closing, provided that (i) such amendment is not adverse to the Limited Partners and (ii) such amendment is not objected to by the Investor Limited Partners whose aggregate Investor LP Percentages exceed 20% within 10 Business Days of being given written notice thereof.

(g) No provision of this Agreement which establishes a percentage of the Limited Partners required to take any action shall be amended, altered, changed, repealed or rescinded in any respect which would have the effect of reducing such voting requirement, unless such is approved by written Consent or the affirmative vote of the General Partner and those Investor Limited Partners whose aggregate Investor LP Percentages constitute not less than the Investor Limited Partner voting requirements sought to be reduced. This Section 12.1(g) shall only be amended with the approval of all of the Partners.

(h) The General Partner shall promptly (i) notify the Limited Partners of any proposed amendments to this Agreement, any amendments to this Agreement that have been adopted, and any other actions that have been approved pursuant to this Section 12.1, and (ii) provide the Limited Partners with copies of any proposed or adopted amendments referenced in Section 12.1(h)(i).

(i) No amendment which alters the definitions of BHCA, BHCA Interest, BHCA Limited Partner or which would otherwise alter the provisions of this Agreement and would materially and adversely affect any BHCA Limited Partner's interest in a manner that does not similarly materially and adversely affect the other Limited Partners generally shall be made without the Consent of two-thirds in interest of the BHCA Limited Partners admitted to the Partnership.

Section 12.2 Power of Attorney.

(a) Each Limited Partner hereby irrevocably constitutes and appoints the General Partner, with full power of substitution, the true and lawful attorney-in-fact and agent of such Limited Partner, to execute, acknowledge, verify, swear to, deliver, record and file, in its or its assignee's name, place and stead, all in accordance with the terms of this Agreement, all instruments, documents and certificates which may from time to time be required by the laws of the United States, the State of Delaware, any other jurisdiction in which the Partnership conducts or plans to conduct its affairs in the future, or any political subdivision or agency thereof to effectuate, implement and continue the valid existence and affairs of the Partnership, including the power and authority to verify, swear to, acknowledge, deliver, record and file:

(i) all certificates and other instruments, including any amendments to this Agreement or to the Certificate of the Partnership, which the General Partner deems appropriate to form, qualify or continue the Partnership as a limited partnership (or a partnership in which the partners have limited liability) in the State of Delaware and all other jurisdictions in which the Partnership conducts or plans to conduct its affairs;

(ii) all agreements and instruments necessary or advisable to consummate any Portfolio Investment;

(iii) any amendments to this Agreement, the Certificate of the Partnership, or any other agreement or instrument which the General Partner deems appropriate to (A) effect the addition, substitution or removal of any Limited Partner, or General Partner pursuant to this Agreement; (B) effect any other amendment or modification to this Agreement duly approved and adopted in accordance with Section 12.1; or (C) to cure any ambiguity or correct or supplement any provision hereof that may be incomplete or inconsistent with any other provision herein contained so long as such amendment under this clause (C) does not adversely and disproportionately affect the interests of a Limited Partner;

(iv) all conveyances and other instruments which the General Partner deems appropriate to reflect the dissolution and termination of the Partnership pursuant to the terms hereof, including the writing required by the Act to cancel the Certificate of the Partnership;

(v) all instruments relating to (A) Dispositions of limited partnership interests of Limited Partners or to the admission of any substituted Limited Partner; (B) the treatment of a Defaulting Partner; or (C) any change in the Commitment of any Limited Partner, all in accordance with the terms of this Agreement;

(vi) all certificates of assumed name and such other certificates and instruments as may be necessary under the fictitious or assumed name statutes from time to time in effect in the State of Delaware and all other jurisdictions in which the Partnership conducts or plans to conduct its affairs;

(vii) all agreements and instruments necessary or advisable to organize and operate any Alternative Investment Vehicle, and to consummate, hold or Dispose of any

portion of any Portfolio Investment thereby, including the execution of any organizational documents for such Alternative Investment Vehicle, any amendments thereto, and other documents and instruments necessary to admit investors thereto and issue interests therein; and

(viii) any other instruments determined by the General Partner to be necessary or appropriate in connection with the proper conduct of the business of the Partnership and that do not adversely affect the interests of the Limited Partners.

(b) Such attorney-in-fact and agent shall not, however, have the right, power or authority to amend or modify this Agreement when acting in such capacities, except to the extent authorized herein. This power of attorney shall immediately terminate upon the bankruptcy, dissolution, disability or incompetence of the General Partner. The power of attorney granted herein shall be deemed to be coupled with an interest, shall be irrevocable, shall survive and not be affected by the dissolution, bankruptcy or legal disability of any Limited Partner and shall extend to its successors and assigns; and may be exercisable by such attorney-in-fact and agent for all Limited Partners (or any of them) by listing all (or any) of such Limited Partners required to execute any such instrument, and executing such instrument acting as attorney-in-fact. Any Person dealing with the Partnership may conclusively presume and rely upon the fact that any instrument referred to above, executed by such attorney-in-fact and agent, is authorized, regular and binding, without further inquiry. If required, each Partner shall execute and deliver to the General Partner within 10 Business Days after the receipt of a request therefor, such further designations, powers of attorney or other instruments as the General Partner shall reasonably deem necessary for the purposes hereof. The General Partner and any Limited Partner may agree in writing that all or any part of this Section 12.2 does not apply to such Limited Partner. The General Partner shall, upon request, promptly deliver to each Limited Partner a copy of each instrument, certificate or agreement executed by the General Partner, on behalf of such Limited Partner, pursuant to such power of attorney.

Section 12.3 Meetings of the Partners; Consents.

(a) Commencing with calendar year 2023 and in each calendar year thereafter until the termination of the Partnership, the Partnership shall have an annual meeting. Annual meetings shall be held at such time and place as the General Partner shall determine. Notice of each annual meeting, setting forth the time and the place thereof, shall be delivered to each Limited Partner not less than 30 days prior to the meeting date. At each such annual meeting, the General Partner shall discuss with the Limited Partners the operations, business and affairs of the Partnership. The costs and expenses of traveling to and attending the annual meeting shall be the responsibility of each Partner (and shall not be the obligation of the Partnership or the General Partner), except that the Partnership and the Feeder Funds shall provide at their expense suitable meeting facilities (which expense shall be deemed an Operating Cost). In the event that a Limited Partner cannot attend an annual meeting of the Partnership, the General Partner shall, upon a request of such Limited Partner, to provide a copy of any printed materials distributed at such meeting promptly after receipt of such request.

(b) Any Consent required by this Agreement may be given as follows:

(i) by a written Consent given by the applicable approving Partners at or prior to the doing of the act or thing for which the Consent is solicited; provided, that such Consent shall not have been nullified by either (A) notice to the General Partner by the approving Partner at or prior to the time of, or the negative vote by such approving Partner at, any meeting held to consider the doing of such act or thing or (B) notice to the General Partner by the approving Partner prior to the doing of any act or thing, the doing of which is not subject to approval at such meeting; or

(ii) by the affirmative vote by the approving Partners to the doing of the act or thing for which the Consent is solicited at any meeting called and held to consider the doing of such act or thing.

(c) Any matter requiring the Consent of all or any of the Investor Limited Partners pursuant to this Agreement may be considered at a meeting of the Investor Limited Partners held not less than five nor more than 60 Business Days after notice thereof shall have been given by the General Partner to all Investor Limited Partners; provided, that this in no way limits the ability of the General Partner to seek the Consent of the Investor Limited Partners without a meeting. Such notice (i) may be given by the General Partner, in its discretion, at any time and (ii) shall be given by the General Partner within 30 calendar days after receipt by the General Partner of a request for such a meeting made by those Investor Limited Partners whose aggregate Investor LP Percentages equal or exceed 50%. Any such notice shall state briefly the purpose, time and place (or telephonic or electronic meeting information) of the meeting. All such meetings shall be held within or outside the State of Delaware at such reasonable place (or via telephonic communication or electronic meeting platform) as the General Partner may designate and during normal business hours. The General Partner may set in advance a date for determining the Investor Limited Partners entitled to notice of and to vote at any meeting. All record dates shall not be more than 60 calendar days prior to the date of the meeting to which such record date relates.

(d) The General Partner shall cause the Principals to make themselves available to respond to Limited Partners' requests for information.

(e) Except as otherwise expressly provided herein, for any action for which an Investor Limited Partner's Consent is requested under this Agreement, if such Investor Limited Partner has not responded to such action within 45 calendar days (or such longer period as may be required by applicable law) from transmission of the applicable notice to the applicable Investor Limited Partner pursuant to Section 13.1 or the applicable partnership agreement or similar governing document of the applicable Feeder Fund, such Investor Limited Partner's Commitment shall not be included in the denominator for any calculation of the Investor LP Percentage applicable to such Consent.

ARTICLE XIII - MISCELLANEOUS

Section 13.1 Notices. All notices, demands, requests, or other communications required or permitted to be given pursuant to this Agreement shall be in writing and shall be given either (a) by hand delivery, (b) by United States mail, certified or registered, return receipt requested,

postage prepaid, (c) by electronic facsimile, (d) by Electronic Transmission or (e) by overnight courier service (charges prepaid) with proof of delivery. Each Limited Partner's address for notices and other communications hereunder shall be that specified by such Limited Partner on its signature page to the agreement pursuant to which it subscribes for limited partnership interests in the Partnership. The General Partner's and the Partnership's respective address for notices or other communications hereunder shall be that set forth in Section 1.4(a). Each Limited Partner may change its address for notices and communications by giving notice in writing, stating its new address for notices, to the General Partner in accordance with this Section 13.1, and the General Partner or the Partnership may change its address for notice and communication by giving such notice to the Limited Partners in accordance with this Section 13.1. Notices sent by hand delivery shall be deemed to have been given when received; notices mailed in accordance with the foregoing shall be deemed to have been given five Business Days following the date mailed; notice sent by electronic facsimile shall be deemed given on the first Business Day after electronically confirmed; notice sent by Electronic Transmission shall be deemed to have been given on the date sent; and notices sent by overnight courier service shall be deemed to have been given on the next Business Day following the date so sent.

Section 13.2 Partition. Each of the Partners hereby irrevocably waives for the term of the Partnership any right that such Partner may have to maintain any action for partition with respect to the Partnership property.

Section 13.3 Entire Agreement. This Agreement, each agreement pursuant to which a Limited Partner subscribes for limited partnership interests in the Partnership (a "**Subscription Agreement**") and any Side Letters entered into with any Limited Partner constitute the full and complete agreement of the respective parties with respect to the subject matter hereof and supersede and replace any description or summary of terms contained in the offering materials or other writings provided to prospective investors in the Partnership or any discussions concerning the subject matter hereof.

Section 13.4 Severability. If any provision of this Agreement is held to be unenforceable, this Agreement shall be considered divisible and such provision shall be deemed inoperative to the extent it is deemed unenforceable, and in all other respects this Agreement shall remain in full force and effect; provided, however, that if any such provision may be made enforceable by limitation thereof, then such provision shall be deemed to be so limited and shall be enforceable to the maximum extent permitted by applicable law.

Section 13.5 No Waiver. The failure of any Partner to insist upon strict performance of a covenant hereunder or of any obligation hereunder, irrespective of the length of time for which such failure continues, shall not be a waiver of such Partner's right to demand strict compliance in the future. No Consent or waiver, express or implied, to or of any breach or default in the performance of any obligation hereunder shall constitute a Consent or waiver to or of any other breach or default in the performance of the same or any other obligation hereunder.

Section 13.6 Applicable Law; Jurisdiction; Waiver of Jury.

(a) This Agreement, all questions concerning the construction, interpretation and validity of this Agreement, the rights and obligations of the parties hereunder, all claims or causes

of action that may be based upon, arise out of or related to this Agreement (whether arising in contract, tort or otherwise) and the negotiation, execution or performance of this Agreement (including, without limitation, any claim or cause of action based upon or arising out of or related to any representation or warranty made in or in connection with this Agreement or as an inducement to enter this Agreement) shall be governed by and construed and enforced in accordance with the laws of the State of Delaware applicable to agreements made and to be performed wholly within that jurisdiction, but not including the choice of law rules thereof.

(b) To the fullest extent permitted by applicable law, any action or proceeding against the parties relating in any way to this Agreement may be brought and enforced in the courts of the State of Delaware or the United States District Court for the District of Delaware, and the parties irrevocably submit to the jurisdiction of both such courts in respect of any such action or proceeding. The parties irrevocably waive, to the fullest extent permitted by law, any objection that they may now or hereafter have to the laying of venue of any such action or proceeding in the courts of the State of Delaware or the United States District Court for the District of Delaware and any claim that any such action or proceeding brought in any such court has been brought in any inconvenient forum.

(c) To the extent not prohibited by applicable law that cannot be waived, each Partner waives, and covenants that such Partner shall not assert (whether as plaintiff, defendant or otherwise), any right to trial by jury in any forum in respect of any issue, claim or proceeding arising out of this Agreement or the subject matter hereof or in any way connected with the dealings of any Partner or the Partnership or any of its Affiliates in connection with any representation, warranty, covenant or agreement contained in this Agreement or any transaction contemplated by this Agreement, in each case whether now existing or hereafter arising and whether in contract, tort or otherwise. The Partnership or any Partner may file an original counterpart or a copy of this Section 13.6 with any court in any jurisdiction as written evidence of the Consent of the Partners to the waiver of their respective rights to trial by jury.

(d) Notwithstanding Section 13.6(b) or (c), a Limited Partner that is a Governmental Plan Partner or other governmental entity or supranational organization and has provided the General Partner, prior to the closing on which such Limited Partner was admitted to the Partnership, with a certificate of an officer of its plan administrator or other writing reasonably acceptable to the General Partner stating that such an irrevocable submission to jurisdiction or waiver of objection to venue or right to trial by jury, as the case may be, would constitute a violation of applicable law, regulation or established policy, shall not be deemed to have made such an irrevocable submission or waiver, as the case may be.

Section 13.7 Successors and Assigns. This Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective heirs, legal representatives, successors and assigns; provided, however, that no Partner may sell, assign, transfer or otherwise Dispose of all or any part of its rights or interest in the Partnership or under this Agreement except in accordance with Article X or Article XI.

Section 13.8 Attorneys' Fees. Each Limited Partner shall pay its own attorneys' fees or expenses incurred by it in connection with the negotiation, execution and delivery of this Agreement.

Section 13.9 Most Favored Nations Provision. The General Partner, on its own behalf or on behalf of the Partnership or any Feeder Fund, may enter into side letters or similar written agreements (“**Side Letters**”) with any existing or future investor (who is or becomes an Investor Limited Partner) in the Partnership or any existing or future investor in a Feeder Fund (who is or becomes an Investor Limited Partner) that has the effect of establishing rights under, or altering or supplementing the terms of, this Agreement, any governing document of a Feeder Fund, or any Subscription Agreement. The terms of any such Side Letter shall govern with respect to such investor, notwithstanding the provisions of this Agreement or any of the Subscription Agreements; provided, however, that in the event a Side Letter grants terms more favorable to any Early Closing Investor Limited Partner or Later Closing Investor Limited Partner regarding the Management Fees payable by such Investor Limited Partner (or investor in a Feeder Fund that is not an Affiliate of the General Partner or the Manager) or the General Partner’s “carried interest” with respect to such Investor Limited Partner (or investor in a Feeder Fund that is not an Affiliate of the General Partner or the Manager), the General Partner shall offer such terms to all Early Closing Investor Limited Partners or Later Closing Investor Limited Partner, respectively, with an equal or greater Commitment.

Section 13.10 No Third-Party Beneficiaries. Except as expressly and specifically provided in Section 5.8 and Section 5.15, and except for the rights granted to the Limited Partners hereunder, which rights shall be enforceable by the Limited Partners, nothing in this Agreement, either express or implied, is intended to or shall confer upon any Person other than the parties hereto, and their respective successors and permitted assigns, any rights, benefits or remedies of any nature whatsoever under or by reason of this Agreement.

Section 13.11 Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be an original and all of which shall constitute but one and the same document.

Section 13.12 Representations and Warranties of the General Partner. The General Partner represents, warrants and covenants to the other Partners on the Initial Closing Date, and as of the date of each subsequent admission of Limited Partners pursuant to and in accordance with Section 10.3, that:

(a) The Partnership is a limited partnership duly organized, validly existing and in good standing under the laws of the State of Delaware.

(b) The General Partner is a limited partnership duly organized, validly existing and in good standing under the laws of the State of Delaware.

(c) The General Partner has the requisite power and authority to execute and deliver this Agreement, any Side Letters and any Subscription Agreements and to perform its obligations hereunder and thereunder.

(d) The execution, delivery and performance by the General Partner of this Agreement, any Side Letters and any Subscription Agreements have been duly and validly authorized, and no other action is required to be taken to authorize such execution, delivery and performance.

(e) The execution, delivery and performance by the General Partner of this Agreement are within the powers of the General Partner and will not be in contravention of or result in any breach or constitute a default under any applicable law, rule or regulation or any loan, note or other agreement or instrument to which the General Partner is a party or by which it or any of its properties are bound.

(f) This Agreement has been duly and validly executed and is binding and enforceable as against the General Partner.

(g) Except for a change of law over which the General Partner has no control (and the General Partner shall immediately notify the other Partners when the General Partner learns of such occurrence), the foregoing representations, warranties and covenants shall remain true and accurate during the term of the Partnership, and the General Partner shall neither take action nor permit action to be taken which would cause any of the foregoing representations to become untrue or inaccurate.

(h) The execution, delivery and performance by each of the General Partner and the Partnership of any Side Letters or any Subscription Agreements are within the powers of the General Partner and the Partnership, as applicable, and will not be in contravention of or result in any breach or constitute a default under any applicable law, rule or regulation or any loan, note or other agreement or instrument to which the General Partner or the Partnership is a party or by which it or any of its properties are bound.

(i) Any Side Letters and Subscription Agreements (once accepted and signed by the General Partner, the Partnership, a Feeder Fund or the general partner of a Feeder Fund, as applicable) will be duly and validly executed and will be binding and enforceable against the General Partner, the Partnership, the Feeder Fund or the general partner of a Feeder Fund, as applicable.

(j) No Consent, approval, authorization or order of any court or governmental agency or authority or of any third party which has not been obtained is required in connection with the execution, delivery and performance by the General Partner of this Agreement or the execution, delivery and performance by the General Partner or the Partnership of any Side Letter or any Subscription Agreement.

(k) To the best knowledge of the General Partner, the General Partner and its Affiliates and Persons acting on their behalf have not taken any action, or failed to take any action, which has caused the organization of the Partnership and the issuance of the interests in the Partnership to come within the registration requirements of the Securities Act or any applicable state blue sky laws. The offer and sale of partnership interests herein and in the Feeder Funds has been and will be made only to investors who represent to the General Partner that they were or are, as applicable, "accredited investors" within the meaning of Regulation D of the Securities Act. Neither the General Partner, directly or indirectly, nor any agent acting on its behalf has offered or will offer such interests or any similar Security to any Person so as to bring the issuance and sale of such interests within the registration requirements of such Act.

(l) To the best of the General Partner's knowledge, the Confidential Offering Memorandum, did not, as of the date it was prepared, contain any untrue statement of a material fact or omit to state a material fact necessary to make the statements therein not misleading (other than facts which are recognized to be industry risks normally associated with the alternative energy and/or renewables industry); provided, however, that the terms and provisions of this Agreement and the agreements governing the Feeder Funds supersede in all respects the terms described in the Confidential Offering Memorandum for the Partnership and the Feeder Funds.

(m) To the best of the General Partner's knowledge, other than as disclosed in the Confidential Offering Memorandum, as of the Initial Closing Date, there is no legal action, suit, arbitration or other legal, administrative or other governmental investigation, inquiry or proceeding (whether federal, state, local or foreign) pending or threatened against or affecting (i) the Partnership or any of its properties or assets, (ii) the General Partner or any of its properties or assets, (iii) any of the General Partner's general partners, limited partners or members or, to the extent not otherwise covered in this clause (iii), any of the Principals to the extent such litigation is brought against any Principals in such capacity or otherwise in a fiduciary capacity, (iv) any entity which is an Affiliate of the General Partner or any properties or assets of such affiliated entity or (v) any prior fund managed by the Principals or any properties or assets of any such prior fund. To the best knowledge of the General Partner, other than as disclosed in the Confidential Offering Memorandum, there is no reasonable basis for any action, suit, arbitration, investigation, inquiry or proceeding of the type referred to in the immediately preceding sentence. Notwithstanding the foregoing, for purposes of clauses (i), (iv) and (v) above, the General Partner makes no representation or warranty regarding any legal action, suit, arbitration, or other legal, administrative or other governmental investigation, inquiry or proceeding pending or threatened against a Portfolio Company of the Partnership or a portfolio company of any of the prior funds, provided none of the Partnership, the General Partner, any Principals (to the extent such litigation is brought against them in such capacity or otherwise in a fiduciary capacity), or any of the prior funds is named as a party thereto, unless an adverse outcome of such litigation could have a Material Adverse Effect on the Partnership or any such prior fund as a whole. During the five-year period prior to the Initial Closing Date, other than as disclosed in the Confidential Offering Memorandum, none of the General Partner or any Principal has been the subject of any action, proceeding or investigation that claimed or alleged fraud, misrepresentation or a material violation of any federal or state Securities law, rule or regulation.

(n) The Subscription Agreement of the Partnership entered into with each Limited Partner in connection with its admission to the Partnership is substantially similar in all material respects to the Subscription Agreement signed by the other Limited Partners, except as to the amount of Commitments made thereby and that certain Limited Partners may have entered into subscription agreements containing modified provisions due to regulatory, policy or other similar reasons.

(o) No fee, bonus, or other compensation has been paid by or on behalf of the General Partner or the Partnership, or any Affiliate of either of them, to any placement agent, finder or other Person in connection with any Limited Partner's investment in the Partnership. No fee, bonus or other compensation of any kind or value has been paid or given by the General Partner or the Partnership, or any Affiliate of either of them, to any member of the governing body, or any officer, employee, consultant or advisor, of any Limited Partner or any Affiliate of a Limited

Partner for the purpose, or with the effect, of obtaining (i) an introduction to the Limited Partner, any member of its governing body or any of its officers, employees, consultants or advisors or (ii) a favorable recommendation with respect to an investment in the Partnership.

Section 13.13 Survival of Representations and Warranties. All representations, warranties and covenants made by the Partners in this Agreement or any other document contemplated hereby shall be considered to have been relied upon by the other parties hereto and shall survive the execution and delivery of this Agreement, or such other document, regardless of any investigation made by or on behalf of any such party.

Section 13.14 Compliance with Anti-Money Laundering Requirements. The General Partner shall be authorized without the Consent of any Person, including any other Partner, to take such action as it reasonably determines to be necessary or advisable to comply, or to cause the Partnership to comply, with any anti-money laundering or anti-terrorist laws, rules, regulations, directives or special measures.

Section 13.15 Fund Counsel. Vinson & Elkins LLP and any other law firm retained by the General Partner in connection with the organization of the Partnership and any Feeder Fund, the offering of interests in the Partnership and any Feeder Fund, the management and operation of the Partnership and any Feeder Fund, or any dispute between the General Partner and any Limited Partner, is acting as counsel to the General Partner and as such does not represent or owe any duty to such Limited Partner or to the Limited Partners as a group; provided, however, that the foregoing shall not constitute a waiver by a Limited Partner of any conflicts of interest in connection with any dispute arising between the Partnership, the General Partner or any of its Affiliates, on the one hand, and the Limited Partner or the Limited Partner and all or a portion of the Limited Partners, on the other hand, that may hereafter arise in connection with the management and operation of the Partnership.

Section 13.16 Opinion to Be Delivered by Limited Partner. With respect to any opinion of the counsel required to be obtained by a Limited Partner pursuant to this Agreement, the General Partner shall use commercially reasonable efforts to provide to such Limited Partner's counsel all information reasonably available to the General Partner that is reasonably requested in order to enable such counsel to render any such opinion within the time limits applicable thereto.

Section 13.17 Closing Documents. The General Partner shall deliver to each Limited Partner (by Electronic Transmission, unless otherwise requested by a Limited Partner), within 30 Business Days after the Final Closing Date with respect to the Partnership, a copy of this Agreement, the Clawback Guaranty, such Limited Partner's Subscription Agreement and any Side Letter entered into by such Limited Partner, each executed by the General Partner, and any legal opinion issued by counsel to the Partnership with respect to the Partnership in connection with any closing in which such Limited Partner participates.

[REMAINDER OF PAGE INTENTIONALLY LEFT BLANK]

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date and year first above written.

GENERAL PARTNER:

ENCAP EQUITY FUND XII GP, L.P.

By: EnCap Equity Fund XII GP, LLC, its
general partner

By: EnCap Investments L.P., its sole member

By: EnCap Investments GP, L.L.C., its general
partner

By: EnCap Investments Holdings, LLC, its sole
member

By: EnCap Partners, LP, its managing member

By: EnCap Partners GP, LLC, its general partner

By: Jason DeLorenzo
Name: Jason M. DeLorenzo
Title: Managing Member

INITIAL LIMITED PARTNER:

Jason DeLorenzo
Jason M. DeLorenzo

SIGNATURE PAGE TO
AMENDED AND RESTATED
AGREEMENT OF LIMITED PARTNERSHIP
ENCAP ENERGY CAPITAL FUND XII, L.P.

IN WITNESS WHEREOF, the Manager has executed this Agreement as of the date and year first above written, for the purpose of agreeing to provisions that directly apply to it.

MANAGER:

ENCAP INVESTMENTS L.P.

By: EnCap Investments GP, L.L.C., its general partner

By: EnCap Investments Holdings, LLC, its sole member

By: EnCap Partners, LP, its managing member

By: EnCap Partners GP, LLC, its general partner

By: Jason DeLorenzo
Name: Jason M. DeLorenzo
Title: Managing Member

SIGNATURE PAGE TO
AMENDED AND RESTATED
AGREEMENT OF LIMITED PARTNERSHIP
ENCAP ENERGY CAPITAL FUND XII, L.P.